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TITLE 7—AGRICULTURE

Subtitle A—Office of the Secretary of Agriculture

PART 1—ADMINISTRATIVE REGULATIONS

DELEGATION OF AUTHORITY TO CARRY OUT RESPONSIBILITIES OF UNITED STATES DEPARTMENT OF AGRICULTURE UNDER FOREIGN AID ACT OF 1947

In carrying out the authority conferred by the act of December 17, 1947, Public Law 389, 80th Congress, entitled "Foreign Aid Act of 1947", and Executive Order 9914, 12 F. R. 8867, issued pursuant thereto, the Administrator of the Production and Marketing Administration is hereby authorized in behalf of this Department to cooperate with the Department of State to the extent he deems feasible in keeping with other established Departmental responsibilities and to the extent that funds may be made available therefor and in connection therewith to enter into such contracts and to perform such services as may be necessary to effectuate the commodity purchase and delivery programs under the authority of the aforementioned act of Congress. In carrying out the authority hereunder, the Administrator of the Production and Marketing Administration may redelegate any of his authority to such employees of the Production and Marketing Administration as he may deem advisable, and may coordinate activities, pursuant to his authorization, within the Department with those of the Commodity Credit Corporation under its Supply Program.

This delegation of authority shall be effective as of December 26, 1947.

(R. S. 161; 5 U. S. C. 22)

Done at Washington, D. C., this 2d day of March 1948.

[SEAL] CLINTON P. ANDERSON,
Secretary.

[F. R. Doc. 48-2001; Filed, Mar. 5, 1948; 9:13 a. m.]

Chapter IV—Federal Crop Insurance Corporation, Department of Agriculture

PART 421—BEAN CROP INSURANCE

SUBPART—REGULATIONS FOR ANNUAL CONTRACTS COVERING 1948 CROP YEAR (DOLLAR COVERAGE INSURANCE)

The Federal Crop Insurance Program is part of the general program of the United States Department of Agriculture administered for the benefit of agriculture.

By virtue of the authority vested in the Federal Crop Insurance Corporation by the Federal Crop Insurance Act, as amended, these regulations are hereby published and prescribed to be in force and effect, with respect to annual bean crop insurance contracts for the 1948 crop year, until amended or superseded by regulations hereafter made.

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MANNER OF OBTAINING INSURANCE

§ 421.1 *Availability of bean crop insurance.* (a) Bean crop insurance under annual contracts for the 1948 crop year will be provided only in accordance with this subpart in the following counties:

Huron County, Mich.
Jerome County, Idaho.
Wayne County, New York.
Elbert County, New York.

(b) Insurance will not be provided in any county unless written applications for insurance on beans are filed which cover at least 200 farms in the county or one-third of the farms normally producing beans. For this purpose an insurance unit shall be deemed to be a farm.

§ 421.2 *Application for insurance.* (a) Application for insurance, on a form entitled "Application for Bean Crop Insurance," may be made by any person to cover his interest as landlord, owner-operator, or tenant, in a bean crop. Applications shall be submitted to the office of the county association or other office specified by the Corporation on or before the closing date shown in § 421.38. In case of death of the insured after the planting of the beans is begun for the 1948 crop year, any additional acreage of beans which is planted for the insured's estate for the 1948 crop year shall be covered by the contract to the same extent as if it had been planted by the insured.

(b) Each applicant shall specify on his application the number of acres of beans on which insurance is desired on each insurance unit considered for crop insurance purposes to be located in the county, and his interest in each such acreage. These data may be revised by the applicant on or before the closing date for filing applications. After the completion of planting of the bean crop on any insurance unit covered by the application, but not later than July 15, 1948, the insured may file an acreage report with respect to such unit showing the actual acreage of beans planted thereon, provided the planted bean acreage for the insurance unit is not more than the bean acreage for such unit as shown on the application as of the closing date.

§ 421.3 *Acceptance of application by the Corporation.* (a) Upon acceptance of an application by a duly authorized representative of the Corporation, the contract shall be in effect, provided all the requirements in this subpart for the acceptance of applications have been met.

(b) The Corporation reserves the right to reject any application for insurance in its entirety or with respect to any definitely identified acreage.

INSURANCE COVERAGE

§ 421.4 *Insurable acreage.* Any acreage is insurable if a coverage is established therefor on the county actuarial table and related material before the applicable calendar closing date for filing applications for insurance; *Provided, however,* That the Corporation may establish within the time specified coverage for any acreage which will be applicable only if a specific practice or practices are followed. Any acreage for which a coverage is not established within the time specified above shall not be considered in any manner whatsoever under the contract except as provided in §§ 421.17 (d) and 421.34.

§ 421.5 *Classes of beans insured.* The classes of beans, as defined in the United States Standards for Beans, issued August 29, 1941, to be insured under the contract shall be as follows:

County and State	*Classes of beans*
Huron County, Mich.	Pea beans.
	Medium white beans.
Jerome County, Idaho	Great Northern beans.
	Pinto beans.
	Small red beans.
Wayne County, N. Y.	Red kidney beans.
Elbert County, Colo.	Pinto beans.

§ 421.6 *Determination of insured acreage and insured interest.* (a) The insured acreage with respect to each insurance unit shall be the total acreage of beans specified on the application for the land included in the insurance unit or the acreage planted thereon, as determined by the Corporation, whichever the Corporation shall elect: *Provided, however,* That insurance shall not attach with respect to (1) any acreage planted to beans which is destroyed or substantially destroyed (as defined in § 421.14) and which can be replanted before it is too late to replant to beans as determined by the Corporation, and such acreage is not replanted to beans, or (2) any acreage planted to beans too late reasonably to expect a normal crop to be produced, as determined by the Corporation.

(b) The insured interest with respect to each insurance unit shall be the insured's interest in the crop at the time of planting as specified on the application or the interest which the Corporation determines as the insured's actual interest at the time of planting, whichever the Corporation shall elect: *Provided, however,* That, for the purpose of determining loss, the insured interest shall not exceed the insured's actual interest at the time of loss, or the beginning of harvest, whichever occurs first.

§ 421.7. *Insurance period.* Insurance with respect to any insured acreage shall attach at the time the beans are planted. Insurance shall cease with respect to any portion of the bean crop covered by the contract upon threshing or removal from the field, but in no event shall the insurance remain in effect later than November 30, 1948, unless such time is extended in writing by the Corporation.

§ 421.8 *Coverage per acre.* The coverage per acre shall be the applicable number of dollars, approved by the Corporation for the area in which the insured acreage is located, shown on the county actuarial table on file in the office of the county association or other office specified by the Corporation. The coverage per acre shall be progressive depending upon whether the acreage is (1) released by the Corporation and not pulled or cut, (2) pulled or cut but not threshed, or (3) threshed.

§ 421.9 *Causes of loss insured against.* The contract shall cover loss of beans while in the field due to unavoidable causes, including drought, flood, hail, wind, frost, lightning, fire, excessive rain, snow, wildlife, hurricane, tornado, insect infestation, plant disease, and such other unavoidable causes as may be determined by the Board of Directors of the Corporation.

Where insurance is written on an irrigated basis, the contract shall also cover loss due to failure of the water supply from natural causes that could not be prevented by the insured, including (a) lowering of the water level in pump wells adequate at the beginning of the growing season to the extent that either deepening the well or drilling a new well would be necessary to obtain an adequate supply of water, (b) failure of public power used for pumping or failure of an irrigation district or water company to deliver water where such failure is not within the control of the insured, and (c) the collapse of casing in wells where such collapse could not have been foreseen and prevented by the insured: *Provided, however,* That the acreage of beans which shall be insured on an irrigated basis in any year shall not exceed that acreage which can be irrigated properly with facilities available and with a supply of irrigation water which could reasonably be expected, taking into consideration the amount of water required to properly irrigate the acreage of all irrigated crops on the farm.

§ 421.10 *Causes of loss not insured against.* The contract shall not cover loss caused by:

(a) Failure to follow recognized good farming practices;

(b) Poor farming practices, including but not limited to the use of defective or unadapted seed, failure to plant the proper quantity of seed, failure properly to prepare the land for planting or properly to plant, care for or harvest the insured crop (including unreasonable delay thereof);

(c) Following different fertilizer or farming practices than those considered in establishing the coverage;

(d) Planting beans on land which is generally not considered capable of producing a bean crop comparable to that produced on the land considered in establishing the coverage;

(e) Planting excessive acreage under abnormal conditions;

(f) Planting another crop with the beans or in the growing bean crop;

(g) Planting beans under conditions of immediate hazard;

(h) Inability to obtain labor, seed, fertilizer, machinery, repairs or insect poison;

(i) Breakdown of machinery, or failure of equipment due to mechanical defects;

(j) Neglect or malfeasance of the insured or of any person in his household or employment or connected with the farm as tenant or wage hand;

(k) Domestic animals or poultry;

(l) Theft;

(m) Failure to provide adequate casing or properly to adjust the pumping equipment in the event of a lowering of the water level in pump wells when such adjustment can be made without deepening the well;

(n) Failure properly to apply irrigation water to beans in proportion to the need of the crop and the amount of water available for all irrigated crops; or

(o) Shortage of irrigation water on any farm where the Corporation determines that the total acreage of all irrigated crops on the farm is in excess of that which could be irrigated properly with the facilities available and with the supply of irrigation water which could be reasonably expected.

PREMIUM FOR CONTRACT

§ 421.11 *Amount of premium.* The premium for each insurance unit under the contract shall be based upon (a) the insured acreage of beans for the insurance unit, (b) the premium rate and (c) the insured interest in the crop. If more than one premium rate is applicable to the insurance unit, a premium shall be computed separately using the applicable acreage for each rate, and the total of the amounts so computed shall be the premium for the insurance unit. The premium for the contract shall be the total of the premiums computed for the insured for all insurance units covered by the contract. The premium with respect to any insured acreage shall be regarded as earned when the bean crop on such acreage is planted.

§ 421.12 *Manner of payment of premium.* (a) By executing the application for bean crop insurance, the applicant executes a premium note. This note represents a promise to pay to the Corporation, on or before the applicable maturity date specified in § 421.39, the premium for all insurance units covered by the contract. A discount of five per centum shall be allowed on any premium paid in full on or before the applicable closing date for filing applications. Any premium note not paid at maturity shall bear interest computed not on a per annum basis but as follows: three per centum on the principal amount not paid on or before December 31, 1948, and an additional three per centum on the principal amount owing at the end of each six-month period thereafter.

(b) Payment on any premium shall be made by means of cash or by check, money order, postal note, or bank draft payable to the order of the Treasurer of the United States. All checks and drafts will be accepted subject to collection, and payments tendered shall not be regarded as paid unless collection is made.

(c) Any unpaid amount of any premium (either before or after the date of maturity), plus any interest due, may be deducted from any indemnity payable by the Corporation from the proceeds of any commodity loan to the insured, and from any payment made to the insured under the Soil Conservation and Domestic Allotment Act, as amended, or any other Act of Congress or program administered by the United States Department of Agriculture.

LOSS

§ 421.13 *Notice of loss or damage of bean crop.* (a) Unless otherwise provided by the Corporation, if a loss is probable, notice in writing shall be given the Corporation, at the office of the county association or other office specified by the Corporation, immediately after any material damage to the insured crop and before the beginning of the harvest of the bean crop, or before removal of the bean crop from the field, or any other use is made of it. Any such notice shall be given in time to allow the Corporation to make appropriate inspection.

(b) Unless otherwise provided by the Corporation, if, at the completion of threshing of the insured bean crop, a loss has been sustained, notice in writing shall be given immediately to the Corporation at the office of the county association or other office specified by the Corporation. If such notice is not given within 15 days after threshing is completed, the Corporation reserves the right to reject any claim for indemnity. This notice is in addition to any notice required by paragraph (a) of this section.

§ 421.14 *Released acreage.* Any insured acreage on which the bean crop has been destroyed or substantially destroyed may be released by the Corporation to be put to another use. The bean crop shall be deemed to have been substantially destroyed if the Corporation determines that it has been so badly damaged that farmers generally in the area where the land is located and on whose farms similar damage occurred would not further care for the crop or harvest any portion thereof.

Before any acreage is released it shall be inspected by a representative of the Corporation and an appraisal made of the yield that would be realized if the crop on such acreage remained for harvest.

On any acreage where the bean crop has been partially destroyed but not released by the Corporation, proper measures shall be taken to protect the crop from further damage. There shall be no abandonment of any crop or portion thereof to the Corporation.

§ 421.15 *Time of loss.* Loss, if any, shall be deemed to have occurred at the end of the insurance period as set forth in § 421.7, unless the Corporation determines that the entire bean crop on the insurance unit was destroyed or substantially destroyed earlier, in which event the loss shall be deemed to have occurred

on the date of such destruction as determined by the Corporation.

§ 421.16 *Proof of loss.* If a loss is claimed, the insured shall submit to the Corporation a form entitled "Statement in Proof of Loss," containing such information regarding the manner and extent of the loss as may be required by the Corporation. The statement in proof of loss shall be submitted not later than sixty days after the time of loss, unless the time for submitting the claim is extended in writing by the Corporation. It shall be a condition precedent to any liability under the contract that the insured establish the amount of any loss for which claim is made and that such loss has been directly caused by one or more of the hazards insured against by the contract during the insurance period, and that the insured further establish that the loss has not arisen from or been caused by, either directly or indirectly, any of the hazards not insured against by the contract. If a loss is claimed, any bean acreage which is not to be harvested shall be left intact until the Corporation makes an inspection.

§ 421.17 *Amount of loss.* (a) The amount of loss for which an indemnity will be payable with respect to any insurance unit will be determined by multiplying the planted acreage by the coverage per acre and subtracting therefrom the value of the total production for the unit, and multiplying the remainder by the insured interest; *Provided, however,* That, if the planted acreage on the insurance unit exceeds the insured acreage on such unit, as determined by the Corporation, the amount of loss determined for the planted acreage shall be reduced on the basis of the ratio of the insured acreage to the planted acreage; *Provided, further,* That, if the premium computed for the reported acreage is less than the premium computed for the planted acreage, the amount of loss determined for the planted acreage may be reduced on the basis of the ratio of the premium computed for the reported acreage to the premium computed for the planted acreage, if the Corporation so elects.

(b) The value of production shall be determined as follows:

(1) In Huron County, Michigan, the production determined in accordance with the production schedule appearing in paragraph (c) of this section shall be multiplied by the applicable price in the following price schedule:

PEA AND MEDIUM WHITE BEANS

[Per cwt.—net weight. Base price, $7.20]

Percent pick:		Percent pick:	
1	$7.05	11	$5.64
2	6.90	12	5.62
3	6.74	13	5.48
4	6.59	14	5.35
5	6.49	15	5.28
6	6.35	16	5.21
7	6.21	17	5.13
8	6.06	18	5.00
9	5.92	19	4.88
10	5.78	20	4.76

If the pick exceeds 20 percent, the applicable price to be used in determining the value of production shall be the lesser of $4.76 or the local market value per cwt. net weight of such beans, as determined by the Corporation.

For beans containing moisture in excess of 18 percent and not in excess of 20 percent, a deduction of 10 cents shall be made from the above applicable price. For beans containing moisture in excess of 20 percent, a deduction from the applicable price shall be made of 10 cents, plus 1 cent for each two-tenths of 1 percent moisture in excess of 20 percent.

(2) In Jerome County, Idaho, the production determined in accordance with the production schedule appearing in paragraph (c) of this section shall be multiplied by the applicable price in the following price schedule:

[Per cwt.—net weight]

	Great Northern beans	Pinto beans	Small Red
Base price	$6.75	$7.40	$6.95
U. S. No. 1	$6.65	$7.30	$6.85
U. S. No. 2	6.50	7.15	6.70
U. S. No. 3	6.25	6.90	6.45

GREAT NORTHERN BEANS

[Per cwt.—net weight]

Percent of pick:		Percent of pick:	
7	$5.93	14	$4.74
8	5.76	15	4.57
9	5.59	16	4.40
10	5.42	17	4.23
11	5.25	18	4.06
12	5.08	19	3.89
13	4.91	20	3.72

In the case of Great Northern beans, if the pick exceeds 20 percent, the applicable price to be used in determining the value of production shall be the lesser of $3.72 or the local market value of such beans per cwt. net weight, as determined by the Corporation.

In the case of Pinto beans, if the beans grade U. S. Substandard or U. S. Sample, the applicable price to be used in determining the value of production shall be the lesser of $6.90 or the local market value of such beans per cwt. net weight, as determined by the Corporation.

In the case of Small Red beans, if the beans grade U. S. Substandard or U. S. Sample, the applicable price to be used in determining the value of production shall be the lesser of $6.45 or the local market value of such beans per cwt. net weight, as determined by the Corporation.

(3) In Wayne County, New York, the production determined in accordance with the production schedule appearing in paragraph (c) of this section shall be multiplied by the applicable price in the following price schedule:

RED KIDNEY BEANS

[Cwt.—net weight. Base price, $8.40]

Percent of pick:		Percent of pick:	
1	$8.25	11	$6.71
2	8.09	12	6.55
3	7.94	13	6.40
4	7.78	14	6.24
5	7.63	15	6.09
6	7.48	16	5.94
7	7.32	17	5.78
8	7.17	18	5.63
9	7.01	19	5.47
10	6.86	20	5.32

If the pick exceeds 20 percent, the applicable price to be used in determining the value of production shall be the lesser of $5.32 or the local market value per cwt. net weight, as determined by the Corporation.

For beans containing moisture in excess of 18 percent and not in excess of 20 percent, a deduction of 10 cents shall be made from the above applicable price. For beans containing moisture in excess of 20 percent, a deduction from the applicable price shall be made of 10 cents plus one cent for each two-tenths of one percent moisture in excess of 20 percent.

(4) In Elbert County, Colorado, the production determined in accordance with the production schedule appearing in paragraph (c) of this section shall be multiplied by the applicable price in the following price schedule:

PINTO BEANS

[Per cwt.—net weight. Base price, $7.30]

U. S. No. 1	$7.20
U. S. No. 2	7.05
U. S. No. 3	6.80

If the beans grade U. S. Substandard or U. S. Sample, the applicable price to be used in determining the value of production shall be the lesser of $6.80 or the local market value of such beans per cwt. net weight, as determined by the Corporation.

(5) The applicable price for appraised production shall be that determined by the Corporation on the basis of its estimate of the applicable grade or pick.

(c) The total production for an insurance unit shall include all production determined in accordance with the following production schedule:

PRODUCTION SCHEDULE

Acreage classification	Total production (cwt.—net weight)
1. Acreage on which beans are threshed	Actual production of beans threshed.
2. Acreage released by the Corporation before pulling or cutting.	That portion of the appraised production for such acreage which is in excess of the number of cwt. determined by (1) subtracting the total coverage for such acreage from what the total coverage for such acreage would be if the acreage were threshed, and (2) dividing the result thus obtained by the applicable base price set forth in paragraph (b) of this section.
3. Acreage released by the Corporation after pulling or cutting but before threshing.	That portion of the appraised production for such acreage which is in excess of the number of cwt. determined by (1) subtracting the total coverage for such acreage from what the total coverage for such acreage would be if the acreage were threshed, and (2) dividing the result thus obtained by the applicable base price set forth in paragraph (b) of this section.
4. Acreage put to another use without the consent of the Corporation.	Appraised production for such acreage but not less than the product of (1) such acreage and (2) the cwt. equivalent of the coverage per acre for threshed acreage determined on the basis of the applicable price set forth in paragraph (b) of this section.
5. Acreage with reduced yield due solely to cause(s) not insured against.	Appraised number of cwt. by which production for such acreage has been reduced, but not less than the product of (1) such acreage and (2) the cwt. equivalent of the coverage per acre for threshed acreage determined on the basis of the applicable price set forth in paragraph (b) of this section, minus any threshed beans.
6. Acreage with reduced yield due partially to cause(s) not insured against and partially to cause(s) insured against.	Appraised number of cwt. by which production has been reduced because of cause(s) not insured against.

(d) Where the insured commingles production from two or more insurance units or portions thereof and fails to establish and maintain records satisfactory to the Corporation of acreage or the production from each of the component parts, the insurance with respect to such units may be voided by the Corporation and the premium forfeited by the insured: *Provided, however,* That, if all the component parts are insured, the total amount of insurance for the component parts shall be considered as the amount of insurance for the combination, and any loss for such combination shall be determined as set forth in this section. Where the insured fails to establish and maintain separate records, satisfactory to the Corporation, of uninsured acreage and production therefrom, and for one or more insurance units or portions thereof, any production from such acreage which is commingled with the production from the insured acreage shall be considered to have been produced on the insured acreage, or the insurance with respect to such unit(s) under the contract may be voided by the Corporation and the premium forfeited by the insured.

PAYMENT OF INDEMNITY

§ 421.18 *When indemnity payable.* The amount of loss for which the Corporation may be liable with respect to any insurance unit covered by the contract shall be payable within thirty days after satisfactory proof of loss is approved by the Corporation. However, if payment of any indemnity is delayed for any reason beyond the time specified, the Corporation shall not be liable for interest or damages on account of such delay.

§ 421.19 *Indemnity payment.* (a) Any indemnity due under the contract will be paid by issuance of a check payable to the order of the person(s) entitled to such payment under this subpart.

(b) Any indemnity payable under a contract shall be paid to the insured or such other person as may be entitled to the benefits of the contract under the provisions of this subpart, notwithstanding any attachment, garnishment, receivership, trustee, process, judgment, levy, equity, or bankruptcy, directed against the insured or such other person, or against any indemnity alleged to be due to such person; nor shall the Corporation or any officer, employee, or representative thereof be a proper party to any suit or action with reference to such indemnity, nor be bound by any judgment, order, or decree rendered or entered therein. No officer, agent, or employee of the Corporation shall, because of any such process, order, or decree, pay or cause to be paid to any person other than the insured or other person entitled to the benefits of the contract, any indemnity payable, in accordance with the provisions of the contract. Nothing herein contained shall excuse any person entitled to the benefits of the contract from full compliance with, or performance of, any lawful judgment, order or decree with respect to the disposition of any sums paid thereunder as an indemnity.

(c) If a check issued in payment of an indemnity is returned undeliverable at the last known address of the payee, and if such payee or other person entitled to the indemnity makes no claim for payment within two years after the issuance of the check, such claim shall not thereafter be payable, except with the consent of the Corporation.

(d) The Corporation shall provide for the posting in each county at the county courthouse of a list of indemnities paid for losses on farms in such county.

§ 421.20 *Other insurance.* (a) If the insured has or acquires any other insurance against substantially all the risks that are insured against by the Corporation under the contract, regardless of whether such other insurance is valid or collectible, the liability of the Corporation shall not be greater than its share would be if the amount of its obligations were divided equally between the Corporation and such other insurer.

(b) In any case where an indemnity is paid to the insured by another Government agency because of damage to the insured crop, the Corporation reserves the right to determine its liability under the contract, taking into consideration the amount paid by such other agency.

§ 421.21 *Subrogation.* The Corporation may require from the insured an assignment of all rights of recovery against any person(s) for loss or damage to the extent that payment therefor is made by the Corporation, and the insured shall execute all papers required and shall do everything that may be necessary to secure such rights.

§ 421.22 *Creditors.* An interest existing by virtue of a debt, lien, mortgage, garnishment, levy, execution, bankruptcy, or any other process shall not be considered an interest in the bean crop within the meaning of this subpart.

PAYMENT OF INDEMNITY TO PERSONS OTHER THAN ORIGINAL INSURED

§ 421.23 *Indemnity subject to all provisions of contract.* Indemnities shall be subject to all provisions of the contract, including the right of the Corporation to deduct from any indemnity the unpaid amount of any earned premium, plus any interest due, or any other obligation of the insured to the Corporation: *Provided, however,* That the case of a transfer of an interest in the bean crop, such deduction to be made from an indemnity payable to the transferee shall not exceed the premium, plus any interest due on the insurance unit(s) involved in the transfer, plus the unpaid amount of any other obligation of the transferee to the Corporation. Any indemnity payable to any person other than the original insured shall be subject to any collateral assignment of the contract by the original insured.

§ 421.24 *Collateral assignment of right under contract.* The right to an indemnity under a contract may be assigned by the original insured as collateral security for a loan or other obligation of such insured. Such assignment shall be made by the execution of a form entitled "Collateral Assignment," and, upon approval thereof by the Corporation, the interests of the assignee will be recognized if an indemnity is payable under the contract, to the extent of the amount determined to be the unpaid balance of the amount (including interest and other charges) for which such assignment was made as collateral security: *Provided, however,* That (a) payment of any indemnity will be subject to all conditions and provisions of the contract and to any deductions authorized under § 421.23 and, (b) payment of the indemnity may be made by check payable jointly to all persons entitled thereto and such payment shall constitute a complete discharge of the Corporation's obligation with respect to any loss under the contract. The Corporation's approval of an assignment shall not create in the assignee any right other than that derived from the assignor: *Provided, however,* That the assignee may submit a "Statement in Proof of Loss" if the insured refuses to submit, or disappears without having submitted, such statement. The Corporation shall in no case be bound to accept notice of any assignment of the contract, and nothing contained in any assignment shall give any right against the Corporation to any person other than the insured, except to an assignee approved by the Corporation. Only one such assignment will be recognized in connection with the contract, but if an assignment is released, a new assignment may be made.

§ 421.25 *Payment to transferee.* In the event of a transfer of all or a part of the insured interest in the bean crop before the beginning of harvest or the time of loss, whichever occurs first, the transferor shall immediately notify the Corporation thereof in writing at the office of the county association, or other office specified by the Corporation. The transferee under such a transfer shall be entitled to the benefits of the contract with respect to the interest so transferred, subject to any assignment made by the original insured in accordance with § 421.24: *Provided, however,* That the Corporation shall not be liable for a greater amount of indemnity in connection with the bean crop than would have been paid if the transfer had not taken place: *Provided, further,* That an involuntary transfer of an insured interest in the bean crop solely because of the existence of a debt, lien, mortgage, garnishment, levy, execution, bankruptcy, or other process, shall not entitle any holder of any such interest to any benefits under the contract. If, as a result of any such transfer, diverse interests appear with respect to any insurance unit, the indemnity, if any, payable with respect to such unit may be paid jointly to all persons having the insured interest in the bean crop at the time harvest is commenced or the time of loss, whichever occurs first, or to one of such persons on behalf of all such persons, and payment in any such manner shall constitute a complete discharge of the Corporation's liability with respect to such unit under the contract.

§ 421.26 *Death, incompetence, or disappearance of insured.* (a) If the insured dies, is judicially declared incompetent, or disappears after planting the bean crop but before the time of loss, and his insured interest in the bean crop

is a part of his estate at such time, or if the insured dies, is judicially declared incompetent, or disappears subsequent to such time, the indemnity, if any, shall be paid to the legal representative of his estate, if one is appointed or is duly qualified. If no such representative is or will be so qualified, the indemnity shall be paid to the persons beneficially entitled to share in the insured interest in the bean crop or to any one or more of such persons on behalf of all such persons: *Provided, however,* That if the indemnity exceeds $500, the Corporation may withhold the payment of the indemnity until a legal representative of the insured's estate is duly qualified to receive such payment.

(b) If the insured dies, is judicially declared incompetent or disappears after the planting of the bean crop but before the time of loss, and his interest in the insured crop is not a part of his estate at such time, the indemnity, if any, shall be paid to the person(s) who succeeded to his interest in the crop in the manner provided for in § 421.25.

(c) If an applicant for insurance or the insured, as the case may be, dies, or is judicially declared incompetent less than 15 days before the closing date for the filing of applications for insurance and before the beginning of planting of the bean crop intended to be covered by insurance, whoever succeeds him on the farm with the right to plant the bean crop as his heir or heirs, administrator, executor, guardian, committee or conservator, shall be substituted for the original applicant or the insured upon filing with the office of the county association, or other office specified by the Corporation, within 15 days (unless such period is extended by the Corporation) after the date of such death, judicial declaration, or before the date of the beginning of planting of the bean crop, whichever is earlier, a statement in writing in the form and manner prescribed by the Corporation, requesting such substitution and agreeing to assume the obligations of the original applicant arising out of such application or the contract. If no such statement is filed, as required by this paragraph, the original application or contract shall be void.

(d) The insured shall be deemed to have disappeared within the meaning of this subpart if he fails to file with the office of the county association, or other office specified by the Corporation, written notice of his new mailing address within 180 calendar days after any communication by or on behalf of the Corporation is returned undeliverable at the last known address of the insured.

§ 421.27 *Fiduciaries.* Any indemnity payable under a contract entered into in the name of a fiduciary who is no longer acting in such capacity at the time for the payment of indemnity, will be made to the succeeding fiduciary upon appropriate application and proof satisfactory to the Corporation of his incumbency. If there is no succeeding fiduciary, payment of the indemnity shall be made to the persons beneficially entitled under this subpart to the insured interest in the bean crop to the extent of their respective interests, upon proper application and proof of the facts: *Provided, however,* That the settlement may be made with any one or more of the persons so entitled, and payment may be made to such person or persons in behalf of all the persons so entitled, whether or not the person to whom payment is made has been authorized by the other interested persons to receive such payment.

§ 421.28 *Determination of person to whom indemnity shall be paid.* In any case where the insured has transferred his interest in all or a portion of the bean crop on any insurance unit, or has ceased to act as a fiduciary, or has died, has been judicially declared incompetent or has disappeared, payment in accordance with the provisions of this subpart will be made only after the facts have been established to the satisfaction of the Corporation. The determination of the Corporation as to the existence of nonexistence of a circumstance in the event of which payment may be made and of the person(s) to whom such payment will be made shall be final and conclusive. Payment of any indemnity under this section shall constitute a complete discharge of the Corporation's obligation with respect to the loss for which such indemnity is paid and settled and shall be a bar to recovery by any other person.

REFUNDS OF EXCESS NOTE PAYMENTS

§ 421.29 *Refunds of excess note payments.* The Corporation shall not be required to make a refund of any excess payment made on account of a note until the premium has been determined for all insurance units covered by the contract.

There shall be no refund of an amount less than $1.00 unless written request for such refund is received by the Corporation within one year after the expiration of the contract.

§ 421.30 *Assignment or transfer of claims for refunds not permitted.* No claim for a refund, or any part thereof, or any interest therein, shall be assignable or transferable, notwithstanding any assignment of the contract or any transfer of interest in the bean crop covered by the contract. Refund of any excess note payment will be made only to the person who made such payment, except as provided in § 421.31.

§ 421.31 *Refund in case of death, incompetence, or disappearance.* In any case where a person who is entitled to a refund of a payment has died, has been judicially declared incompetent, or has disappeared, the provisions of § 421.26 with reference to the payment of indemnities in any such case shall be applicable with respect to the making of any such refund.

ESTABLISHMENT OF COVERAGE AND PREMIUM RATES

§ 421.32 *Establishment of coverages per acre.* The Corporation shall establish coverages in dollars per acre, by areas, for beans. The average of such coverages shall not exceed the average investment per acre in the bean crop in the area, as determined by the Corporation, taking into consideration recognized farming practices. Coverages so established shall be shown on the County Acturial Table and be on file in the office of the county association or other office specified by the Corporation. The coverage per acre for any specific acreage shall be the coverage per acre approved by the Corporation for the area in which the acreage is located.

§ 421.33 *Establishment of premium rates.* The Corporation shall establish premium rates in dollars per acre, by areas, for land for which coverage per acre are established and such rates shall be those deemed adequate to cover claims for 1948 crop losses under this subpart and to provide a reasonable reserve against unforeseen losses. Premium rates so established shall be shown on the County Acturial Table and be on file in the office of the county association or other office specified by the Corporation.

GENERAL

§ 421.34 *Records and access to farm.* For the purpose of enabling the Corporation to determine the loss, if any, that may have occurred under the contract, the insured shall keep, or cause to be kept, for one year after the time of loss, records of the harvesting, storage, shipment, sale, or other disposition, of the bean crop produced on each insurance unit covered by the contract and on any uninsured acreage in the county in which he has an interest. Such records shall be made available for examination by the Corporation, and as often as may be reasonably required, any person or persons designated by the Corporation shall have access to the farm(s).

§ 421.35 *Applicant's warranties; voidance for fraud.* In applying for insurance the applicant warrants that the information, data, and representations submitted by him in connection with the contract are true and correct, and are made by him, or by his authority, and shall be taken as his act. The contract may be voided and the premium forfeited to the Corporation without the Corporation's waiving any right or remedy, including its right to collect the amount of the note executed by the insured, whether before or after maturity, if at any time the insured has concealed any material fact or made any false or fraudulent statements relating to the contract, the subject thereof, or his interest in the bean crop covered thereby, or if the insured shall neglect to use all reasonable means to produce, care for or save the bean crop covered thereby, whether before or after damage has occurred, or if the insured fails to give any notice, or otherwise fails to comply with the terms of the contract, including the note, at the time and in the manner prescribed.

§ 421.36 *Modification of contract.* No notice to any representative of the Corporation or the knowledge possessed by any such representative or by any other person shall be held to effect a waiver of or change in any part of the contract or to estop the Corporation from asserting any right or power under such contract; nor shall the terms of such contract be waived or changed except as authorized in writing by a duly authorized officer or representative of the Corporation; nor

shall any provision or condition of the contract or any forfeiture be held to be waived by any delay or omission by the Corporation in exercising its rights and powers thereunder or by any requirement, act, or proceeding, on the part of the Corporation or of its representatives, relating to appraisal or to any examination herein provided for.

§ 421.37 *Rounding of fractional units.* Premiums and the value of production shall be rounded to the nearest cent. Fractions of acres shall be rounded to the nearest tenth of an acre. Production shall be rounded to the nearest pound. Computations shall be carried through the digit that is to be rounded. If the digit to be rounded is 1, 2, 3, or 4, the rounding shall be downward. If the digit to be rounded is 5, 6, 7, 8, or 9, the rounding shall be upward.

§ 421.38 *Closing date.* The closing date for submission of applications shall be the earlier of (a) the date of the beginning of planting of the bean crop on any insurance unit to be covered by the contract, or (b) the applicable calendar date below:

April 30, 1948, for Jerome County, Idaho;
May 15, 1948, for Elbert County, Colo.; and
May 31, 1948, for Huron County, Mich., and Wayne County, N. Y.

§ 421.39 *Maturity date for premiums.* The maturity date for the payment of premiums shall be August 31, 1948.

§ 421.40 *Meaning of terms.* For the purpose of the Bean Crop Insurance Program, the term:

(a) "Beans" means Pinto Beans in Elbert County, Colorado; Great Northern Beans, Pinto Beans and Small Red Beans in Jerome County, Idaho; Pea Beans and Medium White Beans in Huron County, Michigan; and Red Kidney Beans in Wayne County, New York.

(b) "Cleaned beans," as applied to the general appearance of beans, means that the beans are practically free from such small, shriveled, undeveloped, split and broken beans and foreign material as can be removed readily in the ordinary processes of milling or screening.

(c) "Contract" means the accepted application for insurance and the regulations in this subpart and any amendments thereto.

(d) "Corporation" means the Federal Crop Insurance Corporation.

(e) "County Actuarial Table" means the form and related material approved by the Corporation for listing the coverages per acre and the premium rates per acre applicable in the county.

(f) "County Association" means the County Agricultural Conservation Association in the county.

(g) "Crop year" means the period beginning with the day following the closing date and within which the bean crop is planted and normally harvested, and shall be designated by reference to the calendar year in which the crop is normally harvested.

(h) "Cwt." means 100 pounds.

(i) "Insurance unit" means (1) all the insurable acreage of beans in the county in which the insured has 100 per centum interest in the crop at the time of planting, or (2) all the insurable acreage of beans in the county owned by one person which is operated by the insured as a share tenant, or (3) all the insurable acreage of beans in the county which is owned by the insured and is rented to one share tenant. Land rented for cash or for a fixed commodity payment shall be considered to be owned by the lessee.

(j) "Net weight" means the weight of cleaned beans minus the weight equivalent of the moisture content in excess of 18 percent determined in accordance with the United States Standards for Beans.

(k) "Pick" means the "defects" consisting of splits, damaged beans, contrasting classes and foreign material included in net weight beans, and where used shall be expressed in terms of per centum of net weight beans.

(l) "Person" means an individual, partnership, association, corporation, estate or trust, or other business enterprise or other legal entity and, wherever applicable, a state, a political subdivision of a state, or any agency thereof.

(m) "State director" means the representative of the Corporation responsible for the executive direction of the Federal Crop Insurance Program in the state.

NOTE: The record keeping requirements of these regulations have been approved by, and subsequent reporting requirements will be subject to the approval of, the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Adopted by the Board of Directors on February 25, 1948.

[SEAL] E. D. BERKAW,
Secretary,
Federal Crop Insurance Corporation.

Approved: March 2, 1948.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 48-2002; Filed, Mar. 5, 1948; 8:59 a. m.]

Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders)

[Lemon Reg. 264]

PART 953—LEMONS GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 953.371 *Lemon Regulation 264*—(a) *Findings.* (1) Pursuant to the marketing agreement and Order No. 53 (7 CFR, Cum. Supp. 953.1 et seq.), regulating the handling of lemons grown in the State of California or in the State of Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendation and information submitted by the Lemon Administrative Committee, established under the said marketing agreement and order, and upon other available information, it is hereby found that the limitation of the quantity of such lemons which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the preliminary notice and public rule making procedure requirements and the 30-day effective date requirement of the Administrative Procedure Act (Pub. Law 404, 79th Cong., 2d Sess.; 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance, and a reasonable time is permitted, under the circumstances, for preparation for such effective date.

(b) *Order.* (1) The quantity of lemons grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., P. s. t., March 7, 1948, and ending at 12:01 a. m., P. s. t., March 14, 1948, is hereby fixed at 240 carloads, or an equivalent quantity.

(2) The prorate base of each handler who has made application therefor, as provided in the said marketing agreement and order, is hereby fixed in accordance with the prorate base schedule which is attached to Lemon Regulation 263 (13 F. R. 1084) and made a part hereof by this reference.

(3) As used in this section, "handled," "handler," "carloads," and "prorate base" shall have the same meaning as is given to each such term in the said marketing agreement and order. (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 4th day of March 1948.

S. R. SMITH,
Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 48-2098; Filed, Mar. 5, 1948; 9:38 a. m.]

[Orange Reg. 220]

PART 966—ORANGES GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 966.366 *Orange Regulation 220*—(a) *Findings.* (1) Pursuant to the provisions of Order No. 66 (7 CFR, Cum. Supp., 966.1 et seq.) regulating the handling of oranges grown in the State of California or in the State of Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendation and information submitted by the Orange Administrative Committee, established under the said order, and upon other available information, it is hereby found that the limitation of the quantity of such oranges which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that compliance with the preliminary notice and public rule making procedure requirements and the 30-day effective date requirement of the Administrative Pro-

cedure Act (Pub. Law 404, 79th Cong., 2d Sess., 60 Stat. 237) is impracticable and contrary to the public interest in that the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the Agricultural Marketing Agreement Act of 1937, as amended, is insufficient for such compliance, and a reasonable time is permitted, under the circumstances, for preparation for such effective date.

(b) *Order.* (1) The quantity of oranges grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., P. s. t., March 7, 1948, and ending at 12:01 a. m., P. s. t., March 14, 1948 is hereby fixed as follows:

(i) *Valencia oranges.* (*a*) Prorate Districts Nos. 1 and 2, no movement; (*b*) Prorate District No. 3, unlimited movement.

(ii) *Oranges other than Valencia oranges.* (*a*) Prorate District No. 1, unlimited movement; (*b*) Prorate District No. 2, 1,100 carloads; and (*c*) Prorate District No. 3, unlimited movement.

(2) The prorate base of each handler who has made application therefor, as provided in the said order, is hereby fixed in accordance with the prorate base schedule which is attached hereto and made a part hereof by this reference.

(3) As used in this section "handled," "handler," "carloads," and "prorate base" shall have the same meaning as is given to each such term in the said order; and "Prorate District No. 1," "Prorate District No. 2," and "Prorate District No. 3" shall have the same meaning as is given to each such term in § 966.107 of the rules and regulations (11 F. R. 10258) issued pursuant to said order. (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.)

Done at Washington, D. C., this 4th day of March 1948.

S. R. SMITH,
Director, Fruit and Vegetable Branch, Production and Marketing Administration.

PRORATE BASE SCHEDULE

[12:01 a. m., March 7, 1948, to 12:01 a. m., March 14, 1948]

ALL ORANGES OTHER THAN VALENCIA ORANGES

Prorate District No. 2

Handler	Prorate base (percent)
Total	100.0000
A. F. G. Alta Loma	.1438
A. F. G. Corona	.5261
A. F. G. Fullerton	.0391
A. F. G. Orange	.0000
A. F. G. Riverside	.5134
Hazeltine Packing Co	.1406
Placentia Pioneer Valencia Growers Association	.0503
Signal Fruit Association	.9490
Azusa Citrus Association	.9315
Azusa Orange Co	.1324
Damerel-Allison Co	1.0602
Glendora Mutual Orange Association	.5143
Irwindale Citrus Association	.3590
Puente Mutual Citrus Association	.0473
Valencia Heights Orchard Association	.2177
Covina Citrus Association	1.6099

PRORATE BASE SCHEDULE—Continued

ALL ORANGES OTHER THAN VALENCIA ORANGES—continued

Prorate District No. 2—Continued

Handler	Prorate base (percent)
Covina Orange Growers Association	0.4331
Duarte-Monrovia Fruit Exchange	.4524
Glendora Citrus Association	.9047
Glendora Heights Orange and Lemon Growers Association	.1440
Gold Buckle Association	3.5742
La Verne Orange Association	3.6314
Anaheim Citrus Fruit Association	.0000
Anaheim Valencia Orange Association	.0077
Eadington Fruit Co., Inc	.2915
Fullerton Mutual Orange Association	.0000
La Habra Citrus Association	.0000
Orange County Valencia Association	.0167
Orangethorpe Citrus Association	.0000
Placentia Coop. Orange Association	.0000
Yorba Linda Citrus Association, The	.0000
Alta Loma Heights Citrus Association	.4003
Citrus Fruit Growers	.9829
Cucamonga Citrus Association	.5793
Etiwanda Citrus Fruit Association	.2116
Mountain View Fruit Association	.1779
Old Baldy Citrus Association	.4833
Rialto Heights Orange Growers	.4704
Upland Citrus Association	2.4912
Upland Heights Orange Association	1.0924
Consolidated Orange Growers	.0000
Frances Citrus Association	.0037
Garden Grove Citrus Association	.0000
Goldenwest Citrus Association, The	.0000
Olive Heights Citrus Association	.0416
Santa Ana-Tustin Mut. Cit. Association	.0216
Santiago Orange Growers Association	.0000
Tustin Hills Citrus Association	.0000
Villa Park Orchards Association, The	.0177
Bradford Brothers, Inc	.0000
Placentia Mutual Orange Association	.0000
Placentia Orange Growers Association	.0000
Call Ranch	.7876
Corona Citrus Association	1.0256
Jameson Co	.3738
Orange Heights Orange Association	1.0569
Crafton Orange Growers Association	1.4826
E. Highlands Citrus Association	.4811
Fontana Citrus Association	.5080
Highland Fruit Growers Association	.6525
Redlands Heights Groves	1.1299
Redlands Orangedale Association	1.2599
Break & Son, Allen	.2978
Bryn Mawr Fruit Growers Association	1.1725
Krinard Packing Co	1.7545
Mission Citrus Association	.8008
Redlands Coop. Fruit Association	1.7771
Redlands Orange Growers Association	1.2242
Redlands Select Groves	.5323
Rialto Citrus Association	.7092
Rialto Orange Co	.2804
Southern Citrus Association	.9747
United Citrus Association	.7885
Zilen Citrus Co	.8061
Andrews Bros. of Calif	.3838
Arlington Heights Citrus Co	.6104
Brown Estate, L. V. W	1.8022
Gavilan Citrus Association	1.7286
Hemet Mutual Groves	.3218
Highgrove Fruit Co	.7662
McDermont Fruit Co	2.0624
Monte Vista Citrus Association	1.2111
National Orange Co	.8234
Riverside Heights Orange Grocers Association	1.1687

PRORATE BASE SCHEDULE—Continued

ALL ORANGES OTHER THAN VALENCIA ORANGES—continued

Prorate District No. 2—Continued

Handler	Prorate base (percent)
Sierra Vista Packing Association	0.7486
Victoria Avenue Citrus Association	2.8373
Claremont Citrus Association	1.1187
College Heights Orange & Lemon Association	1.3046
El Camino Citrus Association	.5187
Indian Hill Citrus Association	1.3038
Pomona Fruit Growers Exchange	1.9493
Walnut Fruit Growers Association	.4723
West Ontario Citrus Association	1.5260
El Cajon Valley Citrus Association	.2855
Escondido Orange Association	.5057
San Dimas Orange Growers' Association	1.0647
Ball & Tweedy Association	.0000
Canoga Citrus Association	.0651
N. Whittier Heights Citrus Association	.1165
San Fernando Fruit Growers Association	.3809
San Fernando Heights Orange Association	.3370
Sierra-Madre-Lamanda Citrus Association	.2229
Camarillo Citrus Association	.0090
Fillmore Citrus Association	1.1703
Ojai Orange Association	1.0136
Piru Citrus Association	1.2990
Santa Paula Orange Association	.1173
Tapo Citrus Association	.0065
E. Whittier Citrus Association	.0149
Whittier Citrus Association	.2584
Whittier Select Citrus Association	.0000
Anaheim Coop. Orange Association	.0000
Bryn Mawr Mutual Orange Association	.6430
Chula Vista Mutual Lemon Association	.1634
Escondido Coop. Citrus Association	.1041
Euclid Avenue Orange Association	2.2540
Foothill Citrus Union, Inc	.1107
Fullerton Coop. Orange Association	.0000
Garden Grove Orange Coop., Inc	.0232
Glendora Coop. Citrus Association	.0697
Golden Orange Groves, Inc	.2862
Highland Mutual Groves	.3010
Index Mutual Association	.0045
La Verne Coop. Citrus Association	2.8022
Mentone Heights Association	.8490
Olive Hillside Groves	.0000
Orange Coop. Citrus Association	.0000
Redlands Foothill Groves	2.6126
Redlands Mutual Orange Association	1.0235
Riverside Citrus Association	.3797
Ventura County Orange & Lemon Association	.1991
Whittier Mutual Orange & Lemon Association	.0000
Babijuice Corp. of Calif	.2915
Banks Fruit Co	.1941
California Fruit Distributors	.0461
Cherokee Citrus Co., Inc	.9222
Chess Company, Meyer W	.2823
Evans Brothers Packing Co	.7407
Gold Banner Association	2.0564
Granada Packing House	.3185
Hill, Fred A	.7363
Inland Fruit Dealers	.3366
Orange Belt Fruit Distributors	1.8595
Panno Fruit Co., Carlo	.1803
Paramount Citrus Association, Inc	.1153
Placentia Orchards Co	.0000
San Antonio Orchard Co	1.4019
Snyder & Sons Co., W. A	.3424
Torn Ranch	.0606
Verity & Sons Co., R. H	.0363
Wall, E. T	1.9741
Western Fruit Growers, Inc., Redlands	3.1250
Yorba Orange Growers Association	.0389

[F. R. Doc. 48-2099; Filed, Mar. 5, 1948; 9:38 a. m.]

TITLE 10—ARMY

Chapter V—National Reservations and Military Cemeteries

PART 501—LIST OF EXECUTIVE ORDERS, PROCLAMATIONS AND PUBLIC LAND ORDERS AFFECTING MILITARY RESERVATIONS

NEW MEXICO

CROSS REFERENCE: For partial revocation of Executive Order 9109 as amended by Executive Order 9526, and for revocation of Public Land Order 55 (tabulated in § 501.1), see Public Land Orders 449 and 450 under the Appendix to Chapter I of Title 43, *infra*.

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Civil Air Regs., Amdt. 60-3]

PART 60—AIR TRAFFIC RULES

IFR MINIMUM SAFE ALTITUDES

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 27th day of February 1948.

Section 60.107 (d) presently provides that where the Administrator has not established minimum altitudes for routes or portions of routes over which an operation is conducted such operations shall be conducted at not less than 1,000 feet above the highest obstacle within a horizontal radius of 5 miles from the aircraft.

The purpose of this amendment is to modify § 60,107 (d) by prescribing that such operations shall be conducted at not less than 1,000 feet above the highest obstacle within a horizontal distance of 5 miles from the center of the course intended to be flown. This amendment also specifies the standards which the Administrator has been and shall be guided by in determining minimum altitudes for particular routes.

This change in wording clarifies the existing rule and at the same time renders it consistent with the minimum flight altitudes presently contained in the Flight Information Manual.

Since this amendment is minor in nature and imposes no additional burden on any person, notice and public procedure hereon are unnecessary, and the amendment may be made effective without prior notice.

In consideration of the foregoing the Civil Aeronautics Board hereby amends Part 60 of the Civil Air Regulations (14 CFR, Part 60, as amended) effective March 28, 1948:

By amending § 60.107 (d) to read as follows:

§60.107 *Minimum safe altitudes.* * * *

(d) *IFR operations.* The minimum IFR altitude established by the Administrator for that portion of the route over which the operation is conducted. Such altitude shall be that which the safe conduct of flight permits or requires considering the character of the terrain being traversed, the meteorological services and navigational facilities available, and other flight conditions. Where the Administrator has not established such a minimum, operations shall be conducted at not less than 1,000 feet above the highest obstacle within a horizontal distance of 5 miles from the center of the course intended to be flown.

NOTE: When minimum altitudes are established by the Administrator for particular routes, such altitudes will be published in the CAA Flight Information Manual, for sale by the Superintendent of Documents, U. S. Government Printing Office, Washington 25, D. C.

(Secs. 205 (a), 601, 52 Stat. 984, 1007; 49 U. S. C. 425 (a), 551)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN, *Secretary.*

[F. R. Doc. 48-2059; Filed, Mar. 5, 1948; 9:00 a. m.]

Chapter II—Administrator of Civil Aeronautics, Department of Commerce

[Amdt. 3]

PART 600—DESIGNATION OF CIVIL AIRWAYS

MISCELLANEOUS AMENDMENTS

It appearing that: (1) The increased volume of air traffic at certain points necessitates, in the interest of safety in air commerce, the immediate establishment of control areas at such points; (2) The immediate realignment of civil airways in certain areas is necessary to expedite traffic control in such areas; and (3) The establishment of the control areas referred to in (1) above, and the realignment of civil airways referred to in (2) above, have been coordinated with the civil operators involved, the Army, and the Navy, through the Air Coordinating Committee, Airspace Subcommittee; and (4) The general notice of proposed rule making and public procedure provided for in section 4 (a) of the Administrative Procedure Act (60 Stat. 238, 5 U. S. C. 1003) is impracticable and unnecessary:

Now therefore, acting under authority contained in sections 205, 301, 302, 307, and 308 of the Civil Aeronautics Act of 1938, as amended (52 Stat. 973, 984, 985, 986; 54 Stat. 1231, 1233, 1234, 1235; 49 U. S. C. 401, 425, 451, 452, 457, 458), and pursuant to section 3 of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1002), I hereby amend the Code of Federal Regulations, Title 14, Chapter II, Part 600 as follows:

Designation and Redesignation of Civil Airways: Green Civil Airway No. 3; Amber Civil Airways Nos. 1, 4, 5, and 7; Red Civil Airways Nos. 1, 8, 12, 18, 22, 30, 31, 51, 64, 65, 66, and 67; Blue Civil Airways Nos. 3, 5, 28, 34, 38, 53 and 54

1. Section 600.4 (a) (3) is amended to read:

(3) *Green civil airway No. 3 (San Francisco, Calif., to New York, N. Y.).* From the intersection of the northwest course of the San Francisco, Calif., radio range and the southwest course of the Fairfield-Suisun, Calif., radio range via the San Francisco, Calif., radio range station; Oakland, Calif., radio range station; Sacramento, Calif., radio range station; the intersection of the northeast course of the Sacramento, Calif., radio range and the southwest course of the Donner Summit, Calif., radio range; Donner Summit, Calif., radio range station; Reno, Nev., radio range station; Humboldt, Nev., radio range station; Battle Mountain, Nev., radio range station; Elko, Nev., radio range station; the intersection of the northeast course of the Elko, Nev., radio range and the west course of the Lucin, Utah, radio range; Lucin, Utah, radio range station; Ogden, Utah, radio range station; Fort Bridger, Wyo., radio range station; Rock Springs, Wyo., radio range station; Sinclair, Wyo., radio range station; the intersection of the east course of the Sinclair, Wyo., radio range and the northwest course of the Laramie, Wyo., radio range; the interesection of the northwest course of the Laramie, Wyo., radio range and the northwest course of the Cheyenne, Wyo., radio range; Cheyenne, Wyo., radio range station; Sidney, Nebr., radio marker station; North Platte, Nebr., radio range station; Grand Island, Nebr., radio range station; Omaha, Nebr., radio range station; Des Moines, Iowa, radio range station; Moline, Ill., radio range station; the intersection of the southeast course of the Rockford, Ill., radio range and the west course of the Chicago, Ill., radio range; the intersection of the southeast course of the Rockford, Ill., radio range and the west course of the Goshen, Ind., radio range; Goshen, Ind., radio range station; Toledo, Ohio, radio range station; Cleveland, Ohio, radio range station; Youngstown, Ohio, radio range station; the intersection of the east course of the Youngstown, Ohio, radio range and the west course of the Philipsburg, Pa., radio range; Philipsburg, Pa., radio range station; Allentown, Pa., radio range station; the intersection of the east course of the Allentown, Pa., radio range and the southwest course of the New York, N. Y. (LaGuardia Field), radio range to the New York, N. Y. (LaGuardia Field), radio range station.

2. Section 600.4 (b) (1) is amended to read:

(1) *Amber civil airway No. 1 (United States-Mexican Border to Nome, Alaska).* From the intersection of the southeast course of the San Diego, Calif., radio range and the United States-Mexican Border via the San Diego, Calif., radio range station; the intersection of the northwest course of the San Diego, Calif., radio range and the southeast course of the Long Beach, Calif., radio range and the Long Beach, Calif., radio range station to the Los Angeles, Calif., radio range station. From the intersection of the north course of the Los Angeles, Calif., radio range and the southwest course of the Palmdale, Calif., radio range via the Bakersfield, Calif., radio range station; Fresno, Calif., radio range station and the intersection of the northwest course of the Fresno, Calif., radio range and the southeast course of the Oakland, Calif., radio range to the Oakland, Calif., radio range station. From the intersection of the northeast course of the Oakland, Calif., radio range and the south course of the Williams, Calif.,

radio range via the Williams, Calif., radio range station; Red Bluff, Calif., radio range station; Fort Jones, Calif., radio range station; Medford, Oreg., radio range station; Eugene, Oreg., radio range station; Portland, Oreg., radio range station; Toledo, Wash., radio range station; Seattle, Wash., radio range station; Everett, Wash., radio range station; the intersection of the north course of the Everett, Wash., radio range and the southeast course of the Bellingham, Wash., radio range and the Bellingham, Wash., radio range station to the intersection of the northwest course of the Bellingham, Wash., radio range and the United States-Canadian Border. From the intersection of the northwest course of the Massett, British Columbia, radio range and the U. S.-Canadian Border via the intersection of the northwest course of the Massett, British Columbia, radio range and the southeast course of the Sitka (Biorka Island), Alaska, radio range; Sitka (Biorka Island), Alaska, radio range station; Yakutat, Alaska, radio range station; the intersection of the northwest course of the Yakutat, Alaska, radio range and the southeast course of the Cordova (Hinchinbrook Island), Alaska, radio range; Cordova (Hinchinbrook Island), Alaska, radio range station; the intersection of the northwest course of the Cordova (Hinchinbrook Island), Alaska, radio range and the southeast course of the Anchorage, Alaska, radio range; Anchorage, Alaska, radio range station; Skwentna, Alaska, radio range station; the intersection of the northwest course of the Skwentna, Alaska, radio range and the southeast course of the Farewell, Alaska, radio range; Farewell, Alaska, radio range station; McGrath, Alaska, radio range station and the Unalakleet, Alaska, radio range station to the Nome, Alaska, radio range station.

3. Section 600.4(b) (4) is amended to read:

(4) *Amber civil airway No. 4 (Brownsville, Tex., to Minot, N. Dak.).* From the Municipal Airport, Brownsville, Tex., via the Brownsville, Tex., radio range station; the intersection of the northwest course of the Brownsville, Tex., radio range and the south course of the Alice, Tex., radio range; the Alice, Tex., radio range station; the intersection of the north course of the Alice, Tex., radio range and the south course of the Alamo radio range, San Antonio, Texas; the Alamo radio range station, San Antonio, Tex.; the intersection of the north course of the Alamo radio range, San Antonio, Tex., and the southwest course of the Austin, Tex., radio range; Austin, Tex., radio range station; Waco, Tex., radio range station; the intersection of the northwest course of the Waco, Tex., radio range and the south course of the Fort Worth, Tex., radio range; Fort Worth, Tex., radio range station; the intersection of the north course of the Fort Worth, Tex., radio range and the south course of the Oklahoma City, Okla., radio range; Oklahoma City, Okla., radio range station; the intersection of the east course of the Oklahoma City, Okla., radio range and the southwest course of the Tulsa, Okla., radio range; Tulsa, Okla., radio range station; the intersection of the northeast course of the Tulsa, Okla., radio range and the south course of the Chanute, Kans., radio range; Chanute, Kans., radio range station; the intersection of the northeast course of the Chanute, Kans., radio range and the southwest course of the Kansas City, Mo., radio range; Kansas City, Mo., radio range station; St. Joseph, Mo., radio range station; Omaha, Nebr., radio range station; Sioux City, Iowa, radio range station; Sioux Falls, S. Dak., radio range station; Huron, S. Dak., radio range station; Aberdeen, S. Dak., radio range station; Bismarck, N. Dak., radio range station; the intersection of the north course of the Bismarck, N. Dak., radio range and the southeast course of the Minot, N. Dak., radio range to the Minot, N. Dak., radio range station.

4. Section 600.4 (b) (5) is amended to read:

(5) *Amber civil airway No. 5 (New Orleans, La., to Milwaukee, Wis.).* From the New Orleans, La., radio range station via the Jackson, Miss., radio range station; Greenwood, Miss., radio range station; Memphis, Tenn., radio range station; Advance, Mo., radio range station; the intersection of the northwest course of the Advance, Mo., radio range and the south course of the St. Louis, Mo., radio range; St. Louis, Mo., radio range station; the intersection of the north course of the St. Louis, Mo., radio range and the southwest course of the Springfield, Ill., radio range; Springfield, Ill., radio range station; the Joliet, Ill., radio range station; the intersection of the northeast course of the Joliet, Ill., radio range and the south course of the Milwaukee, Wis., radio range to the Milwaukee, Wis., radio range station.

5. Section 600.4 (b) (7) is amended to read:

(7) *Amber civil airway No. 7 (Key West, Fla., to Caribou, Maine).* From the Key West, Fla., radio range station via the intersection of the northeast course of the Key West, Fla., radio range and the southwest course of the Homestead, Fla., radio range; Homestead, Fla., radio range station; Miami, Fla., radio range station; the intersection of the north course of the Miami, Fla., radio range and the southeast course of the Melbourne, Fla., radio range; Melbourne, Fla., radio range station; Daytona Beach, Fla., radio range station; Jacksonville, Fla., radio range station; Savannah, Ga., radio range station; Charleston, S. C., radio range station; the intersection of the northeast course of the Charleston, S. C., radio range and the southeast course of the Florence, S. C., radio range; Florence, S. C., radio range station; the intersection of the northeast course of the Florence, S. C., radio range and the south course of the Raleigh, N. C., radio range; Raleigh, N. C., radio range station; Richmond, Va., radio range station; the intersection of the north course of the Richmond, Va., radio range and the south course of the Washington, D. C., radio range; Washington, D. C., radio range station; the intersection of the northeast course of the Washington, D. C., radio range and the southwest course of the Philadelphia, Pa., radio range; Philadelphia, Pa., radio range station; Newark, N. J., radio range station; the intersection of the northeast course of the Newark, N. J., radio range and the northeast course of the New York, N. Y. (LaGuardia) radio range; Hartford, Conn., radio range station; the intersection of the northeast course of the Hartford, Conn., radio range and the west course of the Boston, Mass., radio range; Boston, Mass., radio range station; the intersection of the northeast course of the Boston, Mass., radio range and the southwest course of the Portland, Maine, radio range; Portland, Maine, radio range station; Augusta, Maine, radio range station; the intersection of the northeast course of the Augusta, Maine, radio range and the southwest course of the Bangor, Maine, radio range; Bangor, Maine, radio range station; the intersection of the northwest course of the Bangor, Maine, radio range and the southwest course of the Millinocket, Maine, radio range; Millinocket, Maine, radio range station; Presque Isle, Maine, radio range station; to the Municipal Airport, Caribou, Maine.

6. Section 600.4 (c) (1) is amended to read:

(1) *Red civil airway No. 1 (Portland, Oreg., to Kansas City, Mo.).* From the Portland, Oreg., radio range station via the intersection of the east course of the Portland, Oreg., radio range and the northwest course of The Dalles, Oreg., radio range; The Dalles, Oreg., radio range station; Pendleton, Oreg., radio range station; Baker, Oreg., radio range station; Boise, Idaho, radio range station; the intersection of the southeast course of the Boise, Idaho, radio range and the northwest course of the Burley, Idaho, radio range; Burley, Idaho, radio range station; Malad City, Idaho, radio range station; the intersection of the southeast course of the Malad City, Idaho, radio range and the north course of the Fort Bridger, Wyo., radio range to the Fort Bridger, Wyo., radio range station. From the intersection of the northwest course of the Laramie, Wyo., radio range and the northwest course of the Cheyenne, Wyo., radio range via the Laramie, Wyo., radio range station to the intersection of the southeast course of the Laramie, Wyo., radio range and the north course of the Denver, Colo., radio range. From the Denver, Colo., VHF radio range via the intersection of the east course of the Denver, Colo., VHF radio range and the northwest course of the Thurman, Colo., VHF radio range; Thurman, Colo., VHF radio range station; Goodland, Kans., VHF radio range station; Hill City, Kans., VHF radio range station; the intersection of the east course of the Hill City, Kans., VHF radio range and the northwest course of the Waldo, Kans., VHF radio range; Waldo, Kans., VHF radio range station; Salina, Kans., VHF radio range station; Topeka, Kans., VHF radio range station to the intersection of the east course of the Topeka, Kans., VHF radio range and the northwest course of the Kansas City, Mo., radio range.

7. Section 600.4 (c) (8) is amended to read:

(8) *Red civil airway No. 8 (Altoona, Pa., to Wilkes-Barre, Pa.).* From the Brookville, Pa., non-directional radio beacon via the intersection of the southwest course of the Elmira, N. Y., radio range and the west course of the Williamsport, Pa., radio range; Williamsport, Pa., radio range station to the intersection of the east course of the Williamsport, Pa., radio range and the southwest course of the Wilkes-Barre, Pa., radio range.

8. Section 600.4 (c) (12) is amended to read:

(12) *Red civil airway No. 12 (Kansas City, Mo., to Detroit, Mich.).* From the intersection of the northeast course of the Kansas City, Mo., radio range and the west course of the Columbia, Mo., radio range via the Kirksville, Mo., radio range station; Burlington, Iowa, radio range station; Joliet, Ill., radio range station; the intersection of the east course of the Joliet, Ill., radio range and the west course of the South Bend, Ind., radio range; South Bend, Ind., radio range station to the Romulus, Mich., radio range station.

9. Section 600.4 (c) (18) is amended to read:

(18) *Red civil airway No. 18 (Indianapolis, Ind., to Washington, D. C.).* From the intersection of the east course of the Indianapolis, Ind., radio range and the northwest course of the Cincinnati, Ohio, radio range via the Cincinnati, Ohio, radio range station; the intersection of the southeast course of the Cincinnati, Ohio, radio range and the northwest course of the Huntington, W. Va., radio range; Huntington, W. Va., radio range station; Charleston, W. Va., radio marker station; Elkins, W. Va., radio range station; Front Royal, Va., radio range station to the intersection of the east course of the Front Royal, Va., radio range and the northwest course of the Washington, D. C. radio range.

10. Section 600.4 (c) (22) is amended to read:

(22) *Red civil airway No. 22 (United States-Canadian Border to Rochester, N. Y.).* From the intersection of the west course of the Buffalo, N. Y., radio range and the United States-Canadian Border via the Buffalo, N. Y., radio range station; the intersection of the northeast course of the Buffalo, N. Y., radio range and the northwest course of the Rochester, N. Y., radio range to the Rochester, N. Y., radio range station.

11. Section 600.4 (c) (30) is amended to read:

(30) *Red civil airway No. 30 (Mobile, Ala., to Jacksonville, Fla.),* From the Mobile, Ala., radio range station via the Crestview, Fla., radio range station; the intersection of the east course of the Crestview, Fla., radio range and the northwest course of the Tallahassee, Fla., radio range; the Tallahassee, Fla., radio range station to the Jacksonville, Fla., radio range station.

12. Section 600.4 (c) (31) is amended to read:

(31) *Red civil airway No. 31 (Cheyenne, Wyo., to Minneapolis, Minn.).* From the intersection of the east course of the Cheyenne, Wyo., radio range and the southwest course of the Scottsbluff, Nebr., radio range via the Scottsbluff, Nebr., radio range station; the intersection of the northeast course of the Scottsbluff, Nebr., radio range and the south course of the Rapid City, S. Dak., radio range; Rapid City, S. Dak., radio range station; Pierre, S. Dak., radio range station; the intersection of the east course of the Pierre, S. Dak., radio range and the southwest course of the Huron, S. Dak., radio range; Huron, S. Dak., radio range station; Watertown, S. Dak., radio range station; Willmar, Minn., radio range station to the intersection of the east course of the Willmar, Minn., radio range and the northwest course of the Minneapolis, Minn., radio range.

13. Section 600.4 (c) (51) is amended to read:

(51) *Red civil airway No. 51 (El Paso, Tex., to U. S.-Mexican Border).* From the El Paso, Tex., radio range station via the Sierra Blanca, Tex., VHF radio range station; Marfa, Tex., VHF radio range station; the intersection of the southeast course of the Marfa, Tex., VHF radio range and the northwest course of the Hot Springs, Tex., VHF radio range; Hot Springs, Tex., VHF radio range station to the intersection of the southeast course of the Hot Springs, Tex., VHF radio range and the U. S.-Mexican Border.

14. Section 600.4 (c) (64) is added to read:

(64) *Red civil airway No. 64 (U. S.-Canadian Border to Annette Island, Alaska).* From the intersection of the southwest course of the Annette Island, Alaska, radio range and the U. S.-Canadian Border to the Annette Island, Alaska, radio range station.

15. Section 600.4 (c) (65) is added to read:

(65) *Red civil airway No. 65 (Oceanside, Calif., to Blythe, Calif.).* From the Oceanside, Calif., non-directional radio beacon via a point at Latitude 33°07'00", Longitude 116°36'00" to a point at Latitude 33°44'30", Longitude 115°21'30".

16. Section 600.4 (c) (66) is added to read:

(66) *Red civil airway No. 66 (Santa Barbara, Calif., to Los Angeles, Calif.).* From the Santa Barbara, Calif., radio range station to the Newhall, Calif., radio range station.

17. Section 600.4 (c) (67) is added to read:

(67) *Red civil airway No. 67 (Crestview, Fla., to Dothan, Ala.).* From the Crestview, Fla., radio range station to the Dothan, Ala., radio range station.

18. Section 600.4 (d) (3) is amended to read:

(3) *Blue civil airway No. 3 (Mobile, Ala., to Lafayette, Ind.).* From the intersection of the northwest course of the Pensacola, Fla., radio range and the west course of the Crestview, Fla., radio range via the Pensacola, Fla., radio range station to the intersection of the northeast course of the Pensacola, Fla., radio range and the west course of the Crestview, Fla., radio range,, excluding that portion which lies more than two miles southeast of the northeast course of the Pensacola, Fla., radio range. From the intersection of the northwest course of the Tallahassee, Fla., radio range and the southeast course of the Dothan, Ala., radio range via the Dothan, Ala., radio range station; Gunter Field, Montgomery, Ala.; the intersection of the west course of the Maxwell Field, Ala., radio range and the south course of the Birmingham, Ala., radio range to the Birmingham, Ala., radio range station. From the Muscle Shoals, Ala., radio range station to the intersection of the northeast course of the Muscle Shoals, Ala., radio range and the southwest course of the Nashville, Tenn., radio range. From the Nashville, Tenn., radio range station via the intersection of the northwest course of the Nashville, Tenn., radio range and the south course of the Evansville, Ind., radio range; the Evansville, Ind., radio range station; Terre Haute, Ind., radio range station; the intersection of the north course of the Terre Haute, Ind., radio range and the southwest course of the Lafayette, Ind., radio range to the Lafayette, Ind., radio range station.

19. Section 600.4 (d) (5) is amended to read:

(5) *Blue civil airway No. 5 (Galveston, Tex., to Wichita, Kans.).* From the Municipal Airport, Galveston, Tex., via the Galveston, Tex., radio range station; Houston, Tex., radio range station; the intersection of the northwest course of the Houston, Tex., radio range and the southeast course of the Bryan, Tex., radio range; Bryan, Tex., radio range station; Waco, Tex., radio range station; the intersection of the northeast course of the Waco, Tex., radio range and the south course of the Dallas, Tex., radio range; the Dallas, Tex., radio range station to the intersection of the northwest course of the Dallas, Tex., radio range and the north course of the Fort Worth, Tex., radio range. From the Oklahoma City, Okla., radio range station, via the intersection of the north course of the Oklahoma City, Okla., radio range and the southeast course of the Wichita, Kans., radio range to the Wichita, Kans., radio range station.

20. Section 600.4 (d) (28) is amended to read:

(28) *Blue civil airway No. 28 (Charleston, S. C., to Spartanburg, S. C.).* From the Charleston, S. C., radio range station via the intersection of the northwest course of the Charleston, S. C., radio range and the southeast course of the Columbia, S. C., radio range; Columbia, S. C., radio range station; the intersection of the west course of the Columbia, S. C., radio range and the southeast course of the Spartanburg, S. C., radio range to the Spartanburg, S. C., radio range station.

21. Section 600.4 (d) (34) is amended to read:

(34) *Blue civil airway No. 34 (Little Rock, Ark., to Tulsa, Okla.).* From a point located at 35°27′ north latitude and 94°00′ west longitude via the Fort Smith, Ark., Airport; Muskogee (Davis), Okla., Airport located at 35°39′30″ north latitude and 95°21′45″ west longitude to the Tulsa, Okla., radio range station.

22. Section 600.4 (d) (38) is amended to read:

(38) *Blue civil airway No. 38 (Annette Island, Alaska to United States-Canadian Border).* From the intersection of the south course of the Annette Island, Alaska, radio range and the U. S.-Canadian Border via the Annette Island, Alaska, radio range station; the Petersburg, Alaska, radio range station; the intersection of the northwest course of the Petersburg, Alaska, radio range and the southeast course of the Gustavus, Alaska, radio range; Gustavus, Alaska, radio range station; Haines, Alaska, radio range station to the intersection of the northeast course of the Haines, Alaska, radio range and the United States-Canadian Border.

23. Section 600.4 (d) (53) is added to read:

(53) *Blue civil airway No. 53 (Providence, R. I., to Hartford, Conn.).* From the intersection of the southwest course of the Boston, Mass., radio range and the southeast course of the Hartford, Conn., radio range to the Hartford, Conn., radio range station.

24. Section 600.4 (d) (54) is added to read:

(54) *Blue civil airway No. 54 (Salinas, Calif., to Oakland, Calif.).* From the Salinas, Calif., VHF radio range station to the Evergreen, Calif., non-directional radio beacon.

(52 Stat. 973, 984, 985, 986, 54 Stat. 1231, 1233, 1234, 1235; 60 Stat. 238; 49 U. S. C. 401, 425, 451, 452, 457, 458, 5 U. S. C. Sup. 1002)

This amendment shall become effective 0001 e. s. t. March 15, 1948.

T. P. WRIGHT,
Administrator of Civil Aeronautics.

[F. R. Doc. 48-1999; Filed, Mar. 5, 1948; 8:59 a. m.]

[Amdt. 5]

PART 601—DESIGNATION OF CONTROL AREAS, CONTROL ZONES, AND REPORTING POINTS

MISCELLANEOUS AMENDMENTS

It appearing that: (1) The increased volume of air traffic at certain points necessitates, in the interest of safety in air commerce, the immediate establishment of control areas, including control zones and reporting points at such locations; (2) The immediate realignment of civil airways in certain areas is necessary to expedite traffic control in such areas; and (3) The establishment of the control areas referred to in (1) above, and the realignment of civil airways referred to in (2) above, have been coordinated with the civil operators involved, the Army and the Navy through the Air Coordinating Committee, Airspace Subcommittee; and (4) The general notice of proposed rule making and public procedure provided for in section 4 (a) of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1003) is impracticable and unnecessary:

Now therefore, acting under authority contained in sections 205, 301, 302, 307 and 308 of the Civil Aeronautics Act of 1938, as amended (52 Stat. 973, 984, 985, 986; 54 Stat. 1231, 1233, 1234, 1235; 49 U. S. C. 401, 425, 451, 452, 457, 458), Special Regulation No. 197 of the Civil Aeronautics Board (6 F. R. 6348), and pursuant to section 3 of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1002) I hereby amend the Code of Federal Regulations, Title 14, Chapter II, Part 601 as follows:

Designation and Redesignation of Control Areas: Amber Civil Airway No. 1; Red Civil Airways Nos. 1, 51, 53, 64, 65, 66, 67; Blue Civil Airways Nos. 3, 25, 27, 28, 34, 38, 43, 46, 53, 54. Designation and Redesignation of Control Zones. Designation and Redesignation of Reporting Points: Green Civil Airways Nos. 2, 3, 5; Amber Civil Airway No. 1; Red Civil Airways No. 10, 11, 13, 20, 51, 53, 59, 61, 64, 65, 66, 67; Blue Civil Airways Nos. 3, 5, 23, 28, 31, 47, 53, 54

1. Section 601.4 (b) (1) is amended to read:

(1) *Amber civil airway No. 1 control areas (United States-Mexican Border to Nome, Alaska).* Those portions of Amber civil airway No. 1 within the limits of the continental United States and from a line extended at right angles across such airway through a point 50 miles southeast of the Anchorage, Alaska, radio range station to a line extended at right angles across such airway through a point 25 miles northwest of the Skwentna, Alaska, radio range station.

2. Section 601.4 (c) (1) is amended to read:

(1) *Red civil airway No. 1 control areas (Portland, Oreg., to Kansas City, Mo.).* All of Red civil airway No. 1.

3. Section 601.4 (c) (51) is amended to read:

(51) *Red civil airway No. 51 control areas (El Paso, Tex., to United States-Mexican Border).* All of Red civil airway No. 51.

4. Section 601.4 (c) (53) is added to read:

(53) *Red civil airway No. 53 control areas (Joplin, Mo., to Springfield, Mo.).* No control areas designation.

5. Section 601.4 (c) (64) is added to read:

(64) *Red civil airway No. 64 control areas (United States-Canadian Border to Annette Island, Alaska).* From the United States-Canadian Border to the Annette Island, Alaska, radio range station.

6. Section 601.4 (c) (65) is added to read:

(65) *Red civil airway No. 65 control areas (Oceanside, Calif., to Blythe, Calif.).* All of Red civil airway No. 65.

7. Section 601.4 (c) (66) is added to read:

(66) *Red civil airway No. 66 control areas (Santa Barbara, Calif., to Los Angeles, Calif.).* All of Red civil airway No. 66.

8. Section 601.4 (c) (67) is added to read:

(67) *Red civil airway No. 67 control areas (Crestview, Fla., to Dothan, Ala.).* All of Red civil airway No. 67.

9. Section 601.4 (d) (3) is amended to read:

(3) *Blue civil airway No. 3 control areas (Mobile, Ala., to Lafayette, Ind.).* All of Blue civil airway No. 3.

10. Section 601.4 (d) (25) is amended to read:

(25) *Blue civil airway No. 25 control areas (Cordova, Alaska, to Big Delta, Alaska).* From a line extended at right angles across such airway through a point 50 miles south of the Big Delta, Alaska, radio range station to the Big Delta, Alaska, radio range station.

11. Section 601.4 (d) (27) is added to read:

(27) *Blue civil airway No. 27 control areas (Kodiak, Alaska, to Kotzebue, Alaska).* No control areas designation.

12. Section 601.4 (d) (28) is amended to read:

(28) *Blue civil airway No. 28 control areas (Charleston, S. C., to Spartanburg, S. C.).* All of Blue civil airway No. 28.

13. Section 601.4 (d) (38) is amended to read:

(38) *Blue civil airway No. 38 control areas (Annette Island, Alaska, to United States-Canadian Border).* From the intersection of the south course of the Annette Island, Alaska, radio range and the United States-Canadian border to a line extended across such airway through a point 50 miles north of the Annette Island, Alaska, radio range station. From a line extended at right angles across such airway through a point 50 miles southeast of the Gustavus, Alaska, radio range station to a line extended across such airway through a point 50 miles north of the Gustavus, Alaska, radio range station.

14. Section 601.4 (d) (43) is added to read:

(43) *Blue civil airway No. 43 control areas (Birmingham, Ala., to Nashville, Tenn.)* No control area designation.

15. Section 601.4 (d) (46) is added to read:

(46) *Blue civil airway No. 46 control areas (Los Angeles, Calif., to Oakland, Calif.)* No control area designation.

16. Section 601.4 (d) (53) is added to read:

(53) *Blue civil airway No. 53 control areas (Providence, R. I., to Hartford, Conn.)* All of Blue civil airway No. 53.

17. Section 601.4 (d) (54) is added to read:

(54) *Blue civil airway No. 54 control areas (Salinas, Calif., to Oakland, Calif.)* All of Blue civil airway No. 54.

18. Section 601.4 (e) (44) *Control area extension (Lafayette, Ind.)* is revoked.

19. Section 601.4 (e) (50) *Control area extension (Hartford, Conn.)* is revoked.

20. Section 601.4 (e) (68) *Control area extension (New Orleans, La.)* is revoked.

21. Section 601.4 (e) (42) is amended to read:

(42) *Control area extension (Cincinnati, Ohio).* From the intersection of the southwest course of the Dayton, Ohio, radio range and the southwest course of the Cincinnati, Ohio, radio range within five miles either side of the southwest and northeast courses of the Cincinnati radio range extending northeast to the 84th meridian of west longitude.

22. Section 601.4 (e) (44) is added to read:

(44) *Control area extension (Ypsilanti, Mich.).* From the Willow Run Airport, Ypsilanti, Mich., ILS localizer extending 5 miles either side of the localizer course to a point 20 miles southwest of the ILS outer marker.

23. Section 601.4 (e) (50) is added to read:

(50) *Control area extension (Bakersfield, Calif.).* From the Bakersfield, Calif., radio range station extending within five miles either side of the southwest course of the Bakersfield, Calif., radio range to a point 25 miles southwest of the radio range station.

24. Section 601.4 (e) (68) is added to read:

(68) *Control area extension (Riverside, Calif.).* From the Riverside, Calif., radio range station extending five miles either side of the southeast course of the Riverside, Calif., radio range to a point 25 miles southeast of the radio range station.

25. Section 601.4 (e) (69) is added to read:

(69) *Control area extension (Santa Barbara, Calif.).* From the Santa Barbara, Calif., radio range station extending five miles on either side of the west course of the Santa Barbara, Calif., radio range to a point 25 miles west of the radio range station, and extending five miles on either side of the south course of the Santa Barbara, Calif., radio range to a point 25 miles south of the radio range station.

26. Section 601.4 (e) (70) is added to read:

(70) *Control area extension (Oceanside, Calif.).* From the Oceanside, Calif., non-directional radio beacon extending five miles either side of a track of 278° magnetic to a point of intersection with a track of 205° magnetic from the Los Angeles, Calif., radio range station.

27. Section 601.4 (e) (71) is added to read:

(71) *Control area extension (Burbank, Calif.).* From the Burbank, Calif., radio range station extending five miles either side of the southwest course of the Burbank, Calif., radio range to the intersection of the southwest course of the Burbank, Calif., radio range and the west course of the Los Angeles, Calif., VHF radio range.

28. Section 601.4 (e) (72) is added to read:

(72) *Control area extension (Newhall, Calif.).* From the Newhall, Calif., radio range station extending five miles either side of the southwest course of the Newhall, Calif., radio range to the intersection of the southwest course of the Newhall, Calif., radio range and the southeast course of the Santa Barbara, Calif., radio range.

29. Section 601.4 (e) (73) is added to read:

(73) *Control area extension (Fresno, Calif.).* From the Fresno, Calif., radio range station extending five miles either side of the northeast course of the Fresno, Calif., radio range to a point 20 miles northeast of the radio range station.

30. Section 601.4 (e) (74) is added to read:

(74) *Control area extension (Los Angeles, Calif.).* From the Los Angeles, Calif., radio range station extending five miles on either side of the west course of the Los Angeles, Calif., radio range to a point 40 miles from the radio range station, and extending five miles either side of the south course of the Los Angeles, Calif., radio range to a point 40 miles from the radio range station; from the Los Angeles, Calif., radio range station extending five miles either side of a track of 205° magnetic to a point 40 miles from the radio range station; from the Los Angeles, Calif., VHF radio range station extending five miles either side of the south course of the Los Angeles, Calif., VHF radio range to a point 40 miles south of the radio range station.

31. Section 601.4 (e) (75) is added to read:

(75) *Control area extension (Long Beach, Calif.).* From the Long Beach, Calif., radio range station extending five miles either side of the southwest course of the Long Beach, Calif., radio range to a point 40 miles from the radio range station.

32. Section 601.4 (e) (76) is added to read:

(76) *Control area extension (Phoenix, Ariz.).* From the Phoenix, Ariz., radio range station extending five miles either side of the east course of the Phoenix, Ariz., radio range to a point 25 miles east of the radio range station.

33. Section 601.4 (e) (77) is added to read:

(77) *Control area extension (Elko, Nev.).* From the Elko, Nev., radio range station extending five miles either side of the north course of the Elko, Nev., radio range to a point 25 miles from the radio range station, and extending five miles on either side of the south course of the Elko, Nev., radio range to a point 25 miles south of the radio range station.

34. Section 601.4 (e) (78) is added to read:

(78) *Control area extension (Reno, Nev.).* From the Reno, Nev., radio range station extending five miles either side of the north course of the Reno, Nev., radio range to a point 50 miles north of the radio range station.

35. Section 601.4 (e) (79) is added to read:

(79) *Control area extension (Rock Springs, Wyo.).* From the Rock Springs, Wyo., radio range station extending five miles either side of the north course of the Rock Springs, Wyo., radio range to a point 25 miles north of the radio range station, and extending five miles either side of the south course of the Rock Springs, Wyo., radio range to a point 25 miles south of the radio range station.

36. Section 601.4 (e) (80) is added to read:

(80) *Control area extension (Louisville, Ky.).* From the Louisville, Ky., ILS localizer extending five miles either side of the ILS localizer course to a point 13.2 miles from the ILS localizer; from the intersection of the north course of the Louisville, Ky. (Godman Army), radio range and the west course of the Louisville, Ky., radio range extending five miles either side of a track via the ILS outer marker located at Latitude 38°07'15", Longitude 85°45'30" to the intersection of the east course of the Louisville, Ky. (Godman Army), radio range and the south course of the Louisville, Ky., radio range.

37. Section 601.4 (e) (81) is added to read:

(81) *Control area extension (Zanesville, Ohio).* From the Zanesville, Ohio, non-directional radio beacon extending five miles either side of a track of 360° magnetic to the southern boundary of Green civil airway No. 4, and extending five miles either side of a track of 180° magnetic to a point 20 miles south of the Zanesville, Ohio, non-directional radio beacon.

38. Section 601.4 (e) (82) is added to read:

(82) *Control area extension (Montgomery, Ala.).* From the Maxwell Field radio range station, Montgomery, Ala., extending five miles either side of the northeast course of the Maxwell Field radio range to a point 20 miles northeast of the radio range station.

39. Section 601.4 (e) (83) is added to read:

(83) *Control area extension (Memphis, Tenn.).* From the Memphis, Tenn., ILS localizer extending five miles either side of the localizer course to a point 25 miles west of the ILS localizer.

40. Section 601.4 (e) (84) is added to read:

(84) *Control area extension (Norfolk, Va.)*. Within a 25 mile radius centered at Latitude 36°58'00", Longitude 76°25'00".

41. Section 601.4 (e) (85) is added to read:

(85) *Control area extension (Cherry Point, N. C.)*. Within a 15 mile radius of the Marine Corps Air Station excluding that portion within danger areas and above 10,000 feet mean sea level.

42. Section 601.4 (e) (86) is added to read:

(86) *Control area extension (Memphis, Tenn.)*. Within a 10 mile radius of the Naval Air Station excluding that portion which lies within Amber civil airway No. 5.

43. Section 601.4 (e) (87) is added to read:

(87) *Control area extension (Akron, Ohio)*. From the Akron-Canton Airport, Akron, Ohio, ILS localizer extending five miles either side of the localizer course to a point 20 miles south of the ILS outer marker.

44. Section 601.4 (e) (88) is added to read:

(88) *Control area extension (Alexandria, Minn.)*. From the Alexandria, Minn., radio range station extending 5 miles either side of the north course of the Alexandria, Minn., radio range to a point 20 miles north of the radio range station.

45. Section 601.4 (e) (89) is added to read:

(89) *Control area extension (Covington, Ky.)*. From the Greater Cincinnati Airport, Covington, Ky., ILS localizer extending five miles either side of the localizer course to a point 20 miles south of the ILS outer marker.

46. Section 601.4 (e) (90) is added to read:

(90) *Control area extension (Columbus, Ohio)*. From the Columbus, Ohio, ILS localizer extending five miles either side of the localizer course to a point 20 miles west of the ILS outer marker.

47. Section 601.4 (e) (91) is added to read:

(91) *Control area extension (Dayton, Ohio)*. From the Dayton, Ohio, ILS localizer extending five miles either side of the localizer course to a point 20 miles southwest of the ILS outer marker.

48. Section 601.4 (e) (92) is added to read:

(92) *Control area extension (Dickinson, N. Dak.)*. From the Dickinson, N. Dak., radio range station extending 5 miles either side of the north course of the radio range to a point 20 miles north of the radio range station.

49. Section 601.4 (e) (93) is added to read:

(93) *Control area extension (Fargo, N. Dak.)*. From the Fargo, N. Dak., radio range station extending five miles either side of the east course of the radio range to a point 20 miles east of the radio range station.

50. Section 601.4 (e) (94) is added to read:

(94) *Control area extension (Flint, Mich.)*. From the Flint, Mich., non-directional radio beacon extending five miles either side of a track of 164° magnetic to a point 20 miles northwest of the non-directional radio beacon.

51. Section 601.4 (e) (95) is added to read:

(95) *Control area extension (Fort Wayne, Ind.)*. From the Fort Wayne, Ind., radio range station extending five miles either side of the southwest course of the Fort Wayne, Ind., radio range to a point 20 miles southwest of the radio range station.

52. Section 601.4 (e) (96) is added to read:

(96) *Control area extension (Glenview, Ill.)*. From the Glenview, Ill., radio range station extending five miles either side of the northwest course of the Glenview, Ill., radio range to a point 20 miles northwest of the radio range station.

53. Section 601.4 (e) (97) is added to read:

(97) *Control area extension (Grand Forks, N. Dak.)*. From the Grand Forks, N. Dak., radio range station extending five miles either side of the south course of the Grand Forks, N. Dak., radio range to a point 20 miles south of the radio range station.

54. Section 601.4 (e) (98) is added to read:

(98) *Control area extension (Grand Rapids, Mich.)*. From the Grand Rapids, Mich., radio range station extending five miles either side of the southeast course of the Grand Rapids, Mich., radio range to a point 20 miles southeast of the radio range station.

55. Section 601.4 (e) (99) is added to read:

(99) *Control area extension (Indianapolis, Ind.)*. From the Weir-Cook Municipal Airport, Indianapolis, Ind., ILS localizer extending five miles either side of the ILS localizer course to a point 20 miles southwest of the ILS outer marker.

56. Section 601.4 (e) (100) is added to read:

(100) *Control area extension (Lone Rock, Wis.)*. From the Lone Rock, Wis., radio range station extending five miles either side of the west course of the Lone Rock, Wis., radio range to a point 20 miles west of the radio range station.

57. Section 601.4 (e) (101) is added to read:

(101) *Control area extension (Madison, Wis.)*. From the Madison, Wis., radio range station extending five miles either side of the southeast course of the Madison, Wis., radio range to a point 20 miles southeast of the radio range station.

58. Section 601.4 (e) (102) is added to read:

(102) *Control area extension (Minneapolis, Minn.)*. From the Minneapolis, Minn., ILS localizer extending five miles either side of the localizer course to a point 20 miles south of the ILS outer marker.

59. Section 601.4 (e) (103) is added to read:

(103) *Control area extension (Minot, N. Dak.)*. From the Minot, N. Dak., radio range station extending five miles either side of the southeast course of the Minot, N. Dak., radio range to a point 20 miles southeast of the radio range station.

60. Section 601.4 (e) (104) is added to read:

(104) *Control area extension (Moline, Ill.)*. From the Moline, Ill., localizer extending five miles either side of the west course of the Moline, Ill., localizer to a point 20 miles west of the localizer.

61. Section 601.4 (e) (105) is added to read:

(105) *Control area extension (Muskegon, Mich.)*. From the Muskegon, Mich., radio range station extending five miles either side of the southeast course of the Muskegon, Mich., radio range to a point 20 miles southeast of the radio range station.

62. Section 601.4 (e) (106) is added to read:

(106) *Control area extension (Springfield, Ill.)*. From the Springfield, Ill., radio range station extending five miles either side of the northwest course of the Springfield, Ill., radio range to a point 20 miles northwest of the radio range station.

63. Section 601.8 (a) is amended to read:

(a) Within a three mile radius of the following airports:

Acomita, N. Mex.: C. A. A. Intermediate Field.
Altoona, Pa.: Altoona-Blair County Airport.
Baker, Oreg.: Baker Municipal Airport.
Baton Rouge, La.: East Baton Rouge Parish Airport.
Bellingham, Wash.: Bellingham Municipal Airport.
Blackstone, Va.: Blackstone A. A. F.
Bozeman, Mont.: Gallatin-Bozeman Municipal Airport.
Burley, Idaho: Burley Municipal Airport.
Butte, Mont.: Butte Municipal Airport.
Chanute, Kans.: Municipal Airport.
Cochise, Ariz.: C. A. A. Intermediate Field.
Columbus, N. Mex.: C. A. A. Intermediate Field.
Corpus Christi, Tex.: Cliff Maus Airport.
Custer, Mont.: Custer Intermediate Field.
Cut Bank, Mont.: Cut Bank Municipal Airport.
Daggett, Calif.: Daggett Municipal Airport.
Dillon, Mont.: Dillon Intermediate Field.
Drummond, Mont.: Drummond Municipal Airport.
Dubois, Idaho: Dubois Intermediate Field.
Endicott, N. Y.: Tri-Cities Airport.
El Dorado, Ark.: Goodwin Field.
Ellensburg, Wash.: Bowers Field.
El Morro, N. Mex.: C. A. A. Intermediate Field.
El Toro, Calif.: El Toro Airport.
Engle, N. Mex.: C. A. A. Intermediate Field.

Ephrata, Wash.: Ephrata Municipal Airport.
Eugene, Oreg.: Mahlen-Sweet Airport.
Everett, Wash.: Paine Field.
Glendale, Calif.: Grand Central Airport.
Helena, Mont.: Helena Municipal Airport.
Klamath Falls, Oreg.: Klamath Falls Municipal Airport.
Lakehurst, N. J.: Naval Air Station.
Lewistown, Mont.: Lewistown Municipal Airport.
Lucin, Utah: C. A. A. Intermediate Field.
Miles City, Mont.: Miles City Municipal Airport.
Missoula, Mont.: Missoula County Airport.
Needles, Calif.: Needles Airport.
Oceana, Va.: Naval Auxiliary Air Station.
Palacios, Tex.: Palacios Airport.
Pendleton, Oreg.: Pendleton Municipal Airport.
Pocatello, Idaho: Pocatello Municipal Airport.
Redmond, Oreg.: Redmond-Roberts Field.
Rodeo, N. Mex.: C. A. A. Intermediate Field.
Salem, Oreg.: Salem-McNary Airport.
Santa Monica, Calif.: Clover Field.
Spokane, Wash.: Felts Field.
Spokane, Wash.: Spokane A. A. F.
The Dalles, Oreg.: The Dalles Municipal Airport.
Toledo, Wash.: Toledo Intermediate Airport.
Whitehall, Mont.: Whitehall Municipal Airport.
Yakima, Wash.: Yakima Municipal Airport.

64. Section 601.8 (b) is amended to read:

(b) Within a five mile radius of the following airports:

Abilene, Tex.: Abilene Air Terminal.
Alice, Tex.: Alice Airport.
Anchorage, Alaska: Municipal Airport.
Annette Island, Alaska: Annette Island Airport.
Austin, Tex.: Robert Mueller Airport.
Beaumont, Tex.: Jefferson County Airport.
Bedford, Mass.: Bedford Municipal Airport.
Bendix, N. J.: Teterboro Air Terminal.
Big Delta, Alaska: Big Delta Airport.
Billings, Mont.: Billings Municipal Airport.
Boise, Idaho: Boise Air Terminal.
Bridgeport, Conn.: Bridgeport Municipal Airport.
Delta, Utah: Delta Airport.
Elkins, W. Va.: Elkins Airport.
Elmira, N. Y.: Chemung County Airport.
Fresno, Calif.: Hammer Field.
Gage, Okla.: Gage Airport.
Gordonsville, Va.: C. A. A. Intermediate Field.
Gustavus, Alaska: Gustavus Airport.
Great Falls, Mont.: Great Falls Municipal Airport.
Homer, Alaska: Homer Airport.
Houlton, Maine: Houlton Airport.
Islip, N. Y.: MacArthur Field.
Juneau, Alaska: Juneau Airport.
Kenai, Alaska: Kenai Airport.
Lake Charles, La.: Lake Charles A. A. F.
Langley Field, Va.: Langley Field.
Las Vegas, N. Mex.: Las Vegas Airport.
Louisville, Ky.: Standiford Field.
Lucin, Utah: Lucin Airport.
Lynchburg, Va.: Preston Glenn Airport.
Medford, Oreg.: Medford A. A. F.
Memphis, Tenn.: Naval Air Station.
Montgomery, Ala.: Dannelly Field.
Nenana, Alaska: Nenana Airport.
Newburgh, N. Y.: Stewart A. A. F.
New Orleans, La.: New Orleans Airport.
Northway, Alaska: Northway Airport.
Ogden, Utah: Hill Field.
Oklahoma City, Okla.: Will Rogers Field.
Old Town, Maine: Old Town Airport.
Otto, N. Mex.: C. A. A. Intermediate Field.
Philipsburg, Pa.: Black Moshannon Airport.
Phoenix, Ariz.: Sky Harbor Municipal Airport.
Portland, Oreg.: Portland A. A. F.
Pulaski, Va.: Leving Field.
Reading, Penn.: Reading Municipal Airport:
Red Bluff, Calif.: Red Bluff Municipal (Bidwell Field).
Reno, Nev.: Hubbard Field.
Riverside, Calif.: March Field.
Roanoke, Va.: Woodrum Field.
Rome, N. Y.: Rome A. A. F.
Salt Flat, Tex.: C. A. A. Intermediate Field.
San Antonio, Tex.: Alamo Field.
San Rafael, Calif.: Hamilton Field.
Santa Fe, N. Mex.: Santa Fe Airport.
Seattle, Wash.: Boeing Field.
Seattle, Wash.: Seattle-Takoma Airport.
Skwentna, Alaska: Skwentna Airport.
Spokane, Wash.: Geiger A. A. F.
St. Paul, Minn.: Helman Airport.
Sunnyvale, Calif.: Moffett Field.
Tacoma, Wash.: McCord Field.
Tanacross, Alaska: Tanacross Airport.
Texarkana, Ark.: Texarkana Airport.
Tucumcari, N. Mex.: Tucumcari Airport.
Tyler, Tex.: Pounds Field.
Waco, Tex.: Waco Municipal Airport.
Walla Walla, Wash.: Walla Walla A. A. F.
Wendover, Utah: Wendover Airport.
Westfield, Mass.: Barnes Airport.
Wichita Falls, Tex.: Sheppard (Kell) Field.
Wilkes-Barre, Pa.: Wyoming Valley Airport.
Williams, Calif.: C. A. A. Intermediate Field.
Wink, Tex.: Wink Airport.
Winslow, Ariz.: Winslow Airport.
Worcester, Mass.: Worcester Airport.
Yakutat, Alaska: Yakutat Airport.

65. Section 601.8 (c) (6) *Philipsburg, Pa., control zone* is revoked.

66. Section 601.8 (c) (183) *Phoenix, Ariz., control zone* is revoked.

67. Section 601.8 (c) (3) is amended to read:

(3) *Baltimore, Md., control zone.* Within a five mile radius of the Baltimore Municipal Airport extending 5 miles either side of the south course of the Baltimore, Md., radio range to a point 10 miles south of the radio range station.

68. Section 601.8 (c) (6) is amended to read:

(6) *Buffalo, N. Y., control zone.* Within a five mile radius of the Buffalo Municipal Airport extending 2 miles either side of the northeast course of the Buffalo, N. Y., radio range to the Walcottsville fan marker and within 2 miles either side of the southwest course of the Buffalo, N. Y., radio range to the Angola fan marker.

69. Section 601.8 (c) (62) is amended to read:

(62) *Mason City, Iowa, control zone.* Within a five mile radius of Mason City Municipal Airport extending 2 miles either side of a track of 180° True from the Mason City non-directional radio beacon to a point 10 miles south of the radio beacon.

70. Section 601.8 (c) (76) is amended to read:

(76) *Topeka, Kans., control zone.* Within an eight mile radius of the Phillip Billard Airport extending 2 miles either side of the north course of the Topeka VHF radio range to a point 10 miles north of the radio range station and 2 miles either side of the ILS localizer course to a point 15 miles northwest of the ILS localizer.

71. Section 601.8 (c) (82) is amended to read:

(82) *Akron, Ohio, control zone.* Within a five mile radius of the Akron Municipal Airport extending 2 miles either side of the ILS localizer course to the ILS outer marker.

72. Section 601.8 (c) (88) is amended to read:

(88) *Covington, Ky., control zone.* Within a five mile radius of the Greater Cincinnati Airport (Covington, Ky.) extending 2 miles either side of the ILS localizer course to the ILS outer marker.

73. Section 601.8 (c) (90) is amended to read:

(90) *Columbus, Ohio, control zone.* Within a five mile radius of the Port Columbus Municipal Airport extending 2 miles either side of the ILS localizer course to the ILS outer marker.

74. Section 601.8 (c) (91) is amended to read:

(91) *Dayton, Ohio, control zone.* Within a five mile radius of the Dayton Municipal Airport extending 2 miles either side of the ILS localizer course to the ILS outer marker.

75. Section 601.8 (c) (98) is amended to read:

(98) *Flint, Mich., control zone.* Within a five mile radius of the Bishop Airport extending 2 miles either side of a track of 164° Magnetic to a point 10 miles northwest of the airport.

76. Section 601.8 (c) (105) is amended to read:

(105) *Indianapolis, Ind., control zone.* Within a five mile radius of the Indianapolis Municipal Airport extending 2 miles either side of the ILS localizer course to the ILS outer marker.

77. Section 601.8 (c) (114) is amended to read:

(114) *Minneapolis, Minn., control zone.* Within a five mile radius of the Wold-Chamberlain Airport extending 2 miles either side of the ILS course to the ILS outer marker.

78. Section 601.8 (c) (116) is amended to read:

(116) *Moline, Ill., control zone.* Within a five mile radius of the Moline Municipal Airport extending 2 miles either side of the west course of the Moline localizer to a point 10 miles west of the localizer station.

79. Section 601.8 (c) (128) is amended to read:

(128) *Ypsilanti, Mich., control zone.* Within a five mile radius of the Willow Run Airport extending 2 miles either side of the ILS localizer to the ILS outer marker.

80. Section 601.8 (c) (174) is amended to read:

(174) *Burbank, Calif., control zone.* Within a five mile radius of the Lockheed Air Terminal extending to and including a 3 mile radius of the Grand Central Airport, Glendale, Calif., and 2 miles either side of the northwest course of the Bur-

bank radio range to a point 7 miles northwest of the radio range station.

81. Section 601.8 (c) (175) is amended to read:

(175) *El Centro, Calif., control zone.* Within a five mile radius of the Naval Air Station extending to and including a 2 mile radius of the El Centro radio range station and 2 miles either side of the east course of the El Centro radio range to a point 10 miles east of the radio range station.

82. Section 601.8 (c) (176) is amended to read:

(176) *Fresno, Calif., control zone.* Within a five mile radius of Chandler Field extending to and including a 5 mile radius of Hammer Field; 2 miles either side of the southeast course of the Fresno radio range to a point 10 miles southeast of the radio range station and 2 miles either side of the west course of the Fresno radio range to a point 10 miles west of the radio range station.

83. Section 601.8 (c) (178) is amended to read:

(178) *Long Beach, Calif., control zone.* Within a five mile radius of the Municipal Airport (Daugherty Field) extending to and including a five mile radius of the Los Alamitos Naval Air Station and 2 miles either side of the southeast course of the Long Beach radio range to the Huntington Beach fan marker.

84. Section 601.8 (c) (179) is amended to read:

(179) *Los Angeles, Calif., control zone.* Within a five mile radius of the Municipal Airport and extending 2 miles either side of the east course of the Los Angeles radio range to a point 6 miles east of the radio range station.

85. Section 601.8 (c) (189) is added to read:

(189) *Olathe, Kans., control zone.* Within a five mile radius of the Naval Air Station excluding that portion which lies within Green civil airway No. 4 and extending 2 miles either side of the south course of the Olathe, Kans., Navy radio range to a point 10 miles south of the radio range station.

86. Section 601.8 (c) (190) is added to read:

(190) *Atlantic City, N. J., control zone.* Within a seven mile radius of the Naval Air Station extending 2 miles either side of the southeast course of the Atlantic City Navy radio range to a point 8 miles southeast of the radio range station.

87. Section 601.8 (c) (191) is added to read:

(191) *Zanesville, Ohio, control zone.* Within a five mile radius of the Zanesville Airport extending 2 miles either side of a track 360° Magnetic to a point 10 miles south of the Airport.

88. Section 601.8 (c) (192) is added to read:

(192) *Mana, Kauai, T. H., control zone.* Within a five mile radius of the Barking Sands Airport extending 3 miles on the south side of the northwest course of the Port Allen radio range to the Port Allen radio range station.

89. Section 601.8 (c) (193) is added to read:

(193) *Kahului, Maui, T. H., control zone.* Within a five mile radius of the Kahului Airport extending 2 miles either side of the north course of the Maui radio range to the Maui radio range station.

90. Section 601.8 (c) (194) is added to read:

(194) *Hilo, Hawaii, T. H., control zone.* Within a five mile radius of the Hilo General Lyman Airport extending 2 miles either side of the east course of the Hilo radio range to a point 10 miles east of the radio range station.

91. Section 601.8 (c) (195) is added to read:

(195) *Windsor Locks, Conn., control zone.* Within a five mile radius of Bradley Field extending 2 miles either side of the ILS localizer course to a point 10 miles from the ILS localizer.

92. Section 601.8 (c) (196) is added to read:

(196) *New Castle, Del., control zone.* Within a five mile radius of the New Castle Army Air Field extending 2 miles either side of the south course of the New Castle radio range to a point 10 miles south of the radio range station.

93. Section 601.8 (c) (197) is added to read:

(197) *Morgantown, W. Va., control zone.* Within a five mile radius of the Morgantown Airport extending 2 miles either side of the southeast and northwest courses of the Morgantown radio range to a point 10 miles northwest of the radio range station.

94. Section 601.8 (c) (198) is added to read:

(198) *Montpelier, Vt., control zone.* Within a five mile radius of the Barre-Montpelier Airport extending 2 miles either side of the northeast of the Montpelier radio range to a point 10 miles northeast of the radio range station.

95. Section 601.8 (c) (199) is added to read:

(199) *Syracuse, N. Y., control zone.* Within a five mile radius of the Syracuse Municipal Airport extending 2 miles either side of the north course of the Syracuse radio range to a point 10 miles north of the radio range station.

96. Section 601.8 (c) (200) is added to read:

(200) *Allentown, Pa., control zone.* Within a five mile radius of the Allentown-Bethlehem Airport extending 2 miles either side of the northeast course of the Allentown radio range to a point 10 miles from the radio range station.

97. Section 601.8 (c) (201) is added to read:

(201) *Williamsport, Pa., control zone.* Within a five mile radius of the Williamsport Municipal Airport extending 2 miles either side of the west course of the Williamsport radio range to the radio range station.

98. Section 601.8 (c) (202) is added to read:

(202) *Philadelphia, Pa., control zone.* Within a five mile radius of the Philadelphia Northeast Airport extending 2 miles either side of the northeast course of the Philadelphia radio range to a point 10 miles northeast of the radio range station.

99. Section 601.8 (c) (203) is added to read:

(203) *Martinsburg, W. Va., control zone.* Within a five mile radius of the Martinsburg Airport extending 2 miles either side of the southwest course of the Martinsburg radio range to a point 10 miles southwest of the radio range station.

100. Section 601.8 (c) (204) is added to read:

(204) *Presque Isle, Maine, control zone.* Within a five mile radius of the Presque Isle Army Air Field extending 5 miles either side of the south course of the Spragueville radio range to a point 10 miles south of the radio range station.

101. Section 601.8 (c) (205) is added to read:

(205) *Chincoteague, Va., control zone.* Within a five mile radius of the Naval Air Station extending 2 miles either side of the west course of the Chincoteague radio range to a point 8 miles west of the radio range station excluding that portion which lies within danger areas.

102. Section 601.8 (c) (206) is added to read:

(206) *New York, N. Y., control zone.* Within a five mile radius of LaGuardia Field extending 5 miles to either side of the northeast course of the LaGuardia field radio range to the Port Chester fan marker.

103. Section 601.8 (c) (207) is added to read:

(207) *White Plains, N. Y., control zone.* Within a five mile radius of the West Chester County Airport extending 2 miles either side of the ILS localizer course to the ILS outer marker.

104. Section 601.8 (c) (208) is added to read:

(208) *Stockton, Calif., control zone.* Within a five mile radius of the Municipal Airport extending 2 miles either side of the southeast course of the Stockton radio range to a point 10 miles southeast of the radio range station.

105. Section 601.8 (c) (209) is added to read:

(209) *Tucson, Ariz., control zone.* Within a five mile radius of the Davis-Monthan Army Air Field extending to and including a five mile radius of Tucson Municipal Airport No. 2.

106. Section 601.8 (c) (210) is added to read:

(210) *Santa Barbara, Calif., control zone.* Within a five mile radius of the Municipal Airport extending 2 miles

either side of the west course of the Santa Barbara radio range to a point 10 miles west of the radio range station.

107. Section 601 (c) (211) is added to read:

(211) *Cherry Point, N. C., control zone.* Within a five mile radius of the Marine Corps Air Station excluding that portion above 10,000 feet mean sea level.

108. Section 601.8 (c) (212) is added to read:

(212) *Topeka, Kans., control zone.* Within a five mile radius of the Topeka Army Air Field excluding that portion which lies within the Phillip Billard Airport control zone, and extending 2 miles either side of the southwest course of the Topeka Army radio range to a point 10 miles southwest of the radio range station.

109. Section 601.8 (c) (213) is added to read:

(213) *Fort Riley, Kans., control zone.* Within a five mile radius of the Marshall Army Air Field extending ½ mile west and 4 miles east of the northeast course of the Marshall radio range to a point 10 miles northeast of the radio range station.

110. Section 601.8 (c) (214) is added to read:

(214) *Goodland, Kans., control zone.* Within a five mile radius of the Goodland Municipal Airport extending 2 miles either side of the north course of the Goodland VHF radio range to a point 10 miles north of the radio range station.

111. Section 601.8 (c) (215) is added to read:

(215) *San Juan, P. R., control zone.* Within a five mile radius of the Naval Air Station extending 2 miles either side of the west course of the San Juan radio range to a point 10 miles west of the radio range station.

112. Section 601.8 (c) (216) is added to read:

(216) *Seattle, Wash., control zone.* Within a five mile radius of the Naval Air Station extending 1½ miles either side of a track 341° True to a point 7 miles northwest of the airport excluding that portion west of a line connecting Latitude 47°44'00", Longitude 122°20'10" and Latitude 47°37'00", Longitude 122°-19'10".

113. Section 601.8 (c) (217) is added to read:

(217) *Aberdeen, S. Dak., control zone.* Within a five mile radius of the Aberdeen Airport extending 2 miles either side of the south course of the Aberdeen radio range to a point 10 miles south of the radio range station.

114. Section 601.8 (c) (218) is added to read:

(218) *Sioux Falls, S. Dak., control zone.* Within a five mile radius of the Sioux Falls Municipal Airport extending 2 miles either side of the northwest course of the Sioux Falls radio range to a point 10 miles northwest of the radio range station.

115. Section 601.8 (c) (219) is added to read:

(219) *Iowa City, Iowa, control zone.* Within a five mile radius of the Iowa City Airport extending 2 miles either side of a track 276° Magnetic to its intersection with the north course of the Burlington, Iowa, radio range.

116. Section 601.8 (c) (220) is added to read:

(220) *Lubbock, Tex., control zone.* Within a five mile radius of the South Plains Army Air Field extending 2 miles either side of the east course of the Lubbock radio range to the radio range station.

117. Section 601.8 (c) (221) is added to read:

(221) *La Crosse, Wis., control zone.* Within a five mile radius of the La Crosse Municipal Airport extending 2 miles either side of the northwest course of the La Crosse radio range to a point 10 miles northwest of the radio range station.

118. Section 601.9 (a) (2) is amended to read:

(2) *Green civil airway No. 2 (Seattle, Wash., to Boston, Mass.).* Seattle, Wash., radio range station; Ellensburg, Wash., radio range station; Ephrata, Wash., radio range station; Spokane, Wash., radio range station; Coeur D'Alene, Idaho, radio range station; Mullan Pass, Idaho, radio range station; Superior, Mont., radio range station; Drummond, Mont., radio range station; Helena, Mont., radio range station; Bozeman, Mont., radio range station; Billings, Mont., radio range station; Miles City, Mont., radio range station; Dickinson, N. Dak., radio range station; Bismarck, N. Dak., radio range station; Fargo, N. Dak., radio range station; Alexandria, Minn., radio range station; Minneapolis, Minn., radio range station; La Crosse, Wis., radio range station; Lone Rock, Wis., radio range station; Milwaukee, Wis., radio range station; Muskegon, Mich., radio range station; Grand Rapids, Mich., radio range station; Lansing, Mich., radio range station; Wixom, Mich., fan type radio marker station or the intersection of the north course of the Romulus, Mich. (Romulus Army Air Field) radio range and the east course of the Lansing, Mich., radio range; Romulus, Mich., radio range station; Buffalo, N. Y., radio range station; Rochester, N. Y., radio range station; Utica, N. Y., radio range station; Albany, N. Y., radio range station; Westfield, Mass., radio range station; the intersection of the northeast course of the Hartford, Conn., radio range and the southeast course of the Westfield, Mass., radio range; Franklin, Mass., fan type radio marker station or the intersection of the northeast course of the Providence, R. I., radio range and the southwest course of the Boston, Mass., radio range; Boston, Mass., radio range station.

119. Section 601.9 (a) (3) is amended to read:

(3) *Green civil airway No. 3 (San Francisco, Calif., to New York, N. Y.).* San Francisco, Calif., radio range station; Oakland, Calif., radio range station; the intersection of the northeast course of the Oakland, Calif., radio range and the southeast course of the Williams, Calif., radio range; Sacramento, Calif., radio range station; Donner Summit, Calif., radio range station; Reno, Nev., radio range station; Humboldt, Nev., radio range station; Battle Mountain, Nev., radio range station; Elko, Nev., radio range station; Lucin, Utah, radio range station; Ogden, Utah, radio range station; Fort Bridger, Wyo., radio range station; Rock Spring, Wyo., radio range station; Sinclair, Wyo., radio range station; Cheyenne, Wyo., radio range station; the intersection of the southeast course of the Scottsbluff, Nebr., radio range and the west course of the North Platte, Nebr., radio range; North Platte, Nebr., radio range station; Grand Island, Nebr., radio range station; Omaha, Nebr., radio range station; Des Moines, Iowa, radio range station; Moline, Ill., radio range station; the intersection of the west course of the Chicago, Ill., radio range and the southeast course of the Rockford, Ill., radio range; Joliet, Ill., radio range station; Goshen, Ind., radio range station; Toledo, Ohio, radio range station; the intersection of the southeast course of the Romulus, Mich., radio range and the west course of the Cleveland, Ohio, radio range; Cleveland, Ohio, radio range station; Youngstown, Ohio, radio range station; Philipsburg, Pa., radio range station; the intersection of the east course of the Philipsburg, Pa., radio range and the south course of the Williamsport, Pa., radio range; Allentown, Pa., radio range station; the intersection of the southwest course of the New York, N. Y. (LaGuardia), radio range and the northwest course of the Floyd Bennett, N. J. (Navy), radio range.

120. Section 601.9 (a) (5) is amended to read:

(5) *Green civil airway No. 5 (Los Angeles, Calif., to Boston, Mass.).* Los Angeles, Calif., radio range station; Riverside, Calif., radio range station; Blythe, Calif., radio range station; Phoenix, Ariz., radio range station; Tucson, Ariz., radio range station; Rodeo, N. Mex., radio range station; Columbus, N. Mex., radio range station; El Paso, Tex., radio range station; Salt Flat, Tex., radio range station; Wink, Tex., radio range station; Big Spring, Tex., radio range station; Abilene, Tex., radio range station; Fort Worth, Tex., radio range station; Texarkana, Ark., radio range station; Memphis, Tenn., radio range station; Jack's Creek, Tenn., radio range station; Nashville, Tenn., radio range station; Smithville, Tenn., radio range station; Knoxville, Tenn., radio range station; Tri-City, Tenn., radio range station; Roanoke, Va., radio range station; Gordonsville, Va., radio range station; Doncaster, Md., fan type radio marker station or the intersection of the northeast course of the Gordonsville, Va., radio range and the south course of the Washington, D. C., radio range; Brandywine, Md., radio range

station; the intersection of the southeast course of the Baltimore, Md., radio range and the southwest course of the Millville, N. J., radio range; the intersection of the southeast course of the Newark, N. J., radio range and the southwest course of the Mitchel Field, N. Y. (Army), radio range; the intersection of the east course of the New York, N. Y. (LaGuardia) radio range and the northeast course of the Mitchel Field, N. Y. (Army), radio range; the intersection of the southeast course of the Hartford, Conn., radio range and the southwest course of the Boston, Mass., radio range.

121. Section 601.9 (b) (1) is amended to read:

(1) *Amber civil airway No. 1 (United States-Mexican Border to Nome, Alaska).* San Diego, Calif., radio range station; Long Beach, Calif., radio range station; Bakersfield, Calif., radio range station; Fresno, Calif., radio range station; the intersection of the southeast course of the Stockton, Calif., radio range and the northwest course of the Fresno, Calif., radio range; Evergreen, Calif., non-directional radio beacon; Williams, Calif., radio range station; Red Bluff, Calif., radio range station; Fort Jones, Calif., radio range station; Medford, Oreg., radio range station; Eugene, Oreg., radio range station; Portland, Oreg., radio range station; Toledo, Wash., radio range station; Everett, Wash., radio range station; Bellingham, Wash., radio range station; Annette Island, Alaska, radio range station; the intersection of the west course of the Annette Island, Alaska, radio range and the southwest course of the Sitka (Biorka Island), Alaska, radio range; Sitka (Biorka Island), Alaska, radio range station; the intersection of the northwest course of the Sitka (Biorka Island), Alaska, radio range and the southwest course of the Gustavus, Alaska, radio range; Yakutat, Alaska, radio range station; Yakataga, Alaska, radio range station; Cordova (Hinchinbrook Island), Alaska, radio range station; the intersection of the northwest course of the Cordova (Hinchinbrook Island), Alaska, radio range and the southeast course of the Anchorage, Alaska, radio range; Skwentana, Alaska, radio range station.

122. Section 601.9 (c) (10) is amended to read:

(10) *Red civil airway No. 10 (Trinidad, Colo., to Charleston, S. C.).* Wichita Falls, Tex., radio range station; the intersection of the south course of the Fort Worth, Tex., radio range and the west course of the Dallas, Tex., radio range; Dallas, Tex., radio range station; Shreveport, La., radio range station; Monroe, La., radio range station; Meridian, Miss., radio range station; Birmingham, Ala., radio range station; Augusta, Ga., radio range station.

123. Section 601.9 (c) (11) is amended to read:

(11) *Red civil airway No. 11 (Tulsa, Okla., to Boston, Mass.).* The intersection of the northeast course of the Tulsa, Okla., radio range and the south course of the Joplin, Mo., radio range; Springfield, Mo., radio range station; Vichy, Mo., radio range station; the intersection of the northeast course of the Scotts Field, Ill., radio range and the northwest course of the Evansville, Ind., radio range; Evansville, Ind., radio range station; the intersection of the northeast course of the Westover, Mass. (Army), radio range and the east course of the Boston, Mass., radio range.

124. Section 601.9 (c) (13) is amended to read:

(13) *Red civil airway No. 13 (Sunbury, Pa., to Boston, Mass.).* Wilkes-Barre, Pa., radio range station; Stewart Field, N. Y., radio range station; New Hackensack, N. Y., radio range station; Hartford, Conn., radio range station; the intersection of the west course of the Providence, R. I., radio range and the southwest course of the Boston, Mass., radio range.

125. Section 601.9 (c) (20) is amended to read:

(20) *Red civil airway No. 20 (Lansing, Mich., to Chincoteague Island, Va.).* Akron, Ohio, radio range station; Martinsburg, W. Va., radio range station; the intersection of the northwest course of the Washington, D. C., radio range and the northeast course of the Martinsburg, W. Va., radio range; the intersection of the southeast course of the Washington, D. C., radio range and the northeast course of the Patuxent River, Md. (Navy), radio range; the intersection of the southeast course of the Washington, D. C., radio range and the east course of the Chincoteague, Va. (Navy), radio range.

126. Section 601.9 (c) (51) is amended to read:

(51) *Red civil airway No. 51 (El Paso, Tex., to the United States-Mexican Border).* No reporting point designation.

127. Section 601.9 (c) (53) is added to read:

(53) *Red civil airway No. 53 (Joplin, Mo., to Springfield, Mo.).* No reporting point designation.

128. Section 601.9 (c) (59) is added to read:

(59) *Red civil airway No. 59 (Toledo, Ohio, to United States-Canadian Border).* No reporting point designation.

129. Section 601.9 (c) (61) is added to read:

(61) *Red civil airway No. 61 (Pittsburgh, Pa., to Washington, D. C.).* No reporting point designation.

130. Section 601.9 (c) (64) is added to read:

(64) *Red civil airway No. 64 (United States-Canadian Border to Annette Island, Alaska).* No reporting point designation.

131. Section 601.9 (c) (65) is added to read:

(65) *Red civil airway No. 65 (Oceanside, Calif., to Blythe, Calif.).* No reporting point designation.

132. Section 601.9 (c) (66) is added to read:

(66) *Red civil airway No. 66 (Santa Barbara, Calif., to Los Angeles, Calif.).* No reporting point designation.

133. Section 601.9 (c) (67) is added to read:

(67) *Red civil airway No. 67 (Crestview, Fla., to Dothan, Ala.).* No reporting point designation.

134. Section 601.9 (d) (3) is amended to read:

(3) *Blue civil airway No. 3 (Mobile, Ala., to Lafayette, Ind.)* Dothan, Ala., radio range station.

135. Section 601.9 (d) (5) is amended to read:

(5) *Blue civil airway No. 5 (Galveston, Tex., to Wichita, Kans.).* Galveston, Tex., radio range station; the intersection of the northwest course of the Houston, Tex., radio range and the northeast course of the Richmond, Tex., radio range; the intersection of the northeast course of the Fort Worth, Tex., radio range and the north course of the Dallas, Tex., radio range.

136. Section 601.9 (d) (23) is added to read:

(23) *Blue civil airway No. 23 (Detroit, Mich., to Flint, Mich.).* No reporting point designation.

137. Section 601.9 (d) (28) is amended to read:

(28) *Blue civil airway No. 28 (Charleston, S. C., to Spartanburg, S. C.).* No reporting point designation.

138. Section 601.9 (d) (31) is added to read:

(31) *Blue civil airway No. 31 (Burlington, Iowa, to Moline, Ill.).* No reporting point designation.

139. Section 601.9 (d) (47) is added to read:

(47) *Blue civil airway No. 47 (Martinsburg, W. Va., to Philipsburg, Pa.).* No reporting point designation.

140. Section 601.9 (d) (53) is added to read:

(53) *Blue civil airway No. 53 (Providence, R. I., to Hartford, Conn.).* No reporting point designation.

141. Section 601.9 (d) (54) is added to read:

(54) *Blue civil airway No. 54 (Salinas, Calif., to Oakland, Calif.).* No reporting point designation.

(52 Stat. 973, 984, 985, 986; 54 Stat. 1231, 1233, 1234, 1235; 60 Stat. 238; 49 U. S. C. 401, 425, 451, 452, 457, 458; 5 U. S. C. Sup., 1002)

This amendment shall become effective 0001 e. s. t., March 15, 1948.

[SEAL] T. P. WRIGHT,
Administrator of Civil Aeronautics.

[F. R. Doc. 48-2000; Filed, Mar. 5, 1948; 8:59 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket No. 5260]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

VANLEIGH FURNITURE CO., INC.

§ 3.6 (a) *Advertising falsely or misleadingly—Business status, advantages or connections of advertiser—Retailer as wholesaler, jobber or factory distributor:* § 3.6 (r) *Advertising falsely or misleadingly—Prices—Retail or selling as wholesale, jobbing, factory, distributor's, etc., or discounted:* § 3.69 (a) *Misrepresenting oneself and goods—Business status, advantages or connections—Retailer as wholesaler, jobber or factory distributor:* § 3.69 (c) *Misrepresenting oneself and goods—Prices—Retail or selling as dealer's, wholesale or factory distributor's.* In connection with the offering for sale, sale, or distribution of furniture in commerce, (1) using the term "factory distributor", or any other word or words of similar import, in such a manner as to represent or imply that respondent is a factory distributor or wholesaler of furniture for which respondent is not in fact factory distributor or wholesaler; or (2) representing, directly or by implication, that prices for furniture which are higher than factory or wholesale prices for such furniture are factory or wholesale price; prohibited. (Sec. 5, 38 Stat. 719, as amended by sec. 3, 52 Stat. 112; 15 U. S. C., sec. 45b) [Cease and desist order, Vanleigh Furniture Company, Inc., Docket 5260, January 2, 1948]

At a regular session of the Federal Trade Commission, held at its office in the city of Washington, D. C., on the 2d day of January A. D. 1948.

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent, and a stipulation as to the facts entered into between respondent herein and Daniel J. Murphy, Assistant Chief Trial Counsel for the Commission, which provides, among other things, that without further evidence or other intervening procedure the Commission may issue and serve upon respondent herein its findings as to the facts and conclusion based thereon and an order disposing of this proceeding, and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act:

It is ordered, That respondent Vanleigh Furniture Company, Inc., its officers, representatives, agents, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale, or distribution of furniture in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from:

1. Using the term "factory distributor," or any other word or words of similar import, in such a manner as to represent or imply that respondent is a factory distributor or wholesaler of furniture for which respondent is not in fact factory distributor or wholesaler.

2. Representing, directly or by implication, that prices for furniture which are higher than factory or wholesale prices for such furniture are factory or wholesale prices.

It is further ordered, That the respondent shall, within sixty (60) days after service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with this order.

By the Commission.

[SEAL] WM. P. GLENDENING, Jr.,
Acting Secretary.

[F. R. Doc. 48-1988; Filed, Mar. 5, 1948; 8:46 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of Treasury

[T. D. 51852]

PART 6—AIR COMMERCE REGULATIONS

REVOCATION OF DESIGNATION OF DULUTH BOAT CLUB SEAPLANE BASE, DULUTH, MINN., AS AIRPORT OF ENTRY

MARCH 1, 1948.

The designation of the Duluth Boat Club Seaplane Base, Duluth, Minnesota, as an airport of entry for civil aircraft and for merchandise carried thereon arriving from places outside the United States, as defined in section 9 (b) of the Air Commerce Act of 1926 (49 U. S. C. 179 (b)), is hereby revoked effective at the close of business March 31, 1948.

The list of airports of entry in § 6.12, Customs Regulations of 1943 (19 CFR, Cum. Supp., 6.12) as amended, is hereby further amended by deleting therefrom the location and name of said base.

Notice of the proposed revocation of the designation of this base as an airport of entry was published in the FEDERAL REGISTER on January 28, 1948 (13 F. R. 385), pursuant to the provisions of section 4 of the Administrative Procedure Act (Public Law 404, 79th Congress). The revocation is made for the reason that the base is no longer available for the use of civil aircraft.

(Sec. 7 (b), 44 Stat. 572, sec. 611, 58 Stat. 714; 49 U. S. C. and Sup., 177 (b))

[SEAL] A. L. M. WIGGINS,
Acting Secretary of the Treasury.

[F. R. Doc. 48-2017; Filed, Mar. 5, 1948; 9:13 a. m.]

[T. D. 51850]

PART 18—TRANSPORTATION IN BOND AND MERCHANDISE IN TRANSIT

STATISTICAL COPIES OF MANIFEST

Statistical copies of the manifest on customs Form 7512 no longer required for merchandise arriving from a contiguous country in sealed vessels or vehicles and intended to be entered for consumption or warehouse in the United States. § 18.30 (a), Customs Regulations of 1943, amended.

Paragraph (a) of § 18.30, Customs Regulations of 1943 (19 CFR, Cum. Supp., 18.30 (a)), is amended by deleting the word "ten" and substituting therefor the word "nine".

(Secs. 463, 624, 46 Stat. 718, 759; 19 U. S. C. 1463, 1624)

[SEAL] FRANK DOW,
Acting Commissioner of Customs.

Approved: March 2, 1948.

A. L. M. WIGGINS,
Acting Secretary of the Treasury.

[F. R. Doc. 48-2020; Filed, Mar. 5, 1948; 8:57 a. m.]

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 632—MINIMUM WAGE RATES IN THE LEATHER AND SKIN PRODUCTS DIVISION OF THE LEATHER, TEXTILE, RUBBER, STRAW, AND RELATED PRODUCTS INDUSTRIES IN PUERTO RICO

RECOMMENDATIONS OF SPECIAL INDUSTRY COMMITTEE NO. 5

Whereas, on June 16, 1947, pursuant to section 5 (e) of the Fair Labor Standards Act of 1938, hereinafter called the act, I, as Administrator of the Wage and Hour Division of the United States Department of Labor, by Administrative Order No. 367, appointed Special Industry Committee No. 5 for Puerto Rico, hereinafter called the Committee, and directed the Committee to proceed first to investigate conditions and to recommend to me minimum wage rates for employees in the Sugar Manufacturing Industry in Puerto Rico, as defined in Administrative Order No. 367, and thereafter, to investigate conditions and to recommend to me minimum wage rates for employees in other industries enumerated and defined in the order, as amended by Administrative Order No. 369, including the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, in accordance with the provisions of the act and rules and regulations promulgated thereunder; and

Whereas, the Committee for purposes of investigating conditions and recommending minimum wage rates for employees in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, included three disinterested persons representing the public, a like number representing employers, and a like number representing employees in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, and was composed of residents of Puerto Rico and of the United States outside of Puerto Rico; and

Whereas, the Committee, after investigating economic and competitive conditions in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries of Puerto Rico, filed with me

a report containing (a) its recommendations that classifications specified by the Committee be made in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, as this Division is defined in Administrative Order No. 369; and (b) its separable recommendations for minimum wage rates to be paid employees in commerce or in the production of goods for commerce in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, namely:

(a) 17 cents per hour to employees engaged in hand-sewing or hand-lacing operations:

(b) 30 cents per hour to employees engaged in operations other than hand-sewing or hand-lacing operations; and

Whereas, pursuant to notices published in the FEDERAL REGISTER on November 22, 1947, and circulated to all interested persons, a public hearing upon the Committee's recommendations was held by me in Washington, D. C., on December 18, 1947, at which all interested parties were given an opportunity to be heard; and

Whereas, an opportunity was provided for any interested person appearing at the hearing to submit proposed findings and conclusions within 15 days after the close of hearing, no such proposed findings and conclusions have been filed, and the time for filing has expired; and

Whereas, upon reviewing all the evidence adduced in this proceeding and after giving consideration to the provisions of the act, particularly sections 5 and 8 thereof, I have concluded that the recommendations of the Committee with respect to the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, as defined, were made in accordance with law, are supported by the evidence adduced at the hearing, and, taking into consideration the same factors as are required to be considered by the Committee, will carry out the purposes of sections 5 and 8 of the act; and

Whereas, I have set forth my decision in a document entitled "Findings and Opinion of the Administrator in the Matter of the Recommendations of Special Industry Committee No. 5 for Puerto Rico for minimum wage rates in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico" dated this day, a copy of which may be had upon request addressed to the Wage and Hour Division, United States Department of Labor, Washington 25, D. C.; now, therefore, *It is ordered*, That:

Sec.
682.1 Approval of recommendations of Industry Committee.
682.2 Wage rates.
682.3 Notices of order.
682.4 Definition of the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and related products industries in Puerto Rico.

AUTHORITY: §§ 682.1 to 682.4, inclusive, issued under secs. 5 (e), 8, 52 Stat. 1062, 1064, as amended; 29 U. S. C. 205 (e), 208.

§ 682.1 *Approval of recommendations of Industry Committee.* The Commitee's recommendations are hereby approved.

§ 682.2 *Wage rates.* (a) Wages at the rate of not less than 17 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico who is engaged in hand-sewing or hand-lacing operations, and who is engaged in commerce or in the production of goods for commerce.

(b) Wages at the rate of not less than 30 cents per hour shall be paid under section 6 of the Fair Labor Standards Act by every employer to each of his employees in the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico who is engaged in operations other than hand-sewing or hand-lacing operations, and who is engaged in commerce or in the production of goods for commerce.

§ 682.3 *Notices of order.* Every employer employing any employees so engaged in commerce or the production of goods for commerce in the Leather, and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico shall post and keep posted in a conspicuous place in each department of his establishment where such employees are working such notices of this order as shall be prescribed from time to time by the Wage and Hour Division of the United States Department fo Labor and shall give such other notice as the Division may prescribe; and

§ 682.4 *Definition of the Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico.* The Leather and Skin Products Division of the Leather, Textile, Rubber, Straw, and Related Products Industries in Puerto Rico, to which this part shall apply, is hereby defined as follows:

This Division consists of the manufacture of products made from cured hides, skins, leather, or furs, except activities or products included in the Decorated Leather Button Division of the Leather, Textile, Rubber, Straw, and Related Products Industries or the Needlework Industries, as those industries in Puerto Rico are defined in the wage orders applicable thereto, or in the Shoe Manufacturing and Allied Industries or the Small Leather Goods and Related Products Industry, as those industries in Puerto Rico are defined in Administrative Order No. 367 appointing Special Industry Committee No. 5 for Puerto Rico.

Effective date. This wage order shall become effective March 22, 1948.

In accordance with the provisions of section 4 (c) of the Administrative Procedure Act (60 Stat. 237; 5 U. S. C., Supp., 1001), I find that there is good cause for giving less than 30 days notice of the promulgation of this order, since it appears that delay in making the order effective will work an undue hardship upon employers and employees in the industry.

Signed at Washington, D. C., this 2d day of March 1948.

Effective: March 22, 1948.

WM. R. MCCOMB,
Administrator,
Wage and Hour Division,
Department of Labor.

[F. R. Doc. 48-2016; Filed, Mar. 5, 1948; 9:13 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 201—GENERAL REGULATIONS

LENGTH OF TOWLINE

CROSS REFERENCE: For reinstatement of former § 201.16 (33 CFR, Cum. Supp., 201.16) which was revoked effective March 1, 1948 (13 F. R. 150) see § 207.495, *infra.*

PART 204—DANGER ZONE REGULATIONS

PART 207—NAVIGATION REGULATIONS

REVOCATION AND AMENDMENT

Sections 204.3, 204.12, 204.53, 204.81a, 204.81b and 204.82a are revoked, and the regulations governing the length of towlines on the connecting channels of the Great Lakes from Lake Huron to Lake Erie, formerly contained in Part 201—General Regulations (§ 201.16 (33 CFR, Cum. Supp.)), but not included in Part 201 as revised December 24, 1947 (published in 13 F. R. 150, January 10, 1948), inasmuch as they are not general in nature, are hereby transferred to Part 207 and continued in effect as § 207.495, as follows:

§ 204.3 *Waters of Sheepscot Bay, at mouth of Sheepscot River, Maine; Air to Ground Gunnery Range, Naval Air Station, Brunswick, Maine.* [Revoked]

§ 204.12 *Block Island Sound; Restricted Area, Naval Torpedo Testing Range, Fort Pond Bay, Montauk, L. I., N. Y.* [Revoked]

§ 204.53 *Mason Creek, Va.; Naval Operating Base, Norfolk, Va.* [Revoked]

§ 204.81a *Waters of the Atlantic Ocean; U. S. Naval Air Station, Jacksonville, Florida, gunnery and bombing target area, north of St. Marys Entrance.* [Revoked]

§ 204.81b *Waters of the Atlantic Ocean; U. S. Navy, Strafing and Anti-submarine Bombing Target Areas in vicinity of Amelia Island and Palm Valley, Florida.* [Revoked]

§ 204.82a *Waters of the Atlantic Ocean; U. S. Navy, Aerial Machine Gun Strafing Range and Bombing Target Area in vicinity of St. Augustine, Florida.* [Revoked]

§ 207.495 *Connecting waters of the Great Lakes from Lake Huron to Lake Erie; length of towlines.* On the connecting waters of the Great Lakes be-

tween the Lake Huron Lightship and the southerly limit of the improved channels of the Detroit River, terminating in Lake Erie, the length of towlines shall not exceed by more than 50 feet the length of the scow, barge, vessel, or other craft being towed: *Provided*, that no scow, barge, vessel, or other craft shall be required to have a towline less than 250 feet. The length of the towline shall be measured from the stern of one vessel to the bow of the following vessel.

[Regs. Feb. 28, 1948, CE–ENGWR] (40 Stat. 266, 892; 33 U. S. C. 1, 3)

[SEAL] EDWARD F. WITSELL,
Major General,
The Adjutant General.

[F. R. Doc. 48-2015; Filed, Mar. 5, 1948; 8:56 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2409]

PART 4—DELEGATIONS OF AUTHORITY

FISH AND WILDLIFE SERVICE

Section 4.561 is added to Part 4 to read as follows:

§ 4.561 *Delegation to Director and Assistant Directors.* The Director and the Assistant Directors of the Fish and Wildlife Service are each authorized to enter into agreements for the acquisition of lands or of interests in land whenever such lands or interests in land are to be acquired for administration through the Fish and Wildlife Service pursuant to any act of Congress. (Sec. 3, 60 Stat. 238; 5 U. S. C. Sup. 1002)

Departmental Order No. 2087 of August 21, 1945 (unpublished), is superseded.

Issued this 26th day of February 1948.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

[F. R. Doc. 48-1995; Filed, Mar. 5, 1948; 8:59 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 449]

NEW MEXICO

REVOKING IN PART EXECUTIVE ORDER NO. 9109 OF MARCH 21, 1942, AS AMENDED WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 9109 of March 21, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing public lands for the use of the War Department for military purposes, is hereby revoked so far as it affects the hereinafter-described lands.

The jurisdiction over and use of such lands granted to the War Department by Executive Order No. 9109 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government, according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 30, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 30, 1948, to July 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 10, 1948, to April 30, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 30, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 31, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from July 12, 1948, to July 31, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 31, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Las Cruces, New Mexico.

The lands affected by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 23 S., R. 18 W.,
Sec. 12;
Sec. 13, E½ and SW¼.

The areas described aggregate 1,120 acres.

The land varies from level to rolling, rough and rocky arid desert.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

FEBRUARY 27, 1948.

[F. R. Doc. 48-1996; Filed, Mar. 5, 1948; 8:47 a. m.]

[Public Land Order 450]

NEW MEXICO

REVOKING PUBLIC LAND ORDER NO. 55 OF NOVEMBER 5, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT AS PRACTICE BOMBING RANGES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 55 of November 5, 1942, withdrawing the hereinafter-described lands for use of the War Department as practice bombing ranges is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 55 shall cease upon the date of signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interest then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 30, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 30, 1948, to July 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World

War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 10, 1948, to April 30, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 30, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 31, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from July 12, 1948, to July 31, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 31, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Acting Manager, District Land Office, Las Cruces, New Mexico.

The lands affected by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 22 S., R. 32 E.,
Sec. 13.
T. 19 S., R. 33 E.,
Sec. 4.
T. 22 S., R. 33 E.,
Sec. 12, N½.
T. 19 S., R. 34 E.,
Sec. 29.

The areas described aggregate 2,248.52 acres.

The lands are rolling desert, supporting a scattered growth of mesquite and shinnery with a fair growth of grama grass.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

FEBRUARY 27, 1948.

[F. R. Doc. 48–1997; Filed, Mar. 5, 1948; 8:47 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 340–A]

PART 95—CAR SERVICE

MINIMUM LOADING OF CARLOAD TRANSFER FREIGHT REQUIRED

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 1st day of March A. D. 1948.

Upon further consideration of Revised Service Order No. 340 (10 F. R. 13827), as amended (11 F. R. 562, 7283, 13113; 12 F. R. 2926, 7595), and good cause appearing therefor: *It is ordered*, That:

Section 95.340 Revised Service Order No. 340, be, and it is hereby, vacated and set aside.

It is further ordered, That this order shall become effective at 12:01 A. M., March 5, 1948; that a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 1, 24 Stat. 379 as amended; 49 U. S. C. 1 (10)–(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 48–2003; Filed, Mar. 5, 1948; 8:55 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 01—ORGANIZATION AND PROCEDURE

ACQUISITION OF LANDS

CROSS REFERENCE: For authorization of the Director and Assistant Director of the Fish and Wildlife Service to enter into agreements for the acquisition of lands, which affects the delegations of authority listed in § 01.51, see Title 43, Part 4, *supra*.

PROPOSED RULE MAKING

TREASURY DEPARTMENT

United States Coast Guard

[46 CFR, Parts 28, 30, 31, 32, 33, 34, 35, 38, 52, 55, 56, 57, 58, 59, 60, 61, 63, 76, 77, 79, 94, 95, 97, 113, 114, 116, 146, 160]

[CGFR 48–7]

INSPECTION AND NAVIGATION REGULATIONS

MERCHANT MARINE COUNCIL PUBLIC HEARING; NOTICE OF PROPOSED CHANGES

1. The Merchant Marine Council will hold a public hearing in Room 4120, Coast Guard Headquarters, 13th and E Streets NW., Washington, D. C., on March 30 and 31, 1948. The meetings will convene at 9:30 a. m. and the agenda for this hearing is as follows:

March 30. Tank vessel regulations; marine engineering regulations; regulations governing the transportation of explosives or other dangerous articles or substances, and combustible liquids on board vessels; regulations requiring parachute flare distress signals as lifeboat equipment; regulations pertaining to fire alarm zoning on board vessels; regulations on buoyant cushions, ring life buoys, cork (sheet), and balsa wood; and regulations on gas freeing of bunkers prior to repairs involving heating or flame.

March 31. New specifications for kapok buoyant cushions, cork or balsa wood ring life buoys, cork (sheet), balsa wood, parachute flare distress signals, and signal pistols.

2. The proposed changes in the regulations together with the authorities for making such changes are generally described by subjects in paragraphs 4 to 19, inclusive, below. Copies of the proposed changes in the regulations have been mailed to persons and organizations who have expressed an active interest in the subjects under consideration. Copies of any of the proposed regulations may be obtained from the Commandant (CMC), Coast Guard Headquarters, Washington 25, D. C., so long as they are available. After all extra copies available for distribution are exhausted, copies will be avail-

able for reading purposes only in Room 4108, Coast Guard Headquarters, or at the offices of the various Coast Guard District Commanders.

3. Comments on the proposed changes in the regulations are requested which may be submitted in writing for receipt prior to March 30th by the Commandant (CMC), Coast Guard Headquarters, Washington 25, D. C., or presented orally or in writing at the hearing. In order to insure thorough consideration and to facilitate checking and recording of comments, it is requested that each reworded proposed regulation be submitted on a separate sheet of letter-size paper showing the section number as given in the agenda (if not possible then the subject); the proposed change; and the name, business firm (if any), and address of submitter. The written comments should be submitted as soon as possible so that they will be received prior to March 30th in order to insure consideration at the hearing and before recommendations are made concerning the proposed regulations.

TANK VESSEL REGULATIONS

4. The regulations in 46 CFR 30.3, 31.3–2, 31.4–1, 31.4–2, 32.1–6 (b), 32.2–3, 32.2–4, 32.5–2, 32.5–5, 32.7–4, 32.7–6, 32.8–2, 32.8–4 (a), 32.9–10, 33.2–1, 33.3–2 (1), 34.2–4, 34.3–5 (b), 34.3–13, 34.3–14, 34.5–6, 35.1–3, 35.1–4 (b), 35.4–2, 35.4–5, 35.5–5, 35.5–6, 35.5–8, 35.5–12, and Part 38 (Subchapter D—Tank Vessels) are to be amended in order to clarify the intent of the existing regulations, effect editorial changes, establish additional safety requirements on the basis of experience obtained from operation, and permit certain practices employed by the industry in the construction, repair, and operation of tank vessels. The regulations covering the cargo transfer operations are to be revised to require the master or senior deck officer on duty to exercise his skill and experience with due regard to attendant conditions and circumstances, including consideration for location of shore side facilities, maintenance of mobility, provision for fire protection, state or change of winds, tides, sea, weather conditions, forces of nature, and other circumstances generally beyond human control, and to prepare a Declaration of Inspection in duplicate, the original of which will be retained on board the vessel and the duplicate copy furnished the terminal superintendent or his representative. Additional safety requirements which experience indicates to be desirable covering the construction and alterations of tank vessels for the transportation of liquefied petroleum gases have been added and existing regulations revised.

5. The authority for tank vessel regulations is in R. S. 4405, 4417a, as amended, sec. 2, 54 Stat. 1028, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 375, 391a, 463a, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

MARINE ENGINEERING REGULATIONS

6. The regulations in 46 CFR 52.1–2, 52.13–2, 52.2–2, 52.5–2, 55.19–3, 55.19–6, 55.19–8, 55.19–12, 55.19–13, 55.19–15, 56.20–19, 57.21–24, 57.21–25, 57.21–26, 57.21–27, 57.21–28, 57.21–29, 57.21–30, 57.21–31, and 58.2 (Subchapter F—Marine Engineering) are to be amended in order to clarify the existing regulations, effect editorial changes, and bring the requirements into closer agreement with the rules of the American Bureau of Shipping, heating boiler code of the American Society of Mechanical Engineers, and the rules for fusion welding piping of the American Welding Society. Where the regulations have been at variance with accepted standard practices of the industry they have been changed to conform to the common practices employed by the industry in the construction and repair of merchant vessels. The regulations pertaining to existing boilers constructed prior to July 1, 1935, are to be changed to require a gradual increase in the factor of safety of boilers constructed with longitudinal lap riveted seams to insure a higher degree of safety.

7. The authority for regulations on marine engineering is in R. S. 4405, 4417a, 4418, 4426, 4429–4434, as amended, 49 Stat. 1544, 54 Stat. 346, 1026, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391a, 392, 404, 407–412, 463a, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

REGULATIONS GOVERNING THE TRANSPORTATION OF EXPLOSIVES OR OTHER DANGEROUS ARTICLES OR SUBSTANCES, AND COMBUSTIBLE LIQUIDS ON BOARD VESSELS

8. It is proposed to amend 46 CFR 146.23–10, 146.24–2 and 146.24–100, and to add a new section 146.25–16 (Subchapter N—Explosives or Other Dangerous Articles or Substances, and Combustible Liquids on Board Vessels) as a result of proposals submitted by industry and to reword the definition of a compressed gas to agree with the definition given in Supplement No. 16 of the Interstate Commerce Commission's Regulations for Transportation of Explosives and Other Dangerous Articles by Freight. One of the major users of sulfuric acid has petitioned the Coast Guard to amend 46 CFR 146.23–10 in order to authorize the bulk transportation of sulfuric and spent acid of a specific gravity lower than now permitted to be carried in rubber or lead lined independent tanks or lined tanks where the bulkhead may form a part of the tank. One of the major chemical producers and shippers of anhydrous ammonia has petitioned the Coast Guard to amend the regulations so as to authorize the movement by water of anhydrous ammonia in independent pressure vessel type containers secured to the vessel. It is proposed, therefore, to add a new § 146.24–16 *Anhydrous ammonia in bulk* and to amend § 146.24–100, *Table G, Classification: Compressed Gases.*

9. The authority for regulations governing the transportation of explosives or other dangerous articles or substances and combustible liquids on board vessels is in R. S. 4472, as amended, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 170, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

REGULATIONS REQUIRING PARACHUTE FLARE DISTRESS SIGNALS AS LIFEBOAT EQUIPMENT

10. It is proposed to amend 46 CFR 33.3–1 (y), 33.3–2 (e), 37–10.5, 59.11 (f), 60.9 (f), 76.14 (e), 76.14 (s) by deleting the specification requirements for distress signals and pistols and to revise the regulations so that means of projecting the flare signals, other than a pistol, may be carried as lifeboat equipment if approved. The specifications to be canceled by this action will be revised and transferred to 46 CFR Part 160 as new specifications. This cancellation and restating of specifications are in accordance with Coast Guard policy to separate substantive regulations applicable to shipowners and operators from those regulations which principally concern manufacturers of approved items of equipment.

11. The authority for regulations on parachute flare distress signals is in R. S. 4405, 4417a, 4488, 4491, as amended, 49 Stat. 1544, 54 Stat. 346, and Sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391a, 481, 489, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

REGULATIONS PERTAINING TO FIRE ALARM ZONING ON BOARD VESSELS

12. It is proposed to amend 46 CFR 61.17 (b) (4), 77.17 (b) (4), 95.16 (b) (4), and 114.17 (b) (4) in order that watertight or main vertical zone bulkheads shall form the boundaries of fire zones. It was previously required that fire alarm zones could not exceed 100 feet in length in addition to the requirement relative to watertight and fire bulkheads. The spacing of watertight bulkheads will never exceed 100 feet and the spacing of main vertical zone bulkheads may not exceed 131 feet. It is believed that the use of such bulkheads to form natural boundaries of zones will be less confusing than the selection of arbitrary lines on a drawing. It was previously required that where watertight bulkheads did not extend to the weather deck, the 'tween-deck spaces would be zoned as if the watertight bulkheads were extended. It is proposed to eliminate this feature and permit the zones to be bounded only by actual watertight or main vertical zone bulkheads. In the event that a system is installed which indicates not only the zone but also the actual space involved, it is proposed to permit one zone to extend to more than one deck provided such a zone does not include spaces separated by watertight or main vertical zone bulkheads.

13. The authority for regulations on fire alarm zoning is in R. S. 4405, 4417, 4418, 4426, 4470, 4471, as amended, 49 Stat. 1544, 54 Stat. 346, 1028, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391, 392, 404, 463, 463a, 464, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

REGULATIONS CONCERNING BUOYANT CUSHIONS, RING LIFE BUOYS, CORK (SHEET), AND BALSA WOOD

14. It is proposed to amend 46 CFR 28.4–1, 28.4–2, 28.4–3, 28.4–7, 28.4–8, 28.4–9, 33.7–1, 37.6–3, 37.8–10, 59.55 (e), 59.56, 60.48 (e), 60.49, 76.52 (e), 76.53, 94.52 (e), 94.53, 113.44 (e), and 113.46 by deleting specification requirements for buoyant cushions, ring life buoys, cork (sheet), and balsa wood, which apply mainly in

manufacturing the life-saving devices. The specifications to be canceled by this action will be modified and transferred to 46 CFR Parts 160 and 164 as new specifications. This cancellation and restating of specifications are in accordance with Coast Guard policy to separate substantive regulations applicable to shipowners and operators from those regulations which principally concern manufacturers of approved items of equipment.

15. The authority for regulations on buoyant cushions, ring life buoys, cork (sheet), and balsa wood is in R. S. 4405, 4417a, 4426, 4482, 4488, and 4491, as amended, sec. 11, 35 Stat. 428, as amended, 49 Stat. 1544, 54 Stat. 163–167, 346, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391a, 396, 404, 475, 481, 489, 526–526t, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

REGULATIONS CONCERNING GAS FREEING OF BUNKERS PRIOR TO REPAIRS INVOLVING HEATING OR FLAME

16. It is proposed to amend 46 CFR 63.5, 79.5, 97.5 and 116.5 by changing the headnote, lettering present paragraphs (a) and (b), and by adding a new paragraph (c) which will establish conditions under which repair work, involving riveting, welding, burning and like fire-producing operations, may be made in or on the boundaries of tanks which have contained inflammable or combustible liquids in bulk on cargo or passenger vessels. The purpose of this change is to prevent fires and the need for such a regulation is indicated by the recent loss of a vessel as a result of welding the fuel oil tank top while the tank was not in a gas free condition.

17. The authority for regulations on gas freeing of bunkers prior to repairs involving heating or flame is in R. S. 4405, 4417, 4426, as amended, 49 Stat. 1544, 54 Stat. 346, 1028, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391, 404, 463a, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

SPECIFICATIONS

18. It is proposed to add new specifications to 46 CFR Parts 160 and 164, as new subparts 160.007 160.008, 160.009, 160.024, 160.036, and 164.001 and 164.002, respectively. The purpose of these new specifications is to establish a minimum standard for manufacturers to follow when manufacturing kapok buoyant cushions for motorboats of classes A, 1, or 2 not carrying passengers for hire (both standard and non-standard types); cork or balsa wood ring life buoys; parachute flare distress signals; and signal pistols; as well as minimum requirements for sheet cork or balsa wood to be used in lifesaving devices. These specifications contain requirements previously published in other regulations applicable to shipowners and operators. The restatement of specification requirements is in accordance with Coast Guard policy to separate those regulations which principally concern manufacturers from the substantive regulations applicable to shipowners and operators for items of equipment required to be approved by the Commandant, U. S. Coast Guard.

19. The authority for regulations on specifications covering kapok buoyant cushions for motorboats of classes A, 1, or 2 not carrying passengers for hire (both standard and non-standard types), cork or balsa wood ring life buoys, parachute flare distress signals, signal pistols; cork (sheet), and balsa wood is in R. S. 4405, 4417a, 4426, 4482, 4488, and 4491, as amended, sec. 11, 35 Stat. 428, as amended, 49 Stat. 1544, 54 Stat. 163–167, 346, and sec. 5 (e), 55 Stat. 244; 46 U. S. C. 367, 375, 391a, 396, 404, 475, 481, 489, 526–526t, 1333, 50 U. S. C. 1275; and sec. 101, Reorganization Plan No. 3 of 1946, 11 F. R. 7875.

Dated: March 1, 1948.

[SEAL] J. F. FARLEY,
Admiral, U. S. Coast Guard,
Commandant.

[F. R. Doc. 48-2018; Filed, Mar. 5, 1948; 8:57 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[P. & S. Docket No. 298]

ST. JOSEPH STOCKYARDS CO.

NOTICE OF PETITION FOR MODIFICATION

Pursuant to the provisions of the Packers and Stockyards Act, 1921, as amended (7 U. S. C. 181 et seq.), the Secretary of Agriculture issued an order on April 21, 1947 (6 A. D. 319), providing for certain temporary rates and charges for the respondent stockyards for a period ending April 23, 1948.

By petition filed on February 27, 1948, the respondent has requested that the said temporary rates and charges of the respondent stockyards should be extended for an indefinite period and modified as follows:

	Present rate	Proposed rate
Cattle:		
Rail and truck	$0.60	$0.67
Direct	.30	.34
Resale—Commission division	.60	.67
Calves:		
Rail and truck	.41	.44
Direct	.21	.22
Resale—Commission division	.41	.44
Hogs:		
Rail and truck	.19	.22
Direct	.10	.11
Resale—Commission division	.19	.22
Sheep:		
Rail and truck	.13	.15
Direct	.07	.08
Resale—Commission division	.13	.15
Horses and mules: Rail and truck	.60	.67

The respondent has requested also that it be permitted to establish a new charge in its tariff for driving livestock to railroad loading chutes according to the following schedule:

Species	Kind of cars	Rate
Cattle	Single deck	$2.00
Calves	do	1.00
Do	Double deck	2.00
Hogs	Single deck	1.00
Do	Double deck	2.00
Sheep	do	2.00

The respondent requests further that it be permitted to establish new charges in its tariff for yardage on reweighs and/or resales in other than the commission division by dealers to buyers at the market as follows:

	Cents per head
Cattle	20
Calves (400 pounds or under)	12
Hogs	7
Sheep	5

The proposed modifications and charges will produce additional gross revenue to the respondents. It appears, therefore, that public notice should be given of the filing of such petition in order that all interested persons may have an opportunity to be heard in the matter.

Now, therefore, notice is hereby given to the public and to all interested persons of the filing of such petition.

All interested persons who desire to be heard upon the matter requested in said petition shall notify the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., within 15 days from the date of publication of this notice.

Copies hereof shall be served upon the respondent by registered mail or in person.

Done at Washington, D. C., this 2d day of March 1948.

[SEAL] H. E. REED,
Director, Livestock Branch, Production and Marketing Administration.

[F. R. Doc. 48-2060; Filed, Mar. 5, 1948; 9:00 a. m.]

[P. & S. Docket No. 344]

UNION STOCK YARDS CO. OF OMAHA, LTD.

NOTICE OF PETITION FOR MODIFICATION

Pursuant to the provisions of the Packers and Stockyards Act, 1921, as amended (7 U. S. C. 181 et seq.), the Secretary of Agriculture has issued orders on August 30, 1946 (5 A. D. 609), September 27, 1946 (5 A. D. 685) and September 2, 1947 (6 A. D. 911) authorizing the respondent to assess certain temporary rates and charges set out in its tariff No. 11 and supplements thereto now on file with the Livestock Branch, Production and Marketing Administration.

By petition filed on February 17, 1948, the respondent has requested authorization to substitute the following rates and charges for similar rates and charges now authorized:

(a) *Yardage charges.* (1) All livestock received, and

(2) All livestock reweighed or resold:

	Per head
Cattle (except bulls 700 pounds or over)	$0.70
Bulls (minimum 700 pounds)	1.00
Calves (maximum 400 pounds)	.40
Hogs	.24
Sheep or goats	.15
Horses or mules	.70

Exceptions. (1) Yardage will not be assessed against livestock handled for the railroads, unloaded for feed, water, and

rest, unless such stock changes ownership.

(2) Yardage will not be assessed against livestock forwarded to other markets or returned to point of origin subject to the following conditions:

First: Must not be sold or weighed.

Second: Must not change ownership.

Third: Must be forwarded in the same name as originally consigned.

(3) Yardage charges on slaughter livestock consigned direct to packers will be at the following rates, provided packers accept delivery of stock at unloading chutes and remove stock from premises as soon as weighed:

	Cents per head
Cattle (except bulls 700 pounds or over)	35
Bulls (minimum 700 pounds)	50
Calves	20
Hogs	12
Sheep or goats	7

(4) Livestock resold or reweighed, other than through a commission firm, in these yards for local delivery will be assessed the following yardage charges:

	Cents per head
Cattle	23
Calves	14
Hogs	8
Sheep or goats	5

(5) Livestock resold or reweighed, other than through a commission firm, in these yards for shipment off the market, the following charges will apply:

	Cents per head
Cattle	11
Calves	7
Hogs	5
Sheep or goats	2
Horses or Mules	12

(b) *Feed, feeding and bedding.* The prices shall be based upon the average inventory prices plus 70 cents per cwt. on hay and alfalfa; 60 cents per cwt. on straw; 60 cents per bushel on corn and wheat, and 40 cents per bushel on oats.

(1) When other feed is requested, it will be furnished by special arrangement, if obtainable.

(2) Bedding placed in cars is charged against Line Carrier, except in occasional cases where shipper, through his agent, orders cars bedded, and pays for bedding in advance.

(3) When livestock is fed, watered or bedded in cars, a charge of $1.00 per deck will be made, in addition to the regular charge for feed and bedding used.

(4) On prairie and alfalfa hay delivered on the fence, not fed, in ton lots or more, for one owner, the price will be 10¢ per cwt. less than the above charges.

Inasmuch as the authorization petitioned for will produce additional revenue for the respondent and increase yardage charges as well as charges for feed, feeding, and bedding, to the public, it appears that notice of the filing of the petition should be given to the public in order that all interested persons may have an opportunity to be heard in the matter.

Now, therefore, notice of the filing of the petition is hereby given to the public and to all interested persons. All interested persons who desire to be heard upon the matter requested in said petition shall notify the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., within 15 days from the date of the publication of this notice.

Done at Washington, D. C., this 2d day of March, 1948.

[SEAL] H. E. REED,
Director, Livestock Branch, Production and Marketing Administration.

[F. R. Doc. 48-2061; Filed, Mar. 5, 1948; 9:00 a. m.]

NOTICES

TREASURY DEPARTMENT

Bureau of Customs

[T. D. 51849]

"NO CONSUL" LIST

REMOVAL OF CERTAIN PLACES FROM LIST

MARCH 2, 1948.

In accordance with a recommendation from the Department of State, Cobija, Guayaramerin, Riberalta, Rurrenabaque, and Villa Bella, Bolivia, are hereby removed from the "No consul" list (1947) T. D. 51797.

Invoices certified after the date of publication of this decision in the weekly Treasury Decisions, covering shipments from the above-named places, shall be accepted by collectors of customs only when certified by an American consular officer, as provided in section 482 (a), Tariff Act of 1930.

[SEAL] W. R. JOHNSON,
Deputy Commissioner.

[F. R. Doc. 48-2019; Filed, Mar. 5, 1948; 8:57 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Misc. 2098121]

NEVADA

ORDER OPENING LANDS TO MINING LOCATION, ENTRY AND PATENTING

Under authority and pursuant to the provisions of the Act of April 23, 1932 (47 Stat. 136, 43 U. S. C. sec. 154) and the regulations thereunder, and subject to (1) valid existing rights, and (2) the terms of the following quoted stipulations, it is hereby ordered that, what would ordinarily be if surveyed, the SE¼ sec. 36, T. 31 S., R. 65 E.; and lots 7, 8, 9, 10, 11, 12, 13, NE¼SW¼ sec. 31, T. 31 S., R. 66 E., M. D. M., Nevada, be, and the same are hereby opened to location, entry and patenting under the general mining laws, the quoted stipulations to be executed and acknowledged in favor of the United States by the locators, for their heirs, successors and assigns, and recorded in the county records and in the United States Land Office at Carson City, Nevada, before locations are made:

There is reserved to the United States, its successors and assigns, the prior right to use any of the lands hereinabove described, to construct, operate, and maintain dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, and appurtenant irrigation structures, without any payment made by the United States or its successors for such right, with the agreement on the part of the Locators that if the construction of any or all of such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over or upon said lands should be made more expensive by reason of the existence of improvements or workings of the Locators thereon, such additional expense is to be estimated by the Secretary of the Interior, whose estimate is to be final and binding upon the parties hereto, and that within thirty days after demand is made upon the Locators for payment of any such sums, the Locators will make payment thereof to the United States or its successors constructing such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over, or upon said lands. The Locators further agree that the United States, its offices, agents, and employees and its successors and assigns shall not be held liable for any damage to the improvements or workings of the Locators resulting from the construction, operation, and maintenance of any of the works hereinabove enumerated.

In carrying on any operations related to the exploitation of the mineral deposits contained in the above-described lands, the Locators shall not pile, dump, or in any manner use or dispose of any rock, tailings, sludge, acids or chemicals, waste materials, rubbish or debris of any kind whatsoever, in such manner that any of such things will be, or in any manner could be, carried or introduced into the reservoir formed by Davis Dam, as presently constructed or as hereafter completed or enlarged. The Locators shall not engage in any opeations on the above-described lands other than those which, in the judgment of the Secretary of the Interior, whose decision shall be final and binding on the parties hereto, are reasonably appropriate for or incidental to the exploitation of the mineral deposits contained in said lands.

The provisions and agreements hereinabove set out shall be binding on the Locators, their successors and assigns.

Any location or entry made and any patent issued for the above-described land will be subject to and contain a reference to the above quoted stipulations and to the volume and page where they are recorded in the county records.

This order shall not become effective to change the status of the lands until 10:00 a. m. on May 3, 1948, at which time the lands shall, subject to valid existing

rights and the provisions of existing withdrawals and of this order, become subject to disposition under the United States mining laws only, as above provided.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

MARCH 1, 1948.

[F. R. Doc. 48-1998; Filed, Mar. 5, 1948; 8:48 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 6787]

USE OF RECORDING DEVICES IN CONNECTION WITH TELEPHONE SERVICE

ORDER POSTPONING HEARING DATE

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 26th day of February 1948;

The Commission, having under consideration its order herein adopted on November 26, 1947, and its order adopted on January 7, 1948, postponing the effective date of the order of November 26, 1947, from January 15, 1948, to March 1, 1948; and also having under consideration the various petitions and statements which have been filed by the parties herein since the issuance of the above order of November 26, 1947;

It appearing that the Commission will be unable to reach a determination with respect to the questions raised by the aforementioned petitions and statements by March 1, 1948, and that it is therefore desirable and appropriate to extend the present effective date of its order of November 26, 1947, herein;

It is ordered, That the effective date of the Commission's order of November 26, 1947, herein is postponed from March 1, 1948, to April 1, 1948.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48-2022; Filed, Mar. 5, 1948; 8:49 a. m.]

[Docket Nos. 7279, 7281, 7283, 7293, 8554, 8556, 8557, 8630, 8631, 8651, 8655, 8737-8742, 8745-8750]

NEW ENGLAND THEATRES, INC., ET AL.

ORDER SETTING HEARING DATE AND POSTPONING GENERAL HEARING

In re applications of New England Theatres, Inc., Boston, Massachusetts, Docket No. 8557, File No. BPCT-140; Boston Metropolitan Television Company, Boston, Massachusetts, Docket No. 8630, File No. BPCT-203; New England Television Company, Inc., Boston, Massachusetts, Docket No. 8631, File No. BPCT-210; Massachusetts Broadcasting Corporation, Boston, Massachusetts, Docket No. 8651, File No. BPCT-219; Columbia Broadcasting System, Inc., Boston, Massachusetts, Docket No. 8738, File No. BPCT-247; Matheson Radio Company, Inc., Boston, Massachusetts, Docket No. 8739, File No. BPCT-248; E. Anthony & Sons, Inc., Boston, Massachusetts, Docket No. 8740, File No. BPCT-249; Cherry & Webb Broadcasting Company, Providence, Rhode Island, Docket No. 8737, File No. BPCT-223; The Yankee Network, Inc., Boston, Massachusetts, Docket No. 8741, File No. BMPCT-141; Don Lee Broadcasting System, San Francisco, California, Docket No. 7281, File No. B5-PCT-22; S. H. Patterson, San Francisco, California, Docket No. 8745, File No. BPCT-225; Krow, Inc., Oakland, California, Docket No. 8746, File No. BPCT-235; Television Productions, Inc., San Francisco, California, Docket No. 7283, File No. B5-PCT-151; Interstate Circuit, Inc., Dallas, Texas, Docket No. 8556, File No. B3-PCT-94; Texas Television, Dallas, Texas, Docket No. 8748, File No. BPCT-238; A. H. Belo Corporation, Dallas, Texas, Docket No. 8749, File No. BPCT-240; Variety Broadcasting Company, Inc., Dallas, Texas, Docket No. 8750, File No. BPCT-265; Allen B. Dumont Laboratories, Inc., Cleveland, Ohio, Docket No. 7293, File No. B2-PCT-161; United Broadcasting Company, Cleveland, Ohio, Docket No. 8650, File No. BPCT-216; The WGAR Broadcasting Company, Cleveland, Ohio, Docket No. 8649, File No. BPCT-214; WJW, Inc., Cleveland, Ohio, Docket No. 8742, File No. BPCT-250; Cleveland Broadcasting, Inc., Cleveland, Ohio, Docket No. 8773, File No. BPCT-279; United Detroit Theatres Corporation, Detroit, Michigan, Docket No. 7279, File No. B2-PCT-50; WJR, The Goodwill Station, Inc., Detroit, Michigan, Docket No. 8648, File No. BPCT-212; The Fort Industry Company, Detroit, Michigan, Docket No. 8554, File No. BMPCT-80; Allen B. Dumont Laboratories, Inc., Cincinnati, Ohio, Docket No. 8655, File No. B2-PCT-163; for television facilities.

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 26th day of February 1948,

It is ordered, That the hearing heretofore scheduled to begin on March 1, 1948, at Washington, D. C., on Issues 5 and 6 in the notices designating the above-entitled applications for hearing, is hereby postponed to May 10, 1948, at Washington, D. C., and,

It is further ordered, That hearings be held on the issues other than Issues Nos. 5 and 6 contained in the orders designating the above applications for hearing in the following cities on the dates indicated:

(a) In Detroit, Michigan, on March 15 to 17, 1948, on the applications in Docket Nos. 7279, 8648 and 8554.

(b) In Cleveland, Ohio, on March 18 to 24, 1948, on the applications in Docket Nos. 7293, 8650, 8649, 7298 and 8773.

(c) In San Francisco, California, on April 5 to 9, 1948, on the applications in Docket Nos. 7281, 8745, 8746 and 7283.

(d) In Dallas, Texas, on April 13 to 16, 1948, on the applications in Docket Nos. 8556, 8748, 8749 and 8750.

(e) In Boston, Massachusetts, on April 26 to May 7, 1948, on the applications in Docket Nos. 8557, 8630, 8631, 8651, 8738, 8739, 8740, 8737 and 8741.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48-2021; Filed, Mar. 5, 1948; 8:49 a. m.]

[Docket Nos. 7346, 7942, 8210]

OHIO-MICHIGAN BROADCASTING CORP. ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Ohio-Michigan Broadcasting Corporation, Toledo, Ohio, Docket No. 7346, File No. BP-4046; Abe Lapides, Pontiac, Michigan, Docket No. 7942, File No. BP-5331; Public Service Broadcasters, Inc., Toledo, Ohio, Docket No. 8210, File No. BP-5538; for construction permits.

At a session of the Federal Communications Commission, held at its offices in Washington, D. C., on the 27th day of February 1948;

The Commission having under consideration the above-entitled applications of Ohio-Michigan Broadcasting Corporation and Public Service Broadcasters, Inc., each requesting a construction permit for a new standard broadcast station to operate on the frequency 730 kc, with 250 w power, daytime only, in Toledo, Ohio; and the application of Abe Lapides requesting a construction permit for a new standard broadcast station to operate on the frequency 730 kc, with 1 kw power, employing a directional antenna, daytime only, in Pontiac, Michigan;

It is ordered, That, pursuant to section 309 (a) of the Communications Act of 1934, as amended, the said applications be, and they are hereby, designated for hearing in a consolidated proceeding at a time and place to be designated by subsequent order of the Commission, upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant Abe Lapides and of the applicant corporations, its officers, directors and stockholders to construct and operate their proposed stations.

2. To determine the areas and populations which may be expected to gain or lose primary service from the operation of the proposed station and the character of other broadcast service available to those areas and populations.

3. To determine the type and character of program service proposed to be rendered and whether it would meet the requirements of the populations and areas proposed to be served.

4. To determine whether the operation of the proposed stations would involve objectionable interference with any existing broadcast stations and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

5. To determine whether the operation of the proposed stations would involve objectionable interference each

with the other or with the services proposed in any other pending applications for broadcast facilities and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

6. To determine whether the installation and operation of the proposed stations would be in compliance with the Commission's rules and Standards of Good Engineering Practice Concerning Standard Broadcast Stations.

7. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2040; Filed, Mar. 5, 1948; 8:52 a. m.]

[Docket Nos. 7125, 7601]

TULARE-KINGS COUNTIES RADIO ASSOCIATES (KTKC) AND J. E. RODMAN (KERE)

ORDER CONTINUING HEARING

In re application of J. E. Richmond, Percy M. Writeside, Homer W. Wood, Morley M. Maddox and Charles A. Whitmore, d/b as Tulare-Kings Counties Radio Associates (KTKC), Visalia, California, Docket No. 7601, File No. BP-3909; J. E. Rodman (KERE), Fresno, California, Docket No. 7125, File No. BP-3757; for construction permits.

The Commission having under consideration a joint petition filed February 26, 1948, by Tulare-Kings Counties Radio Associates (KTKC), Visalia, California, and J. E. Rodman (KFRE), Fresno, California, requesting a 60-day continuance of the hearing in the consolidated proceeding on their respective applications for construction permits, which is now scheduled to be heard on March 2, 1948, at Washington, D. C.;

It is ordered, This 27th day of February 1948, that the petition be, and it is hereby, granted; and that the said hearing on the above-entitled applications be, and it is hereby, continued to 10:00 a. m., Thursday, May 6, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2029; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket Nos. 8030, 8789]

LEADER PUBLISHING CO. AND ENID BROADCASTING CO.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Leader Publishing Company, Guthrie, Oklahoma; Docket No. 8789, File No. BP-6577; Enid Broadcasting Company, Enid, Oklahoma; Docket No. 8030, File No. BP-5489; for construction permits.

At a session of the Federal Communications Commission, held at its offices in Washington, D. C., on the 27th day of February 1948.

The Commission having under consideration the above-entitled application of Leader Publishing Company requesting a construction permit for a new standard broadcast station to operate on the frequency 1490 kc, with 250 w power, unlimited time, in Guthrie, Oklahoma; and

It appearing, that the Commission on December 19, 1946, designated for hearing the above-entitled application of Enid Broadcasting Company (File No. BP-5489; Docket No. 8030) requesting a construction permit for new standard broadcast station to operate on the frequency 1490 kc, with 250 w power, unlimited time, in Enid, Oklahoma; and that hearing thereon is scheduled for March 15, 1948, at Washington, D. C., and;

It further appearing, that it would be convenient to the Commission in the orderly dispatch of its business to change the place of hearing on the application of Enid Broadcasting Company from Washington, D. C., to Enid, Oklahoma;

It is ordered, That the place for hearing on the application of Enid Broadcasting Company be, and it is hereby, changed from Washington, D. C., to Enid, Oklahoma;

It is further ordered, That, pursuant to section 309 (a) of the Communications Act of 1934, as amended, the said application of Leader Publishing Company be, and it is hereby, designated for hearing in a consolidated proceeding with the application of Enid Broadcasting Company to be held on March 15 and 16, 1948, at Enid, Oklahoma and Guthrie, Oklahoma, respectively, upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant corporation, its officers, directors and stockholders to construct and operate the proposed station.

2. To determine the areas and populations which may be expected to gain or lose primary service from the operation of the proposed station and the character of other broadcast service available to those areas and populations.

3. To determine the type and character of program service proposed to be rendered and whether it would meet the requirements of the populations and areas proposed to be served.

4. To determine whether the operation of the proposed station would involve objectionable interference with any existing broadcast station and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

5. To determine whether the operation of the proposed station would involve objectionable interference with the other application in this proceeding or with the services proposed in any other pending applications for broadcast facilities and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

6. To determine whether the installation and operation of the proposed station would be in compliance with the Commission's rules and Standards of Good Engineering Practice Concerning Standard Broadcast Stations.

7. To determine on a comparative basis which, if either, of the applications in this consolidated proceeding should be granted.

It is further ordered, That the order of the Commission dated December 19, 1946, designating the application of Enid Broadcasting Company for hearing be, and it is hereby, amended to include the said application of Leader Publishing Company, and to include among the issues for hearing, issue No. 7, set forth above.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2041; Filed, Mar. 5, 1948; 8:52 a. m.]

[Docket Nos. 8083, 8084]

CAPITOL BROADCASTING CO. AND WSWZ, INC.

ORDER CONTINUING HEARING

In re applications of Capitol Broadcasting Company, Trenton, New Jersey; Docket No. 8083, File No. BP-4832; WSWZ, Incorporated, Trenton, New Jersey; Docket No. 8084, File No. BP-5590; for construction permits.

The Commission having under consideration a joint petition filed February 24, 1948, by Capitol Broadcasting Company, Trenton, New Jersey, and WSWZ, Incorporated, Trenton, New Jersey, requesting that the Commission continue the consolidated hearing on their above-entitled applications for construction permits from March 1, 1948, to March 19, 1948, or such other date as the Commission may designate:

It appearing, that the convenience of the Commission would be better served by a continuance of the said hearing to March 18, 1948, rather than March 19, 1948:

It is ordered, This 27th day of February 1948, that the petition be, and it is hereby, granted; but that the said hearing be, and it is hereby, continued to 10:00 a. m., Thursday, March 18, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2032; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket Nos. 8179, 8180]

BLACKHAWK BROADCASTING CO. AND WTAX, INC.

ORDER CONTINUING HEARING

In re applications of Blackhawk Broadcasting Company, Sterling, Illinios, Docket No. 8179, File No. BP-5409; WTAX, Incorporated (WTAX), Springfield, Illinois, Docket No. 8180, File No. BP-5588; for construction permits.

Whereas, the above-entitled applications of Blackhawk Broadcasting Com-

pany, Sterling, Illinois, and WTAX, Incorporated (WTAX), Springfield, Illinois, are scheduled to be heard in a consolidated proceeding at Washington, D. C., on March 4, 1948; and

Whereas, there are pending before the Commission petitions filed September 10, 1947, by each of the said applicants requesting severance, reconsideration and grant without hearing of the respective above-entitled applications; and

It is ordered, This 27th day of February 1948, that the said hearing be, and it is hereby, continued to 10:00 a. m., Monday, March 15, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2028; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket Nos. 8239, 8240]

CONNECTICUT ELECTRONICS CORP. AND WESTCO BROADCASTING CORP.

ORDER CONTINUING HEARING

In re applications of The Connecticut Electronics Corporation, Bridgeport, Connecticut, Docket No. 8239; File No. BP-5375; Westco Broadcasting Corporation, White Plains, New York, Docket No. 8240, File No. BP-5899; for construction permits.

The Commission having under consideration a petition filed February 20, 1948, by The Connecticut Electronics Corporation, Bridgeport, Connecticut, requesting continuance "for a reasonable period of time" of the consolidated hearing now scheduled for March 8, 1948, on its above-entitled application for construction permit and the above-entitled application of Westco Broadcasting Corporation, White Plains, New York;

It is ordered, This 27th day of February 1948, that the petition be, and it is hereby, granted; and that the said consolidated hearing be, and it is hereby, continued to 10:00 a. m., Monday, April 5, 1948, at Bridgeport, Connecticut, and Tuesday, April 6, 1948, at White Plains, New York.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2033; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket No. 8427]

DOUGLAS L. CRADDOCK

ORDER CONTINUING HEARING

In re application of Douglas L. Craddock, Leaksville, North Carolina; Docket No. 8427, File No. BML-1253; for modification of license.

The Commission having under consideration a petition filed February 20, 1948, by Douglas L. Craddock, Leaksville, North Carolina, requesting a continuance of the hearing now scheduled for March 2, 1948, at Washington, D. C., on his above-entitled application for modification of license,

It is ordered, This 27th day of February 1948, that the petition be, and it is hereby, granted; and that the said hearing on the above-entitled application be, and it is hereby, continued to 10:00 a. m., Friday, April 2, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2035; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket No. 8480]

SALT RIVER VALLEY BROADCASTING CO. (KOY)

ORDER CONTINUING HEARING

In re application of Salt River Valley Broadcasting Company (KOY), Phoenix, Arizona, Docket No. 8480, File No. BP-5733; for construction permit.

The Commission having under consideration a petition filed February 25, 1948, by Salt River Valley Broadcasting Company (KOY), Phoenix, Arizona, requesting a continuance to March 24, 1948, of the hearing now scheduled for March 5, 1948, at Washington, D. C., on its above-entitled application for construction permit;

It appearing, that the convenience of the Commission would be better served by a continuance to March 23, 1948, rather than March 24, 1948;

It is ordered, This 27th day of February 1948, that the petition be, and it is hereby, granted; and that the said hearing be, and it is hereby, continued to 10:00 a. m., Tuesday, March 23, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2030; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket Nos. 8557, 8629-8631, 8651, 8737-8741, 8821]

NEW ENGLAND THEATRES, INC., ET AL.

ORDER DESIGNATING HEARING

In re applications of New England Theatres, Inc., Boston, Massachusetts, Docket No. 8557, File No. BPCT-140; Empire Coil Company, Inc., Sharon, Massachusetts, Docket No. 8629, File No. BPCT-202; Boston Metropolitan Television Company, Boston, Massachusetts, Docket No. 8630, File No. BPCT-203; New England Television Company, Inc., Boston, Massachusetts, Docket No. 8631, File No. BPCT-210; Massachusetts Broadcasting Corporation, Boston, Massachusetts, Docket No. 8651, File No. BPCT-219; Columbia Broadcasting System, Inc., Boston, Massachusetts, Docket No. 8738, File No. BPCT-247; Matheson Radio Company, Inc., Boston, Massachusetts, Docket No. 8739, File No. BPCT-248; E. Anthony & Sons, Inc., Boston, Massachusetts, Docket No. 8740, File No. BPCT-249; Cherry & Webb Broadcasting Company, Providence, Rhode Island, Docket No. 8737, File No. BPCT-223; Yankee Network, Inc., Boston, Massachusetts, Docket No. 8741, File No. BMPCT-141; Twentieth Century-Fox New England, Inc., Boston, Massachusetts, Docket No. 8821, File No. BPCT-305; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the application of Twentieth Century-Fox New England, Inc. (File No. BPCT-305) requesting a construction permit for a television broadcast station to operate unlimited time on a television channel allocated to the Boston metropolitan area under § 3.606 of the Commission's rules and regulations; and

It appearing, that on November 21, 1947, and on January 30, 1948, the Commission designated for consolidated hearing applications pending for construction permits for television broadcast stations to operate on channels allocated to the Boston metropolitan district because said applications exceeded in number the unassigned channels allocated to said district under § 3.606 of the Commission's rules and regulations;

It is ordered, That pursuant to section 309 (a) of the Communications Act of 1934, as amended, the application of Twentieth Century-Fox New England, Inc. (File No. BPCT-305) be, and it is hereby, designated for hearing in a consolidated proceeding with the other above-entitled applications for construction permits for television broadcast stations to operate on channels allocated to the Boston metropolitan district upon issues "1" to "6," both inclusive, as set forth in the Commission's Order of November 21, 1947 at a time and place to be designated by a subsequent order of the Commission.

It is further ordered, That the consolidated hearing on the above-entitled applications with respect to issues "5" and "6" only is further consolidated with the hearing designated October 15, 1947 on the applications of Allen B. DuMont Laboratories, Inc. (File Nos. BPCT-161 and BPCT-163), New England Theatres, Inc. (File No. BPCT-140), United Detroit Theatres Corporation (File No. BPCT-50) and Interstate Circuit, Inc. (File No. BPCT-94) to be heard on March 1, 1948; 10:00 a. m., at Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2025; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket No. 8725]

FARMINGTON BROADCASTING CO.

ORDER CONTINUING HEARING

In re application of Harold L. Arment tr/as The Farmington Broadcasting Co., Farmington, New Mexico, Docket No. 8725, File No. BP-5713; for construction permit.

Whereas, the above-entitled application is scheduled to be heard at Farmington, New Mexico, on March 2, 1948: and

Whereas, the above-entitled applicant has notified the Commission that it intends to file a petition requesting dismissal without prejudice of its above-entitled application;

It is ordered, This 27th day of February 1948, that the said hearing be, and it is hereby, continued to 10:00 a. m. Friday, March 19, 1948, at Farmington, New Mexico.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2031; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket No. 8754]

TRI-STATE BROADCASTING CO.

ORDER DESIGNATING APPLICATION FOR CONSOLIDATED HEARING ON STATED ISSUES

In re application of Tri-State Broadcasting Company, Middlesboro, Kentucky, Docket No. 8754, File No. BP-6541; for construction permit.

At a session of the Federal Communications Commission, held at its offices in Washington, D. C. on the 27th day of February 1948;

The Commission having under consideration the above-entitled application requesting a construction permit for a new standard broadcast station to operate on the frequency 1490 kc, with 250 w power, unlimited time, in Middlesboro, Kentucky;

It is ordered, That, pursuant to section 309 (a) of the Communications Act of 1934, as amended, the said application be, and it is hereby, designated for hearing, at a time and place to be designated by subsequent order of the Commission, upon the following issues:

1. To determine the legal, technical, financial, and other qualifications of the applicant corporation, its officers, directors and stockholders to construct and operate the proposed station.

2. To determine the areas and populations which may be expected to gain or lose primary service from the operation of the proposed station and the character of other broadcast service available to those areas and populations.

3. To determine the type and character of program service proposed to be rendered and whether it would meet the requirements of the populations and areas proposed to be served.

4. To determine whether the operation of the proposed station would involve objectionable interference with the newly authorized station in Middlesboro, Kentucky, or with any other existing broadcast stations and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

5. To determine whether the operation of the proposed station would involve objectionable interference with the services proposed in any other pending applications for broadcast facilities and if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

6. To determine whether the installation and operation of the proposed station would be in compliance with the Commission's rules and Standards of Good Engineering Practice Concerning Standard Broadcast Stations.

It is further ordered, That Cumberland Gap Broadcasting Company, permittee of the newly authorized Station in Middlesboro, Kentucky, be, and it is hereby, made a party to this proceeding.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2024; Filed, Mar. 5, 1948; 8:49 a. m.]

[Docket No. 8756]

RAYTHEON MFG. CO.

ORDER SCHEDULING HEARING

In re application of Raytheon Manufacturing Company, Waltham, Massachusetts, Docket No. 8756, File No. BMPCT-142, for modification of construction permit.

Whereas, the above-entitled application was, on January 30, 1948, designated for hearing at a time and place subsequently to be scheduled by the Commission;

It is ordered, This 25th day of February 1948, that the said hearing on the above-entitled application be, and it is hereby, scheduled for 10:00 a. m., Thursday, June 10, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2026; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket Nos. 8761, 8762, 8790]

VINDICATOR PRINTING CO. ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Vindicator Printing Company, Youngstown, Ohio, Docket No. 8761, File No. BPCT-259; WKBN Broadcasting Corporation, Youngstown, Ohio, Docket No. 8762, File No. BPCT-275; Mansfield Radio Company, Youngstown, Ohio, Docket No. 8790, File No. BPCT-295; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above application of Mansfield Radio Company (File No. BPCT-295) requesting a construction permit for a television station at Youngstown, Ohio, for unlimited time operation;

It appearing, that under § 3.606 of the Commission's rules and regulations, but one television channel is allocated to the Youngstown, Ohio, metropolitan district;

It further appearing, that on January 30, 1948, the Commission designated for hearing in a consolidated proceeding the above entitled applications of Vindicator Printing Company (File No. BPCT-259), and WKBN Broadcasting Corporation (File No. BPCT-275), each requesting a construction permit for a television station at Youngstown, Ohio;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above entitled application of Mansfield Radio Company (File No. BPCT-295) is hereby designated for hearing in a consolidated proceeding with the other applications pending for stations at Youngstown, Ohio, i. e., Vindicator Printing Company (File No. BPCT-259), and WKBN Broadcasting Corporation (File No. BPCT-275) at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2036; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket No. 8763]

RCA COMMUNICATIONS, INC.

ORDER CONTINUING HEARING

In the matter of RCA Communications, Inc. Docket No. 8763, free transmission of routing instructions for reply messages.

The Commission having under consideration the proceedings in the above-entitled matter;

It is ordered, This 27th day of February 1948, that the hearing in this proceeding now scheduled for March 2, 1948, is continued to March 30, 1948, at the same time and place heretofore designated.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2034; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket No. 8776]

ASSOCIATED BROADCASTERS, INC. (KWIS)

ORDER SCHEDULING HEARING

In re application of The Associated Broadcasters, Inc. (KWIS), San Fran-

cisco, California, Docket No. 8776, File No. BMPCT-147; for modification of construction permit.

Whereas, the above-entitled application was, on February 12, 1948, designated for hearing at a time and place subsequently to be scheduled by the Commission;

It is ordered, This 25th day of February 1948, that the said hearing be, and it is hereby, scheduled for 10:00 a. m., Monday, April 26, 1948, at Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2027; Filed, Mar. 5, 1948; 8:50 a. m.]

[Docket No. 8777]

MACKAY RADIO AND TELEGRAPH CO.

ORDER POSTPONING HEARING

In the matter of Mackay Radio and Telegraph Company, Docket No. 8777; applications for radiotelegraph circuits between the United States and Finland, Portugal, Surinam, and The Netherlands.

The Commission, having under consideration a petition filed on February 18, 1948, by Mackay Radio and Telegraph Company requesting withdrawal from Docket No. 7974, In the matter of radiotelegraph service between the United States and foreign and overseas points and assignment of frequencies for such service, and consolidation for hearing herein of the applications of RCA Communications, Inc., to communicate with Portugal, Surinam and The Netherlands, and the applications of Press Wireless, Inc., to communicate with Portugal and The Netherlands, and also requesting an enlargement of the issues herein in a manner appropriate to such consolidation, and a postponement of the date of hearing; and also having under consideration an opposition to the above petition filed on February 24, 1948, by RCA Communications, Inc.:

It appearing, that the hearing herein is now scheduled for March 8, 1948, and that the Commission requires additional time within which to consider the above petition and opposition thereto:

It is ordered, This 25th day of February 1948, that the hearing herein, now scheduled for March 8, 1948, is postponed until further order.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2023; Filed, Mar. 5, 1948; 8:49 a. m.]

[DOCKET NOS. 8787, 8788]

JOHN H. POOLE AND ORANGE BELT STATION

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of John H. Poole, Santa Ana, California, Docket No. 8788, File No. BP-6542; Frank D. Howell and M. T. Killingsworth, a partnership d/b as The Orange Belt Station, Arlington, California, Doket No. 8787, File No. BP-6362; for construction permits.

At a session of the Federal Communications Commission, held at its offices in Washington, D .C., on the 27th day of February 1948;

The Commission having under consideration the above-entitled application of John H. Poole requesting a construction permit for a new standard broadcast station to operate on the frequency 1410 kc, with 1 kw power, daytime only, in Santa Ana, California and that of Frank D. Howell et al. requesting a new station to operate on the frequency 1410 with 250 w power, daytime only, in Arlington, California;

It is ordered, That, pursuant, to section 309 (a) of the Communications Act of 1934, as amended, the said applications be, and they are hereby, designated for hearing in a consolidated hearing at a time and place to be designated by subsequent order of the Commission, upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant John A. Poole and of the applicant partnership and the partners to construct and operate their proposed stations.

2. To determine the areas and populations which may be expected to gain or lose primary service from the operation of the proposed stations and the character of other broadcsat service available to those areas and populations.

3. To determine the type and character of program service proposed to be rendered and whether it would meet the requirements of the populations and areas proposed to be served.

4. To determine whether the operation of the proposed stations would involve objectionable interference with any existing broadcast stations and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

5. To determine whether the operation of the proposed stations would involve objectionable interference each with the other or with the services proposed in any other pending applications for broadcast facilities and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other broadcast service to such areas and populations.

6. To determine whether the installation and operation of the proposed stations would be in compliance with the Commission's rules and Standards of Good Engineering Practice Concerning Standard Broadcast Stations.

7. To determine on a comparative basis which, if either, of the applications in this consolidated proceeding should be granted.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2039; Filed, Mar. 5, 1948; 8:52 a. m.]

[Docket Nos. 8791, 8792]

SUSQUEHANNA BROADCASTING CO. AND TRIANGLE PUBLICATIONS, INC.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Susquehanna Broadcasting Company, York, Pa., Docket No. 8791, File No. BPCT-302; Triangle Publications, Inc. (Philadelphia Inquirer Division), York, Pa., Docket No. 8792, File No. BPCT-307; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above entitled applications for construction permits for television broadcast stations at York, Pa.; and

It appearing, that under § 3.606 of the Commission's rules and regulations, but one television channel is allocated to York, Pa.;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above entitled applications are hereby designated for hearing in a consolidated proceeding at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 48-2042; Filed, Mar. 5, 1948; 8:52 a. m.]

[Docket Nos. 8798-8801]

NEPTUNE BROADCASTING CORP. ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Neptune Broadcasting Corporation, Atlantic City, New Jersey, Docket No. 8798, File No. BPCT-269; Mid-Atlantic Broadcasting Company, Atlantic City, New Jersey, Docket No. 8799, File No. BPCT-320; Atlantic City Television Broadcasting Co., Atlantic City, New Jersey, Docket No. 8800, File No. BPCT-323; Atlantic City World, Inc., Atlantic City, New Jersey, Docket No. 8801, File No. BPCT-325; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above-entitled four applications, each requesting a construction per-

mit for a television station at Atlantic City, New Jersey, to operate on television channel No. 8 (180–186 Mc); and

It appearing, that since each of the above-entitled applications request the same channel they are mutually exclusive because of the destructive interference which would result from simultaneous operation of the proposed stations;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above-entitled applications are hereby designated for hearing in a consolidated proceeding at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48–2037; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket Nos. 8802–8806]

NEW ENGLAND TELEVISION CO., INC., ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of New England Television Co., Inc., Kansas City, Missouri, Docket No. 8802, File No. BPCT–267; KCMO Broadcasting Company, Kansas City, Missouri, Docket No. 8803, File No. BPCT–291; Midland Broadcasting Company, Kansas City, Missouri, Docket No. 8804, File No. BPCT–292; WHB Broadcasting Company, Kansas City, Missouri, Docket No. 8805, File No. BPCT–316; KCKM Broadcasting Company, Kansas City, Kansas, Docket No. 8806, File No. BPCT–312; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above entitled applications, each requesting a constructing permit for a television station to operate unlimited time on a channel allocated to the Kansas City, Missouri-Kansas City, Kansas metropolitan district, under § 3.606 of the Commission's rules and regulations; and

It appearing, That the above entitled applications exceed in number the unassigned television channels allocated to the Kansas City, Missouri-Kansas City, Kansas metropolitan district;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above entitled applications are hereby designated for hearing in a consolidated proceeding at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48–2038; Filed, Mar. 5, 1948; 8:51 a. m.]

[Docket Nos. 8808–8812]

NEW ENGLAND TELEVISION, INC., ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of New England Television, Inc., St. Louis, Missouri, Docket No. 8808, File No. BPCT–277; St. Louis University, St. Louis, Missouri, Docket No. 8809, File No. BPCT–294; Thomas Patrick, Incorporated, St. Louis, Missouri, Docket No. 8810, File No. BPCT–324; Star Times Publishing Company, St. Louis, Missouri, Docket No. 8811, File No. BPCT–327; Globe Democrat Publishing Company, St. Louis, Missouri, Docket No. 8812, File No. BPCT–330; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above-entitled applications, each requesting a construction permit for a television station to operate unlimited time on a channel allocated to the St. Louis, Missouri metropolitan district under § 3.606 of the Commission's Rules and Regulations; and

It appearing, that the above entitled applications exceed in number the unassigned television channels allocated to the St. Louis, Missouri metropolitan district;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above entitled applications are hereby designated for hearing in a consolidated proceeding at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48–2044; Filed, Mar. 5, 1948; 8:52 a. m.]

[Docket Nos. 8818–8820]

EURITH DICKINSON RIVERS, JR., ET AL.

ORDER DESIGNATING APPLICATIONS FOR CONSOLIDATED HEARING ON STATED ISSUES

In re applications of Eurith Dickinson Rivers, Jr., Atlanta, Georgia, Docket No. 8818, File No. BPCT–266; Board of Regents, University System of Georgia (for and on behalf of Georgia School of Technology) Atlanta, Georgia, Docket No. 8819, File No. BPCT–286; Mike Denton d/b as General Broadcasting Company, Atlanta, Georgia, Docket No. 8820, File No. BPCT–309; for construction permits for television stations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 26th day of February 1948;

The Commission having under consideration the above-entitled applications, each requesting a construction permit for a television station to operate unlimited time on a channel allocated to Atlanta, Georgia metropolitan district under § 3.606 of the Commission's rules and regulations; and

It appearing, that the above entitled applications exceed in number the unassigned television channels allocated to the Atlanta, Georgia metropolitan district;

It is ordered, That pursuant to section 309 (a) of the Communications Act, as amended, the above entitled applications are hereby designated for hearing in a consolidated proceeding at a time and place to be designated by the Commission upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to operate and construct the proposed station.

2. To obtain full information with respect to the nature and character of the proposed program service.

3. To determine the areas and populations which may be expected to receive service from the proposed station.

4. To determine on a comparative basis which, if any, of the applications in this consolidated proceeding should be granted.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48–2043; Filed, Mar. 5, 1948; 8:52 a. m.]

ELKO SERVICE CO.

PUBLIC NOTICE CONCERNING PROPOSED ASSIGNMENT OF PERMIT [1]

The Commission hereby gives notice that on October 13, 1947 there was filed with it an application (BAP-69) for its consent under section 310 (b) of the Communications Act to the proposed assignment of permit of Herschel Bullen tr/as Elko Service Company from said Herschel Bullen to Elko Broadcasting Company a corporation in Elko, Nevada. The proposal to assign the permit arises out of a contract of August 31, 1947 pursuant to which 3,000 shares of $1.00 par value common voting stock of said company out of 28,000 shares which would be outstanding would be issued to said Bullen in payment for expenses outlaid by him in connection with the application. It appears also that the remaining stock would be acquired at par by Messers. Chris H. Sherrin, R. C. Ellis and Orville R. Wilson. Further information as to the arrangements may be found with the application and associated papers which are on file at the offices of the Commission in Washington, D. C.

Pursuant to § 1.321 which sets out the procedure to be followed in such cases including the requirement for public notice concerning the filing of the application, the Commission was advised by applicant on February 25, 1948 that starting on February 24, 1948 notice of the filing of the application would be inserted in the Elko Daily Free Press a newspaper of general circulation at Elko, Nevada in conformity with the above section.

In accordance with the procedure set out in said section, no action will be had upon the application for a period of 60 days from February 24, 1948 within which time other persons desiring to apply for the facilities involved may do so upon the same terms and conditions as set forth in the above described contract.

(Section 310 (b), 48 Stat. 1086; 47 U. S. C. 310 (b))

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 48-2045; Filed, Mar. 5, 1948; 8:53 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-977]

HOPE NATURAL GAS CO.

ORDER FIXING DATE OF HEARING

MARCH 2, 1948.

Upon consideration of the application filed November 28, 1947, as supplemented December 10 and 26, 1947, in Docket No. G-977 by Hope Natural Gas Company (Applicant), a West Virginia corporation with its principal place of business at Clarksburg, West Virginia, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, as amended, authorizing the construction and operation of certain natural gas facilities, subject to the jurisdiction of the Commission, as fully described in such application on file with the Commission and open to public inspection;

It appears to the Commission that: This proceeding is a proper one for disposition under the provisions of Rule 32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure, Applicant having requested that its application be heard under the shortened procedure provided by the aforesaid rule for non-contested proceedings, and no request to be heard, protest or petition having been filed subsequent to the giving of due notice of the filing of the application, including publication in the FEDERAL REGISTER on December 27, 1947 (12 F. R. 8852-8853).

The Commission, therefore, orders that:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, as amended, and the Commission's rules of practice and procedure, a hearing be held on March 18, 1948, at 9:45 a. m. (e. s. t.), in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by such application as supplemented: *Provided, however,* That the Commission may, after a non-contested hearing, forthwith dispose of the proceeding pursuant to the provisions of Rule 32 (b) of the Commission's rules of practice and procedure.

(B) Interested State commissions may participate as provided by Rules 8 and 37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: March 2, 1948.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 48-2014; Filed, Mar. 5, 1948; 8:48 a. m.]

[Docket No. G-1000]

CITIES SERVICE GAS CO.

ORDER FIXING DATE OF HEARING

MARCH 2, 1948.

Upon consideration of the application filed February 11, 1948, by Cities Service Gas Company (Applicant), a Delaware corporation with its principal place of business at Oklahoma City, Oklahoma, for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, as amended, authorizing the construction and operation of certain natural-gas facilities, subject to the jurisdiction of the Commission, as fully described in such application on file with the Commission and open to public inspection;

It appears to the Commission that: This proceeding is a proper one for disposition under the provisions of Rule 32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure (as amended June 16, 1947), Applicant having requested that its application be heard under the shortened procedure provided by the aforesaid rule for non-contested proceedings, and no request to be heard, protest or petition having been filed subsequent to the giving of due notice of the filing of the application, including publication in the FEDERAL REGISTER on February 21, 1948 (13 F. R. 820).

The Commission, therefore, orders that:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, as amended, and the Commission's rules of practice and procedure (as amended June 16, 1947), a hearing be held on March 18, 1948, at 9:30 a. m. (e. s. t.), in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by such application; *Provided, however,* That the Commission may, after a noncontested hearing, forthwith dispose of the proceeding pursuant to the provisions of Rule 32 (b) of the Commission's rules of practice and procedure (as amended June 16, 1947).

(B) Interested State commissions may participate as provided by Rules 8 and 37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: March 2, 1948.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 48-2012; Filed, Mar. 5, 1948; 8:49 a. m.]

[Docket No. E-6124]

GULF STATES UTILITIES CO.

NOTICE OF APPLICATION

MARCH 1, 1948.

Notice is hereby given that on March 1, 1948, an application was filed with the Federal Power Commission, pursuant to section 204 of the Federal Power Act, by Gulf States Utilities Company, a corporation organized under the laws of the State of Texas and doing business in the States of Louisiana and Texas with its principal business office at Beaumont, Texas, seeking an order authorizing the issuance of $12,000,000 principal amount of First Mortgage Bonds, ____% Series due 1978, to be dated as of April 1, 1948, to be issued on or about April 27, 1948, and to be due April 1, 1978. The proposed issue is to be underwritten and the interest or dividend rate, if any, on these Bonds will be supplied by amendment to this application; all as more fully appears in the application on file with the Commission.

Any persons desiring to be heard or to make any protest with reference to said application should, on or before the 19th day of March, 1948, file with the Federal Power Commission, Washington 25, D. C., a petition or protest in accordance

[1] Section 1.321, Part 1, Rules of Practice and Procedure.

with the Commission's rules of practice and procedure.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 48-2013; Filed, Mar. 5, 1948; 8:49 a. m.]

INTERSTATE COMMERCE COMMISSION

[S. O. 790, Amdt. 15 to Corr. Special Directive 1]

PENNSYLVANIA RAILROAD CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Special Directive No. 1 (12 F. R. 7950), under Service Order No. 790 (12 F. R. 7791), and good cause appearing therefor:

It is ordered, That Corrected Special Directive No. 1, be, and it is hereby amended by substituting Appendix A hereof for Appendix A thereof.

A copy of this amendment shall be served upon The Pennsylvania Railroad Company and notice of this amendment shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

APPENDIX A

Mine	Cars	
	Per day	Per week
A&A	1	
Adams	3	
Allen	7	
Armstrong	15	
Banks-W. Bituminous	6	
Bear Run-Mt. Branch	5	
Bennett		4
Bethany	8	
Betsy	7	
Bigelow Run	4	
Birch Creek No. 3	5	
Bolivar	3	
Bostonia 9 and 10	2	
Bowers		2
Braeburn-Wildcat	2	
Bucher	4	
Bulger 2 and 3	7	
Cambria	1	
Captina	3	
Catfish	2	
Chinook	30	
Cipolla		2
Costanzo	4	
Crawford	1	
Decker	2	
Delmont 10	9	
Diamond Smokeless	3	
Dorothy-Florence	17	
Dun Glen	28	
Ella	2	
Enterprise	1	
Eureka 35, 37, 40	3	
Export	5	
Farrar-Nagode	7	
Fike 8	1	
Fleck 4	2	
Florence (Harmon Creek)	28	
Foster	42	
Francis	32	
Fulton 1 and 3	2	
Gilpin	6	
Glen Fisher		4
Creighton		4
Graceton	1	
Graff 1 and 2	13	
Hankey	4	
Hanlin	28	
Harkleroad	1	
Hays No. 1	1	
Hays No. 2	5	
Hillcrest	8	
Hillside 1	1	
Hough & Fricano	1	
Huskin 6	2	
Irwin 11	3	
Jamison 2, 20, 21	11	
Jane	4	
Jones	1	
Jordan	4	
Joyce 1 and 3	3	
Kenbrook	8	
Kish	2	
Kiski Valley	6	
Knox 1, 2, 5	48	
Lambert, B & M and various	1	
Lamkie	2	
Langeloth	3	
Lemont-Hankins	2	
Lewis	1	
Lindley-Midland	29	
Lindsey 8	1	
Lloyd 3 and 4	6	
Locust Grove	25	
Lucerne	1	
Mac	2	
Magnolia		4
Maher 4	6	
Mateer	3	
Maud (Teodori)	2	
Mautz		4
Mayview-McGovern	3	
McCombie 2	1	
McCullough	4	
Meecham	1	
Mercury 2	4	
Mid Pen 4	7	
Militant and Cooper Smokeless	2	
Miller Strip	2	
Miller	3	
Milligan		3
Mimms	1	
Mooween	1	
Mosgrove	2	
Mullett	22	
Navy Smokeless	1	
Painter 8	2	
Panhandle	8	
Parrall	2	
Paris 1 and 2	7	
Park	10	
Patoka	2	
Patsch	8	
Pennsylvania 9	2	
Penn Valley	7	
Poole	3	
Powhatan	14	
Primrose 2 and 4	4	
R. & J	3	
Rail and River No. 3		50
Rea		2
Reitz 2, 3, 4, 5, 8	3	
Regent	4	
Richland	2	
Rider 5	7	
Rose Hill	13	
Rugh	7	
Salina	2	
Saxton	3	
Schlegel	3	
Segar	2	
Shasta	3	
Sherman	3	
Smith 1 and 2	1	
Standard 1	2	
Std. 9-Sasso 5	21	
Standard 10	9	
Sterling	3	
Stineman 3	4	
Sunshine		4
Superior 1 and 3	2	
Superior 3	2	
Sycamore 26, 27, 30	10	
Ten X	4	
Testa	4	
Thomassey	1	
Tunnelton	2	
Universal 1 and 2	3	
Valley	13	
Valley Camp 1, 3, 4, 5	22	
Vegler	9	
Venturini	2	
Virginia 14		3
Walnut Grove	1	
Washington (Ontario, Oakmont)	8	
Washington (Con. Division)		4
Webco	4	
Webb	38	
Yockey	1	

[F. R. Doc. 48-2004; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Amdt. 8 to Special Directive 5]

PITTSBURGH & SHAWMUT RAILROAD CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Special Directive No. 5 (12 F. R. 7952) under Service Order No. 790 (12 F. R. 7791), and good cause appearing therefor:

It is ordered, That Special Directive No. 5, be, and it is hereby amended by substituting paragraph (1) hereof for paragraph (1) thereof.

(1) To furnish to the mines listed below cars for the loading of Pennsylvania Railroad fuel coal in the number specified from its total available supply of cars suitable for the transportation of coal:

Mines:	Cars per day
Fairview-Coheen (Hetrick)	1
Seneca and various	9

A copy of this amendment shall be served upon The Pittsburgh & Shawmut Railroad Company and notice of this amendment shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2005; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Amdt. 11 to Special Directive 6]

MONONGAHELA RAILWAY CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Special Directive No. 6 (12 F. R. 7952) under Service Order No. 790 (12 F. R. 7791), and good cause appearing therefor:

It is ordered, That Special Directive No. 6, be, and it is hereby amended by substituting paragraph (1) hereof for paragraph (1) thereof.

(1) To furnish to the mines listed below cars for the loading of Pennsylvania Railroad fuel coal in the number specified from its total available supply of cars suitable for the transportation of coal:

Mine	Cars	
	Per day	Per week
Brock & National	15	
Byrne 2	1	
Christopher 2 and 3	2	
Jamison 11	3	
LaBelle-Old LaBelle		2
Love 4	1	
Martin 2	2	
Poland	5	
Pursglove 2	20	

Mine	Cars	
	Per day	Per week
Rosedale 1 and 2, Mon	7	
Whiteley	6	
Rose	3	
Cathy-Luxnor	4	
James		2

A copy of this amendment shall be served upon The Monongahela Railway Company and notice of this directive shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2006; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Amdt. 8 to Special Directive 7]

MONTOUR RAILROAD CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provision of Special Directive No. 7 (12 F. R. 8281, 8874) under Service Order No. 790 (12 F. R. 7791) and good cause appearing therefor:

It is ordered, That Special Directive No. 7, be, and it is hereby amended by substituting paragraph (1) hereof for paragraph (1) thereof.

(1) To furnish to the mines listed below cars for the loading of Pennsylvania Railroad fuel coal in the number specified from its total available supply of cars suitable for the transportation of coal:

Mine	Cars	
	Per day	Per week
Grant 2 (Boggs-Sunnyhill)		2
Imperial (Sunnyhill)	4	
Irma & Ruth (Sherry Dock-Import)	2	
Rider 3 and 4 (Aloe)	8	

A copy of this amendment shall be served upon The Montour Railroad Company and notice of this amendment shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2007; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Amdt. 1 to Special Directive 44]

PITTSBURGH CHARTIERS & YOUGHIOGHENY RAILWAY CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Special Directive No. 44 (13 F. R. 640), under Service Order No. 790 (12 F. R. 7791), and good cause appearing therefor:

It is ordered, That Special Directive No. 44, be, and it is hereby amended by substituting paragraph 1 hereof for paragraph 1 thereof:

(1) To furnish daily to the Phillips mine one car for the loading of Pennsylvania Railroad fuel coal from its total available supply of cars suitable for the transportation of coal.

A copy of this amendment shall be served upon The Pittsburgh Chartiers & Youghiogheny Railway Company and notice of this amendment shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2008; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Amdt. 3 to Special Directive 54]

BALTIMORE AND OHIO RAILWAY CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Special Directive No. 54 (13 F. R. 1154) under Service Order No. 790 (12 F. R. 7791), and good cause appearing therefor:

It is ordered, That Special Directive No. 54 be, and it is hereby amended by changing paragraph (1) thereof as follows:

Mine	*Cars per week*
Add: Galloway No. 2 or 3	37

A copy of this amendment shall be served upon The Baltimore and Ohio Railroad Company and notice of this directive shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2009; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Special Directive 56-A]

BESSEMER & LAKE ERIE RAILROAD

DIRECTIVE TO VACATE ORDER TO FURNISH CARS FOR RAILROAD COAL SUPPLY

Upon further consideration of the provisions of Service Order No. 790 (12 F. R. 7791) and good cause appearing therefor:

It is ordered, That Special Directive No. 56 under Service Order No. 790 be, and it is hereby vacated effective 12:01 a. m., March 2, 1948.

A copy of this special directive shall be served upon the Bessemer & Lake Erie Railroad and notice of this directive shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2010; Filed, Mar. 5, 1948; 8:56 a. m.]

[S. O. 790, Special Directive 58]

WESTERN ALLEGHENY RAILROAD CO.

DIRECTIVE TO FURNISH CARS FOR RAILROAD COAL SUPPLY

By letter dated February 24, 1948, the Lehigh Valley Railroad Company has certified that it had on that date in storage and in cars a total supply of 10.5 days of fuel coal, and that it is immediately essential that this company increase its coal supply from certain enumerated mines.

The certified statements have been verified and found to be correct.

Therefore, pursuant to the authority vested in me by paragraph (b) of Service Order No. 790, the Western Allegheny Railroad Company is directed:

(1) To furnish weekly to the mines listed below cars for the loading of Lehigh Valley Railroad fuel coal in the number specified from its total available supply of cars suitable for the transportation of coal:

Mine:	*Number of cars weekly*
Brady's Bend	25
Beaver	15

(2) That such cars furnished in excess of the mines' distributive share for the day will not be counted against said mines.

(3) That is shall not accept billing of cars furnished for loading under the provisions of this directive unless billed for the Lehigh Valley Railroad fuel coal supply.

(4) To furnish this Bureau, as soon as may be practicable after the end of each week, information showing the total number of cars furnished to said mines for the preceding week under the authority of this directive and to indicate with respect to each mine how many

cars were in excess of the daily distributive share of car supply of such mine.

A copy of this special directive shall be served upon the Western Allegheny Railroad Company and notice of this directive shall be given the public by depositing a copy in the office of the Secretary of the Commission, Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

Issued at Washington, D. C., this 1st day of March A. D. 1948.

INTERSTATE COMMERCE COMMISSION,
HOMER C. KING,
Director,
Bureau of Service.

[F. R. Doc. 48-2011; Filed, Mar. 5, 1948; 8:56 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 7-1014]

ALLEGHANY CORP.

FINDINGS AND ORDER GRANTING APPLICATION

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 2d day of March A. D. 1948.

The Los Angeles Stock Exchange has made application to the Commission pursuant to section 12 (f) (2) of the Securities Exchange Act of 1934 and Rule X-12F-1 for permission to extend unlisted trading privileges to the Common Stock, $1.00 Par Value, of Alleghany Corporation, 704-5 Equitable Building, Wilmington 7, Delaware.

After appropriate notice and opportunity for hearing and in the absence of any request by any interested person for hearing on this matter, the Commission on the basis of the facts submitted in the application makes the following findings:

(1) That this security is listed and registered on the New York Stock Exchange; that the geographical area deemed to constitute the vicinity of the Los Angeles Stock Exchange with respect to this security traded on the San Francisco Stock Exchange is Southern California and Arizona; that out of a total of 4,567,797 shares outstanding, 117,451 shares are owned by 840 shareholders in the vicinity of the Los Angeles Stock Exchange; and that in the vicinity of the Los Angeles Stock Exchange there were 1,183 transactions involving 183,368 shares from August 1, 1946, to July 31, 1947;

(2) That sufficient public distribution of, and sufficient public trading activity in, this security exist in the vicinity of the applicant exchange to render the extension of unlisted trading privileges thereto appropriate in the public interest and for the protection of investors; and

(3) That the extension of unlisted trading privileges on the applicant exchange to this security is otherwise appropriate in the public interest and for the protection of investors.

Accordingly it is ordered, Pursuant to section 12 (f) (2) of the Securities Exchange Act of 1934, that the application of the Los Angeles Stock Exchange for permission to extend unlisted trading privileges to the Common Stock, $1.00 Par Value, of Alleghany Corporation be, and the same is, hereby granted.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 48-1992; Filed, Mar. 5, 1948; 8:47 a. m.]

[File Nos. 54-72, 59-9, 59-66]

STANDARD POWER AND LIGHT CORP. ET AL.

NOTICE OF AND ORDER RECONVENING HEARING

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C. on the 1st day of March 1948.

In the matter of Standard Power and Light Corporation, Standard Gas and Electric Company and Subsidiary Companies Thereof, Respondents, File No. 59-9; Standard Gas and Electric Company, File Nos. 54-72 and 59-66.

The Commission, by its Memorandum Opinion and Order, dated October 30, 1947 (Holding Company Act Release No. 7811), in File Nos. 59-9, 54-72 and 59-66, having ordered, among other things, that a hearing be held on November 18, 1947, and that at such hearing Standard Gas and Electric Company ("Standard Gas") show cause why the Commission should not enter an order pursuant to section 11 (b) (2) of the Public Utility Holding Company Act of 1935 requiring Standard Gas either to liquidate and dissolve, or to recapitalize on the basis of a single class of stock, namely, common stock; and the Commission, by its order, dated November 10, 1947 (Holding Company Act Release No. 7831), having consolidated such hearing with a hearing to be held in File No. 53-134 and having directed that the first matter to be inquired into at the aforesaid consolidated hearing be concerned with the adequacy of certain proxy material proposed to be utilized by Standard Gas in connection with its Annual Meeting of Stockholders for 1947; and

Hearings having been held from time to time and concluded on February 10, 1948 with respect to the aforesaid proxy material and the Commission having, on February 17, 1948, issued its findings and opinion with respect thereto (Holding Company Act Release No. 7983); and

It appearing to the Commission that on February 4, 1948, the Board of Directors of Standard Gas voted for the approval of a program, to be pursued by Standard Gas, whereby, among other things, Standard Gas "shall consent to the entry by the Commission of an order pursuant to section 11 (b) (2) of the Public Utility Holding Company Act of 1935 requiring the dissolution and liquidation of Standard Gas or its recapitalization on a one stock basis"; and

It further appearing to the Commission that it is appropriate in the public interest and in the interest of investors that the hearing heretofore ordered to be held beginning November 18, 1947, should be reconvened and that the first order of business at such reconvened hearing shall be the taking of evidence with respect to the entry of an order pursuant to section 11 (b) (2) of the Public Utility Holding Company Act of 1935 as provided in the aforesaid Commission's memorandum opinion and order of October 30, 1947;

It is hereby ordered and notice is hereby given, That the hearing heretofore ordered by the Commission to be held on November 18, 1947, in the above entitled proceedings be reconvened on March 22, 1948 at 10:00 a. m., e. s. t., at the office of the Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C., for the purpose hereinafter ordered. On such day the hearing room clerk in Room 101 will advise as to the room in which such hearing will be held.

It is further ordered, That at the reconvened hearing hereinbefore ordered, cause shall be shown why the Commission should not enter an order forthwith pursuant to section 11 (b) (2) of the Public Utility Holding Company Act of 1935 requiring Standard Gas and Electric Company either to liquidate and dissolve, or to recapitalize on the basis of a single class of stock, namely, common stock.

It is further ordered, That the Secretary of the Commission shall serve notice of the reconvened hearing herein by mailing a copy of this notice and order by registered mail to all persons who have heretofore filed an appearance in these proceedings, to Standard Gas and Electric Company and to Standard Power and Light Corporation, and that notice of said reconvened hearing be given to all other interested persons by general release of the Commission and by publication of this notice and order in the FEDERAL REGISTER.

It is further ordered, That jurisdiction be, and hereby is, reserved to separate either for hearing, in whole or in part, or for disposition, in whole or in part, any of the matters set forth in our aforesaid memorandum opinion and order, dated October 30, 1947, or which may hereafter arise, or to take such other action as may appear appropriate in the premises or be necessary for the orderly, prompt, and economical disposition of the matters involved.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 48-1989; Filed, Mar. 5, 1948; 8.46 a. m.]

[File Nos. 54-148, 59-86]

PUBLIC SERVICE CORP. OF NEW JERSEY ET AL.

SUPPLEMENTAL ORDER AUTHORIZING, APPROVING AND REQUIRING TRANSACTIONS

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 26th day of February 1948.

In the matters of Public Service Corporation of New Jersey and its subsidiary companies and The United Corporation,

File No. 59-86; Public Service Corporation of New Jersey, File No. 54-148.

Public Service Corporation of New Jersey ("Public Service"), a registered holding company and a subsidiary of The United Corporation, also a registered holding company, having filed an application with amendments thereto pursuant to section 11 (e) of the Public Utility Holding Company Act of 1935 for approval of a plan for its dissolution; and

The Commission, by order entered December 30, 1947, having approved said Plan as amended; and

Public Service having requested the Commission to enter an order containing such findings and recitals as may be necessary to meet the requirements of section 371 and subsection (f) of Section 1808 of the United States Internal Revenue Code and provide for the non-recognition of gain or loss and the exemptions or benefits of such sections with respect to any issuance, exchange, acquisition, transfer, distribution, delivery, or sale of stock or securities pursuant to said Plan as amended; and

The Commission having this day entered its findings and opinion and deeming it appropriate to grant said request:

It is ordered and recited, That all transactions proposed in the aforesaid amended plan to be effected by Public Service, Public Service Electric and Gas Company ("PEG"), Public Service Coordinated Transport ("Transport"), and South Jersey Gas Company, or any of them, or by the holders of securities heretofore or hereafter issued or assumed by any of them, including particularly the exchanges, investments, issuances, transfers, acquisitions, expenditures, distributions, purchases, and sales hereinafter itemized, specified, described, and recited are authorized, approved, and required; that said transactions are necessary or appropriate to the integration or simplification of the holding company system of which said corporations are members and are necessary or appropriate to effectuate the provisions of subsection (b) of section 11 of the Public Utility Holding Company Act of 1935; that said transactions or any of them may be effected through and deliveries may be made to or through trustees, exchange agents, or otherwise, and/or the stocks and securities and other property may be delivered direct to those ultimately entitled thereto, all in any manner consistent with the court order enforcing the amended plan and within the time limits specified in the amended plan or in said court order; and that this order is issued under the authority of subsection (e) of section 11 of the Public Utility Holding Company Act of 1935 to effectuate the provisions of subsection (b) of section 11 of said Act:

(1) The sale by Transport to PEG, and the purchase, acquisition, and cancellation by PEG, of 700 shares of $5 Cumulative Preferred Stock of PEG for $69,946.82 plus an amount equal to accrued dividends to the date of sale.

(2) The cancellation by PEG of 151,613 shares of its $5 Cumulative Preferred Stock heretofore reacquired by it.

(3) The surrender by the holders thereof to PEG for the redemption price thereof ($110 per share plus an amount equal to accrued dividends to the redemption date) and the redemption, acquisition, and cancellation by PEG of 300,000 shares of its $5 Cumulative Preferred Stock.

(4) The release by Fidelity Union Trust Company, Trustee of the First and Refunding Mortgage of PEG, to PEG, for $1,600,000, of $891,345 face amount of 6% Perpetual Interest-Bearing Certificates of Public Service, the acquisition thereof by PEG free of the lien of said Mortgage, the sale thereof by PEG to Public Service, and the purchase, acquisition, and cancellation thereof by Public Service, for $811,578.95 plus an amount equal to accrued interest to the date of sale.

(5) The cancellation by Public Service of $1,020,223 face amount of 6% Perpetual Interest-Bearing Certificates of Public Service held by the Trustee thereof in the sinking fund therefor, and of $4,242 face amount thereof heretofore reacquired by Public Service.

(6) The release by Fidelity Union Trust Company, Trustee under the Indenture securing Public Service's 6% Perpetual Interest-Bearing Certificates, to Public Service of 197,368 shares of 7% Cumulative Preferred Stock of PEG, 474,790 shares of $6.00 Non-Cumulative Preferred Stock of Transport, and $300,000 principal amount of First and Refunding Mortgage Bonds, 6% Series due January 1, 1990, of Transport, and the acquisition thereof by Public Service free of the lien of said Indenture.

(7) The issuance by PEG of $18,195,600 principal amount of its Fifty-Year 6% Debenture Bonds (and scrip for fractional interests of less than $100) to Public Service or for its accounts in exchange for 197,368 shares of 7% Cumulative Preferred Stock of PEG, the acquisition of such Debenture Bonds and scrip by Public Service in such exchange, the surrender of such stock by Public Service to PEG and the acquisition and cancellation thereof by PEG.

(8) The surrender by the holders thereof to Public Service or PEG in exchange for equal principal amounts of Fifty-Year 6% Debenture Bonds of PEG (and scrip for fractional interests of less than $100), and the acquisition and cancellation by Public Service or by PEG for its account, of $18,195,600 face amount of 6% Perpetual Interest-Bearing Certificates of Public Service, the delivery of such Debenture Bonds and scrip by Public Service, or by PEG for its account, to such holders and the acquisition thereof by such holders in such exchange, the issuance or reissuance of such Debenture Bonds by PEG on the surrender of scrip therefor in accordance with the terms of such scrip, the acquisition of such Debenture Bonds by holders of such scrip, and the acquisition and cancellation by PEG of the scrip surrendered.

(9) The sale by Public Service to PEG and the purchase, acquisition, and cancellation by PEG of 2,473 shares of 7% Cumulative Preferred Stock of PEG for $302,317.43 plus an amount equal to accrued dividends to the date of sale.

(10) The cancellation by PEG of 86 shares of its 7% Cumulative Preferred Stock heretofore reacquired by it.

(11) The change by PEG of its outstanding 17,885,290 shares of Common Stock into 6,062,767 shares of $1.40 Dividend Preference Common Stock (each share of such $1.40 Dividend Preference Common Stock being convertible, at the option of the holder, into 1.1 shares of Common Stock of PEG during the first three years following the effective date of the amended plan; into 1 share of such Common Stock during the succeeding three years; into ⅞th of a share of such Common Stock during the succeeding three years; and into ¾ths of a share of such Common Stock during the succeeding three years, after which twelve-year period the conversion privilege shall terminate) and 5,503,193 shares of Common Stock, the surrender of such outstanding Common Stock by Public Service to PEG and the acquisition and cancellation thereof by PEG, the acquisition by Public Service of such new $1.40 Dividend Preference Common Stock or scrip therefor and Common Stock, and the issuance and/or delivery thereof by PEG to Public Service or for its account in exchange for such outstanding Common Stock.

(12) The sale by Public Service to Transport and the purchase, acquisition, and cancellation by Transport of the following Bonds for the respective amounts (in each case plus an amount equal to accrued interest to the date of sale) indicated in each case:

$6,600,000 principal amount of First and Refunding Mortgage Bonds, 4% Series due January 1, 1990, of Transport for $6,600,000.

$77,700 principal amount of First and Refunding Mortgage Bonds, 5% Series due January 1, 1990, of Transport for $116,099.29.

$5,200 principal amount of First and Refunding Mortgage Bonds, 5¾% Series due January 1, 1990, of Transport for $3,715.23.

$305,200 principal amount of First and Refunding Mortgage Bonds, 6% Series due January 1, 1990, of Transport for $310,464.60.

(13) The sale by Public Service to Transport and the purchase and acquisition by Transport of the following Bonds for the respective amounts (in each case plus an amount equal to accrued interest to the date of sale) indicated in each case:

$3,000 principal amount of 50-Year 5% Mortgage Gold Bonds due December 1, 1950, of Elizabeth, Plainfield and Central Jersey Railway Company for $2,497.50.

$1,000 principal amount of Fifty Year 5% General Mortgage Gold Bonds due May 1, 1954, of Elizabeth and Raritan River Street Railway Company for $857.50.

$226,000 principal amount of Fifty Year 4% First Mortgage Gold Bonds due November 1, 1949, of Jersey City, Hoboken and Paterson Street Railway Company for $165,287.50.

$2,000 principal amount of First Mortgage Gold Bonds, 5%, due January 1, 1950, of Middlesex and Somerset Traction Company for $1,682.50.

and the pledge thereof by Transport to and the acquisition thereof by Fidelity Union Trust Company, Trustee of the First and Refunding Mortgage of Transport.

(14) The surrender and donations by Public Service to Transport and the acquisition and cancellation by Transport by 7,121,672 shares of Common Stock of Transport.

(15) The change by Transport of its outstanding 487,479 shares of $6.00 Non-Cumulative Preferred Stock into 487,479 shares of Common Stock, the surrender of such Preferred Stock by Public Service to Transport, the issuance of such Common Stock to Public Service by Transport in exchange for such outstanding Preferred Stock and the acquisition thereof by Public Service, and the acquisition and cancellation of such Preferred Stock by Transport.

(16) The sale by PEG to Public Service, and the purchase, acquisition, and cancellation by Public Service, of 11,552 shares of 6% Cumulative Preferred Stock of Public Service for $1,212,960.00 plus an amount equal to accrued dividends to the date of sale.

(17) The cancellation by Public Service of 819 shares of its 8% Cumulative Preferred Stock, 152,313 shares of its 6% Cumulative Preferred Stock, 985 shares of its $5 Cumulative Preferred Stock heretofore reacquired by it.

(18) The surrender by the holders thereof to Public Service or PEG of 214,493 shares of its 8% Cumulative Preferred Stock, 289,080 shares of its 7% Cumulative Preferred Stock, 587,312 shares of its 6% Cumulative Preferred Stock, and 517,512 shares of its $5 Cumulative Preferred Stock in exchange for 4.7 shares of $1.40 Dividend Preference Common Stock of PEG (and scrip for fractional interests of less than one share) for each share of 8% Cumulative Preferred Stock of Public Service so surrendered, 4.15 shares of such Dividend Preference Common Stock (and scrip for fractional interests of less than one share) for each share of 7% Cumulative Preferred Stock so surrendered, 3.7 shares of such Dividend Preference Common Stock (and scrip for fractional interests of less than one share) for each share of 6% Cumulative Preferred Stock so surrendered, and 3.25 shares of such Dividend Preference Common Stock (and scrip for fractional interests of less than one share) for each share of $5 Preferred Stock so surrendered, the acquisition and cancellation by Public Service or by PEG for its account of such Preferred Stock of Public Service, and the issuance and/or delivery of such Dividend Preference Common Stock and scrip by Public Service or by PEG for its account to such holders and the acquisition thereof by such holders in such exchange.

(19) The issuance by PEG of its Common Stock (and scrip for fractional interests of less than one share) to holders of its $1.40 Dividend Preference Common Stock on conversion thereof, the acquisition and cancellation by PEG of such Dividend Preference Common Stock and the surrender thereof by such holders on such conversion, the acquisition of such Common Stock and scrip by such holders on such conversion, the issuance of such Common Stock by PEG on the surrender of scrip therefor in accordance with the terms of such scrip, the acquisition of such Common Stock by the holders of such scrip, and the acquisition and cancellation by PEG of the scrip surrendered.

(20) The surrender by the holders thereof to Public Service or PEG of 5,503,193 shares of Common Stock of Public Service in exchange for 5,503,193 shares of Common Stock of PEG and 550,319 shares of Capital Stock of South Jersey Gas Company (and scrip for fractional interests of less than one share) in the ratio of 1 share of such Common Stock of PEG and 1/10 of a share of such Capital Stock of South Jersey Gas Company for each share of Common Stock of Public Service so surrendered, the acquisition and cancellation by Public Service or by PEG for its account of such Common Stock of Public Service, and the issuance and/or delivery by Public Service, PEG, or South Jersey Gas Company of such Common Stock of PEG and Capital Stock of South Jersey Gas Company (and scrip for the latter) to such holders and the acquisition thereof by such holders in such exchange.

(21) The transfer by Public Service to South Jersey Gas Company (in exchange for Capital Stock scrip of South Jersey Gas Company) of all shares of Capital Stock of South Jersey Gas Company not initially required for the purpose of effecting the exchange referred to in paragraph (20) above, the acquisition thereof and the issuance of such scrip by South Jersey Gas Company, the issuance or reissuance of such Capital Stock by South Jersey Gas Company on the surrender of scrip therefor in accordance with the terms of such scrip, the acquisition of such Capital Stock by the holders of such scrip, and the acquisition and cancellation by South Jersey Gas Company of the scrip surrendered.

(22) The transfer by Public Service of all the remaining assets of Public Service, including cash and bank and other deposits ($7,870,379.94 at December 31, 1946), United States of America Certificates of Indebtedness ($9,000,345.58 at December 31, 1946), accounts receivable ($19,808.11 at December 31, 1946), the 487,479 shares of new Common Stock of Transport aforesaid and all shares of $1.40 Dividend Preference Common Stock of PEG not initially required for the purpose of effecting the exchange referred to in paragraph (18) above, to PEG, the acquisition thereof by PEG, the assumption by PEG of all the remaining liabilities of Public Service, including current liabilities ($1,449,626.82 at December 31, 1946), the issuance or reissuance of such $1.40 Dividend Preference Common Stock by PEG on the surrender of scrip therefor in accordance with the terms of such scrip, the acquisition of such $1.40 Dividend Preference Common Stock by the holders of such scrip, and the acquisition and cancellation by PEG of the scrip surrendered.

(23) The cancellation by PEG of all shares of its $1.40 Dividend Preference Common Stock and of all its Fifty-Year 6% Debenture Bonds reserved for issuance on surrender by the holders thereof of 8% Cumulative Preferred Stock, 7% Cumulative Preferred Stock, 6% Cumulative Preferred Stock, $5 Cumulative Preferred Stock, or 6% Perpetual Interest-Bearing Certificates of Public Service which shall not have been surrendered in exchange therefor within the time limits specified in the amended plan or in the court order enforcing the amended plan; and the cancellation by PEG of all shares of its $1.40 Dividend Preference Common Stock and of all its Fifty-Year 6% Debenture Bonds reserved for issuance on surrender by the holders thereof of scrip therefor which shall not have been surrendered in exchange therefor within the time limits specified in the amended plan or in said court order.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 48-1994; Filed, Mar. 5, 1948; 8:47 a. m.]

[File No. 70-1706]

CHESAPEAKE UTILITIES CORP. ET AL.

ORDER GRANTING APPLICATION

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 1st day of March A. D. 1948.

In the matter of Chesapeake Utilities Corporation, Charles C. Harrison, 3d, David B. Sharp, Jr., Robert E. Daffron, Jr., Mary Callery, File No. 70-1706.

Chesapeake Utilities Corporation ("Chesapeake"), an exempt holding company, Charles C. Harrison, 3d, David B. Sharp, Jr., Robert E. Daffron, Jr., and Mary Callery having filed a joint application and an amendment thereto pursuant to the Public Utility Holding Company Act of 1935, particularly sections 9 (a) (2) and 10 thereof, respecting (1) the proposed acquisition by Chesapeake from John B. Whitworth, Edgar M. Lucas and James Piper, Jr., of substantially all of the outstanding common stock, together with certain other securities, of Citizens Gas Company and Sussex Gas Company, both public-utility companies; and (2) the acquisition by Mary Callery of common and preferred stocks to be issued by Chesapeake; and

A public hearing having been held in such matter and the Commission having considered the record and having made and filed its findings and opinion herein;

It is ordered, That said joint application, as amended, be, and the same hereby is, granted, effective as of the date hereof, subject to the terms and conditions prescribed in Rule U-24 of the general rules and regulations under the act, and to the further condition that applicants, and each of them, comply with the terms of stipulation dated February 26, 1948, and filed herein, failing which any exemption otherwise available to Chesapeake Utilities Corporation and its subsidiaries as such under the act and the rules and regulations promulgated thereunder shall be immediately and automatically terminated in its entirety.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 48-1991; Filed, Mar. 5, 1948; 8:47 a. m.]

[File No. 70-1726]

MARINE MIDLAND TRUST CO. OF NEW YORK

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 27th day of February 1948.

The Marine Midland Trust Company of New York, as Trustee under Pension Trust Agreement, dated December 14, 1937, a subsidiary of General Public Utilities Corporation, a registered holding company, having filed a declaration, pursuant to section 12 (d) of the Public Utility Holding Company Act of 1935 and Rule U-44 promulgated thereunder, with respect to the following transactions:

Declarant is the Trustee under the Pension Trust Agreement for the benefit of the employees of companies now or formerly in the Associated Gas & Electric Company or General Public Utilities Corporation systems. It proposes to sell all of the securities of companies in the General Public Utilities Corporation system now held by it as such trustee since it does not consider that the securities sought to be sold are appropriate holdings for a trustee of a trust of this special character. The securities to be sold are the following:

General Public Utilities Corp.: Common stock, 12,126 shares.

Associated Electric Co.: 4½% bonds due January 1, 1953, $48,000 principal amount; 5% bonds due January 1, 1961, $50,000 principal amount.

Declarant proposes to sell the common stock of General Public Utilities Corporation on the New York Stock Exchange and proposes to sell the bonds of Associated Electric Company in the over-the-counter market or on one or more of the National Securities Exchanges where traded in. Declarant states that the securities to be sold will be sold at the current market prices thereof at the time of sale, and that no more than the customary brokerage commissions will be paid. Since the proceeds to be received by the declarant for the sale of such securities will not exceed $1,000,000, such sale is exempt from the competitive bidding requirements of Rule U-50 of the general rules and regulations promulgated under the act.

Declarant states that it is its present intention to invest the proceeds from the sale of such securities in obligations of the United States Government and/or to pay such proceeds to provide pensions.

Said declaration having been duly filed on January 13, 1948 and notice of said filing having been given in the form and manner prescribed by Rule U-23 promulgated pursuant to said act, and the Commission not having received a request for hearing with respect to said declaration within the period specified in said notice, or otherwise, and not having ordered a hearing thereon; and

The Commission finding with respect to said declaration that the requirements of the applicable provisions of the act and rules thereunder are satisfied and that no adverse findings are necessary, and deeming it appropriate in the public interest and in the interests of investors and consumers that said declaration be permitted to become effective:

It is hereby ordered, Pursuant to Rule U-23 and the applicable provisions of said act and subject to the terms and conditions prescribed in Rule U-24, that the aforesaid declaration be, and the same hereby is, permitted to become effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 48-1993; Filed, Mar. 5, 1948; 8:47 a. m.]

[File No. 70-1746]

LOUISVILLE GAS AND ELECTRIC CO.

NOTICE OF FILING

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 1st day of March 1948.

Notice is hereby given that an application and a declaration has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 ("Act"), and the General Rules and Regulations promulgated thereunder, by Louisville Gas and Electric Company, a Kentucky Corporation ("Kentucky Company"), a subsidiary of Louisville Gas and Electric Company, a Delaware Corporation, which in turn is a subsidiary of Standard Gas and Electric Company, both registered holding companies. The applicant-declarant designates section 6 of the act and Rules U-24 and U-50 promulgated thereunder as applicable to the proposed transactions.

Notice is further given that any interested person may, not later than March 11, 1948, at 5:30 p. m., e. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law raised by said application-declaration proposed to be controverted or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter such application-declaration, as filed or as amended, may be granted and become effective as provided in Rule U-23 of the rules and regulations promulgated pursuant to said act. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C.

All interested persons are referred to said application-declaration which is on file in the office of this Commission, for a statement of the transactions therein proposed, which are summarized below:

Kentucky Company proposes (a) to issue and sell, pursuant to the provisions of Rule U-50, $8,000,000 principal amount of its First and Refunding Mortgage Bonds ("New Bonds"), Series due March 1, 1978 and (b) to apply part of the proceeds from such sale to the payment of its short-term bank loans ($2,450,000 principal amount), and to use the balance of such proceeds to finance, in part, its construction expenditures for 1948, estimated in the amount of $8,700,000.

The interest rate of the new bonds (to be a multiple of ⅛ of 1%) and the price to be received by Kentucky Company (to be not less than 100% and not more than 102¾% of the principal amount of said new bonds) are to be determined by competitive bidding.

The new bonds will be issued under the provisions of an Indenture, dated September 1, 1936, between Kentucky Company and Harris Trust and Savings Bank, Trustee, of Chicago, Illinois, as modified and supplemented by a new Supplemental Indenture to be dated as of March 1, 1948, on the basis of net permanent additions made to the Kentucky Company's properties.

Kentucky Company has requested that the Commission's order be issued as soon as possible granting the application and permitting the declaration to become effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 48-1990; Filed, Mar. 5, 1948; 8:46 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

AUTHORITY: 40 Stat. 411, 55 Stat. 839, Pub. Laws 322, 671, 79th Cong., 60 Stat. 50, 925; 50 U. S. C. and Supp. App. 1, 616; E. O. 9193, July 6, 1942, 3 CFR, Cum. Supp., E. O. 9567, June 8, 1945, 3 CFR, 1945 Supp., E. O. 9788, Oct. 14, 1946, 11 F. R. 11981.

[Vesting Order 9068, Amdt.]

EXPORTKREDITBANK, A. G.

In re: Stock, bonds, and other property owned by and debts or other obligations owing to Exportkreditbank, A. G. F-28-180-A-6, F-28-180-C-2, F-28-180-E-7.

Vesting Order 9068, dated May 26, 1947, is hereby amended as follows and not otherwise:

By deleting from subparagraph II, 10, of said Vesting Order 9068, the comma at the end thereof and by adding the following: "and the debt or other obligation of Manufacturers Trust Company, 55 Broad Street, New York 15, New York, in the amount of $80.00, representing a principal distribution under said participation certificate and evidenced by a check numbered 111, in like amount, dated December 15, 1939, drawn by said Manufacturers Trust Company to the order of Maria Huemmeler and Antonie Huemmeler,"

All other provisions of said Vesting Order 9068 and all actions taken by or on behalf of the Attorney General of the United States in reliance thereon, pursuant thereto and under the authority thereof are hereby ratified and confirmed.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON, *Assistant Attorney General, Director, Office of Alien Property.*

[F. R. Doc. 48-2055; Filed, Mar. 5, 1948; 8:54 a. m.]

[Vesting Order 9726, Amdt.]

KUNO SCHOELLKOPF

In re: Stock owned by Kuno Schoellkopf. F–28–577–A–1.

Vesting Order 9726, dated August 25, 1947, is hereby amended as follows and not otherwise.

By deleting from paragraph 1 of the aforesaid Vesting Order 9726 the letter "d" from the name Schoelldopf and substituting therefor the letter "k".

All other provisions of said Vesting Order 9726 and all actions taken by or on behalf of the Attorney General of the United States in reliance thereon, pursuant thereto and under the authority thereof are hereby ratified and confirmed.

Executed at Washington, D. C., on February 9, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48–2056; Filed, Mar. 5, 1948; 8:54 a. m.]

[Vesting Order 10679]

KUNO SCHOELLKOPF

In re: Stock owned by Kuno Schoellkopf. F–28–577–A–1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

That Kuno Schoellkopf, whose last known address is Stuttgart, Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That the property described as follows: Ten (10) shares of $15.00 par value common capital stock of Oklahoma Natural Gas Company, 624 South Boston Avenue, Tulsa, Oklahoma, a corporation organized under the laws of the State of Delaware, evidenced by certificates numbered 19052 for six (6) shares, 20825 for one (1) share and 20935 for three (3) shares, registered in the name of Schoellkopf, Hutton & Pomeroy, Inc., together with all declared and unpaid dividends thereon,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 9, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48–2046; Filed, Mar. 5, 1948; 8:53 a. m.]

JOHAN BOJER

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant; Claim No.; and Property

Johan Bojer, c/o Mr. Hallvard Hillestad, 2 Wall Street, New York 5, N. Y.; 6518; $541.77 in the Treasury of the United States. Property to the extent owned by claimant immediately prior to the vesting thereof, described in Vesting Order No. 4034 (9 F. R. 13781, November 17, 1944) relating to the literary works "The Last of the Vikings," "Life," "Great Hunger," "A Pilgrimage," "Prisoner Who Sang," "The Emigrants," "The New Temple," "The Everlasting Struggle," "The House and the Sea," "By Day and By Night," and "The King's Men" (listed in Exhibit A of said vesting order).

Executed at Washington, D. C., on March 2, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48–2058; Filed, Mar. 5, 1948; 8:54 a. m.]

[Return Order 93]

NIRO AOKI ET AL.

Having considered the claims set forth below and having issued a determination allowing the claims which are incorporated by reference herein and filed herewith, and notice of intention to return having been published on January 3, 1948 (13 F. R. 54).

It is ordered, That the claimed property, described below and in the Determination, be returned, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant	Claim No.	Property
Mr. Niro Aoki, 105 Ohua Ave., Honolulu 30, T. H.	7012	$3,491.56
Mr. Mizuno Aoki, 105 Ohua Ave., Honolulu 30, T. H.	7013	1,760.86
Mrs. Grace M. Kato (formerly Miyuki Arimoto and Haruno Arimoto, mother) 705 C. N. School St., (formerly 1592 Moanalua Garden), Honolulu, T. H.	7014	447.88
Mr. Minakichi Azuma or Noboru Azuma, Post Office Box 32, Ewa, Oahu, Hawaii	7015	1,056.00
Hisayo Ban, Post Office Box 201, Captain Cook, Hawaii	7017	305.41
Mrs. Elsie K. Dang (Kimiko Date) and Tora Date, 3112 Francis St., Honolulu, T. H.	7018	50.50
I. Dawa, sole owner of Hawaii Benri Sha, Post Office Box 795, Honolulu, T. H.	7019	1,018.83
Mr. Teizo Endo, Lanai City, Lanai, T. H.	7020	50.30
Mr. Masutaro Fukuda, 1223B 15th Ave., Honolulu, T. H.	7021	61.11
Mrs. Shinzuko Gono, 517 E. N. Vineyard St., Honolulu, T. H.	7022	26.29
Tokutaro Hirota, Post Office Box 921, 337 Koa St., Wahaiawa, Oahu, T. H.	7026	127.69
Mr. Denjiro Igarashi or Mrs. Chiyono Igarashi, 1724 Colburn St., Honolulu 12, T. H.	7031	202.84
Mr. Takeji Ijima, 3115 Kalei Rd., Honolulu 36, T. H.	7032	1,677.00
Mr. Shinichi Imura and/or Kimino Imura (deceased), 732 18th Ave., Honolulu, T. H.	7033	1,523.72
Mr. Kino Ishii, 634 Waiakamilo Rd., Honolulu, T. H.	7035	120.59
Mr. Toshiko Ishii, 634 Waiakamilo Rd., Honolulu, T. H.	7036	31.52
Mr. Yutaka Iwai, 1632 McGrew Lane, Honolulu, T. H.	7037	135.21
Mr. Hissashi Jinnai, 1007 Alewa Dr., Honolulu, T. H.	7038	25.50
Mr. Kaju Jinnai, formerly Kaju Iwamoto and Hisashi Jinnai, Honolulu, T. H.	7039	304.30
Mr. Hikozo Kaneshige, Post Office Box 14, Kahului, Maui, T. H.	7042	1,665.80
Mr. Shima Katasako, 424 B. N. Kaukini St., Honolulu 52, T. H.	7044	172.94
Mr. Nobura Kawada, 1425 Elm St., Honolulu 46, T. H.	7045	5,251.84
Tokujiro Kawamura or Masao Kawamura, Aiea, Oahu, T. H.	7046	1,796.84
Clara Kimiko Fukuda, 605 Coral St., Honolulu, T. H.	7047	10.04
Mr. T. Kodama, 1039 Kamehameha 4th Rd., Honolulu 45, T. H.	7049	275.20
Mrs. Maki Konishi, Eleele, Kauai, T. H.	7050	1,741.12
Mr. Noboru Korenaga, Kilauea, Kauai, T. H.	7051	714.00
Mr. Hikotaro Kurogi, 1023 Kemole Lane, Honolulu 27, T. H.	7052	587.20
Mr. Kazumori Kuwata or Natsuyo Kuwata, 918 Kawaiahao St., Honolulu 42, T. H.	7053	83.49
Mr. Mieko Maeda and Kamasuke Maeda, 134 N. Pauahi St., Honolulu, T. H.	7055	421.08
Mr. Makuichi Masui, 935 Makahiki Way, Honolulu 27, T. H.	7059	73.26
Mr. Tokukichi Masuko, 1280 Nuuanu Ave., Honolulu 22, T. H.	7060	809.77
Mr. Fujiyoshi Moriyama, 1107 First Ave., Honolulu, T. H.	7067	147.38
Mr. Kaneko Murabayashi, Kaneohe, Oahu, T. H.	7068	8.50
Mr. Nobuichi Murashige, 1833 South Beretania St., Honolulu, T. H.	7069	1,144.13
Mr. Kyoichi Nagata, Room 8, 1434 Auld Lane, Honolulu, T. H.	7070	233.31
Mr. Sadanobu Nakamura, Post Office Box 2134, Honolulu, T. H.	7072	42.01
Mr. Kojira Nakashima, 1901 South King St., Honolulu 19, T. H.	7073	195.51
Mr. Suehiko Nishimoto, 1419 9th Ave., Honolulu, T. H.	7075	849.33
Mr. Joichi Nishimura, 2228 Pauoa Rd., Honolulu, T. H.	7076	113.46
Mr. Matsutaro Nishitani, 1713 Kalauokalani Way, Honolulu, T. H.	7077	986.31
Mr. Mitsue Obayashi or Tazu Obayashi, 4656 Farmers Rd., Honolulu 55, T. H.	7078	1,012.78
Mr. Yasunobu Ogami, 917 Coolidge St., Honolulu 36, T. H.	7080	53.68
Mr. Chiyo Ohta, 1419 9th Ave., Honolulu, T. H.	7082	164.80
Mr. Fusayo Oka or Yoshiyoka Oka, Waianae, Oahu, T. H.	7083	2,264.71
Mr. Oriyo Okada, 576 Halekauwila St., Honolulu, T. H.	7084	443.80
Mr. Rihachi Oyama, Post Office Box 51, Kai Malino, Honolulu, T. H.	7086	190.71
Mr. Tera Oyama, Post Office Box 207, Waialua, Oahu, T. H.	7087	592.83
Mr. Harue Sakai, 411 Liliha Court Lane, Honolulu, T. H.	7088	45.83

Claimant	Claim No.	Property
Mr. Fuyo Sasaki, Pump 3, Waialua, Oahu, T. H.	7090	$272.93
Mr. Chiyokichi Sato, c/o Hind Clarke Dairy, Honolulu, T. H.	7091	72.03
Mr. T. Sato, 223 North King St., Honolulu, T. H.	7092	90.30
Mr. Takeshi Shimakage or Torakichi Shimakage, Post Office Box 25, Ewa, Oahu, T. H.	7093	403.06
Mr. Juntaro Shirai and Kunuyo Shirai, Kekaha, Kauai, T. H.	7095	1,086.09
Mr. Yakyo Shishido, Kaheka, Paia, Maui, T. H.	7096	407.15
Mr. Koichi Shozuya, 1112 Union St., Honolulu, T. H.	7097	10,924.93
Mr. Kanichi Sumida, 1329 Kahanu St., Honolulu, T. H.	7099	84.26
Mr. Shinzuke Sumida, 1558 Kauluwela Lane, Honolulu 22, T. H.	7100	3,062.08
Mr. Kakusuke Sumiya, 28 Kaena Lane, Honolulu 52, T. H.	7101	72.68
Mr. Kanzaburo Suye, 910 Ahana Lane, Honolulu, T. H.	7102	3,950.78
Mrs. Kiku Suye, 910 Ahana Lane, Honolulu, T. H.	7103	2,703.68
Yayoe Suzuki and Wasuku Suzuki, Post Office Box 4, Waipahu, Oahu, T. H.	7104	80.50
Kichigoro Tadaki, 1208 Lauhala St., Honolulu, T. H.	7105	351.59
Masayo Takafuji, 1741 Fern St., Honolulu 27, T. H.	7106	122.86
Miyojiro Takamori, Post Office Box 453, Waialua, Oahu, T. H.	7107	301.06
Mrs. Toka Takaoka, 1250 B. Aala Lane, Honolulu, T. H.	7108	607.60
Toranoshin Takehara, 1420 E. Lunalilo St., Honolulu, T. H.	7109	6,406.68
Seikichi Abe, 1910 N. School St., Honolulu, T. H.	7229	1,025.38
Kameji Ando, 681-B South King St., Honolulu, T. H.	7231	726.04
Buhachi Esaki, Anahola, Kauai, T. H.	7243	510.00
Mine Fujii or Ume Fujii, 582 N. King St., Honolulu, T. H.	7245	5,008.12
Sasayo Fujikawa, 3059 B. Kanu St., Honolulu, T. H.	7246	103.46
Asakichi Fukuda, 1189 Lower Olli Rd., c/o Okada Store, Honolulu 55, T. H.	7247	56.49
Shime Furumizo, 610-A North Vineyard St., Honolulu 7, T. H.	7248	119.34
Giichi Goto, 921-E Robello Lane, Honolulu, T. H.	7249	5.73
Kiyono Hara, Post Office Box 97, Hilo, Hawaii	7253	225.37
Thos. K. Hashimoto, 1935 Houghtailing Rd., Honolulu 29, T. H.	7254	10.84
Mrs. Kinu Hayashi, Aiea, Oahu, T. H.	7255	1,170.92
Rikichi Hayashi, Aiea, Oahu, T. H.	7256	1,013.92
Kenzo Higo or Tatsumatsu Hireno, Aiea, Oahu, T. H.	7258	132.51
Minoru Hirano or Tatsumatsu Hireno, Aiea, Oahu, T. H.	7259	349.83
Umetaro Hirano, Aiea, Oahu, T. H.	7260	20.54
Yuji Ibara, 1225 10th Ave., Honolulu, T. H.	7261	101.55
Sakuji Ikeda, 1345 Koko Head Ave., Honolulu 17, T. H.	7364	10.64
Kazuo Ishigami, 1291 South King St., Honolulu, T. H.	7266	1,549.32
Kame Ishihara, Box 370, Waipahu, Oahu, T. H.	7267	662.71
Unosuke Kami, 1235 Nuuanu Ave., Honolulu 22, T. H.	7269	90.22
Toichi Kaneshige, 312-A Tolani Ave., Honolulu 6, T. H.	7270	515.34
Yamasuke Kuneshiro, 2871 Numana Rd., Honolulu 10, T. H.	7271	56.35
Matsuyo Kanno or Toyo Kanno, Post Office Box 702, Wahiawa, Oahu, T. H.	7272	168.20
Minoru Karawan, c/o Japanese Hospital, Kuakini St., Honolulu, T. H.	7273	4.96
Osamu Kasashima or Jisuke Kasashima, 1413 A. Iao Lane, Honolulu, T. H.	7274	1,814.79
Shinsaku Kaya, 920-B No. 3 Austin Lane, Honolulu 7, T. H.	7275	44.64
Tadasu Kaya, 901 Factory St., Honolulu, T. H.	7276	26.69
Fumi Kimura, Kealakekua, Hawaii, T. H.	7277	273.14
Usaku Kojima, 2680-F East Manoa Rd., Honolulu, Oahu, T. H.	7279	2,076.73
Yoshio Kokubun, doing business as Palama Watch Store, 641 North King St., Honolulu, T. H.	7280	70.93
Mayo Korenaga, Kilauea, Kauai, T. H.	7281	151.97
Owari Kuboi or Takeo Kuboi, Moana Hotel Employees' Cottage, Honolulu 11, T. H.	7283	29.49
Mrs. Tatsuo Kudo, 529 Winant St., Honolulu 35, T. H.	7284	457.97
Tamezo Kumai, 836 Wiliwili St., Honolulu, T. H.	7285	64.08
Masutaro Kunihisa or Masao Kunihisa, Post Office Box 927, Wahiawa, Oahu, T. H.	7286	5,043.05
Masutaro Kunihisa or Yoshio Kunihisa, Post Office Box 927, Wahiawa, Oahu, T. H.	7287	$7,060.27
Fujio Mansho or Tamie Mansho, Ewa, Oahu, T. H.	7289	1,179.45
Taketa Matayoshi or Unta Matayoshi, 933 C. Coolidge St., Honolulu, T. H.	7290	1,007.39
Unta Matayoshi, 933 C. Coolidge St., Honolulu, T. H.	7291	24.59
Rokuichi Matsuda, Aiea, Oahu, T. H.	7292	2,013.12
Mrs. Shige Matsumoto, 919 Akau Lane, Honolulu 51, T. H.	7293	1,014.55
Buntetsu Miyamoto, Waialu, Oahu, T. H.	7294	300.23
Suematsu Matsumoto, guardian of Florence T. Miyamoto, nee Otoku Matsumoto, 2319 Rose St., Honolulu, T. H.	7295	145.62
Torae Miyao or Masa Miyao (deceased), 1560-B Piikoi St., Honolulu, T. H.	7296	143.12
Kumataro Mitsunaga, 2841 Koaniani Way, Honolulu 15, T. H.	7297	503.30
Mrs. Ritsuko Miura or Bunzo Miura, 3409 Maluhia St., Honolulu 31, T. H.	7298	774.10
Fumi Miyamoto, Waialua, Oahu, T. H.	7299	1,019.61
Tami Harada (deceased) or Giichi Harada, 1252 Palolo Ave., Honolulu, T. H.	7024	2,247.35
Mr. Yasuhei Matsunaga, 1018 Kemole St., Honolulu 27, T. H.	7062	30.21
Mr. Kikuno Mizumoto, Waianae, Oahu, T. H.	7065	243.12

Appropriate documents and papers effectuating this order will issue.

Executed at Washington, D. C., on March 2, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2057; Filed, Mar. 5, 1948; 8:54 a. m.]

[Vesting Order 10691]

EMMA M. BILLER

In re: Estate of Emma M. Biller, deceased. File No. D-28-11879; E. T. sec. 16084.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Anna Kühlke, August Amandus Wiebusch and Karl Wilhelm Wiebusch, whose last known address is Germany, are residents of Germany and nations of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the persons identified in subparagraph 1 hereof, and each of them, in and to the estate of Emma M. Biller, deceased, is property payable or deliverable to, or claimed by, the aforesaid nationals of a designated enemy country (Germany);

3. That such property is in the process of administration by Robert Biller and Louis Hoffman, as executors, acting under the judicial supervision of the Surrogate's Court of Queens County, New York.

and it is hereby determined:

4. That to the extent that the persons identified in subparagraph 1 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2047; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10698]

ELEANOR T. FLINN

In re: Trust u/w of Eleanor T. Flinn, deceased. File No. D-28-11585; E. T. sec. 15800.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Fannie De Bret and Marie Schacht, whose last known address is Germany, are residents of Germany and nationals of a designated enemy country (Germany);

2. That the domiciliary personal representatives, heirs, next-of-kin, legatees and distributees, names unknown, of Marie Schacht, who there is reasonable cause to believe are residents of Germany, are nationals of a designated enemy country (Germany);

3. That all right, title, interest and claim of any kind or character whatsoever of the persons identified in subparagraphs 1 and 2 hereof, and each of them, in and to the trust created by the Last Will and Testament of Eleanor T. Flinn, deceased, and codicil thereto dated September 13, 1935, is property payable or deliverable to, or claimed by, the aforesaid nationals of a designated enemy country (Germany);

4. That such property is in the process of administration by The Cleveland Trust Company, as trustee, acting under the judicial supervision of the Probate Court of Cuyahoga County, Ohio;

and it is hereby determined:

5. That to the extent that Fannie DeBret, Marie Schacht, and the domiciliary personal representatives, heirs, next-of-kin, legatees and distributees, names unknown, of Marie Schacht, are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2048; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10703]

HENRY HUCKRIEDE

In re: Estate of Henry Huckriede, deceased. File No. D-28-12209; E. T. sec. 16429.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Ida Huckriede, Herman Huckriede, and Emma Ballman, whose last known address is Germany, are residents of Germany and nationals of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the persons named in subparagraph 1 hereof, and each of them, in and to the Estate of Henry Huckriede, deceased, is property payable or deliverable to, or claimed by, the aforesaid nationals of a designated enemy country (Germany);

3. That such property is in the process of administration by the Treasurer of the City of New York, as Depositary, acting under the judicial supervision of the Surrogate's Court, Bronx County, State of New York;

and it is hereby determined:

4. That to the extent that the persons identified in subparagraph 1 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2049; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10709]

ANNA SCHMAUSS

In re: Trust under will of Anna Schmauss, deceased. File No. D-28-12039; E. T. sec. 16236.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Hans Froehlich, Engelbert Froehlich, Babbette (Barbara) Froehlich, Maria Froehlich Brunner, and Christian Froehlich, whose last known address is Germany, are residents of Germany and nationals of a designated enemy country (Germany);

2. That all right, title, interest and claim of any kind or character whatsoever of the persons named in subparagraph 1 hereof, and each of them, in and to the trust created under the Will of Anna Schmauss, deceased, is property payable or deliverable to, or claimed by, the aforesaid nationals of a designated enemy country (Germany);

3. That such property is in the process of administration by The Third National Bank of Rockford, Illinois, as Trustee, acting under the judicial supervision of the Circuit Court, in Chancery, of Winnebago County, Illinois;

and it is hereby determined:

4. That to the extent that the persons named in subparagraph 1 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2050; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10715]

DORA BEBENSEE

In re: Stock and bank account owned by Dora Bebensee. F-28-28567-A-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Dora Bebensee, whose last known address is c/o Thiel, Hamburg-Altona, Bahrenfelderstrasse 8 7 III, Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That the property described as follows:

a. Fifty (50) shares of no par value common stock of The H. D. Lee Company, Kansas City, Missouri, evidenced by a certificate numbered 2224, dated February 2, 1931 and registered in the name of Dora Bebensee, together with all declared and unpaid dividends thereon, and

b. That certain debt or other obligation of Farmers National Bank, Salina, Kansas, arising out of an account, entitled The H. D. Lee Company for Dora Bebensee, maintained at the aforesaid bank, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Dora Bebensee, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 16, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2051; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10735]

ANILINAS ALEMANAS, S. A.

In re: Bank account owned by Anilinas Alemanas, S. A.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That I. G. Farbenindustrie Aktiengesellschaft, the last known address of which is Frankfurt-am-Main, Germany, is a corporation, association, partnership or other business organization, organized under the laws of Germany, and which has or, since the effective date of Executive Order 8389, as amended, has had its principal place of business in Germany and is a national of a designated enemy country (Germany);

2. That Anilinas Alemanas, S. A., the last known address of which is Salta 323, Buenos Aires, Argentina, is a corporation, association, partnership or other business organization, organized under the laws of Argentina, whose principal place of business is located at Buenos Aires, Argentina, and is or, since the effective date of Executive Order 8389, as amended, has been owned or controlled by the aforesaid I. G. Farbenindustrie Aktiengesellschaft, and is a national of a designated enemy country (Germany);

3. That the property described as follows: That certain debt or other obligation of The National City Bank of New York, 55 Wall Street, New York 15, New York, arising out of a checking account, entitled "Advance Solvents and Chemical Corporation 'Special' in trust for Anilinas-Alemanas, S. A.", Buenos Aires, maintained at the branch office of aforesaid bank located at 250 Fifth Avenue, New York 1, New York, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Anilinas Alemanas, S. A., the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

4. That Anilinas Alemanas, S. A. is controlled by or acting for or on behalf of a designated enemy country (Germany) or a person within such country and is a national of a designated enemy country (Germany); and

5. That to the extent that the persons named in subparagraphs 1 and 2 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 24, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2052; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10744]

CASA KONKE S. A. AND LA TALLERES TIPO-LITOGRAFICOS ARISTON (IMPRENTA ARISTON)

In re: Bank accounts owned by Casa Konke S. A. and debts owing to Casa Konke S. A. and La Talleres Tipo-Litograficos Ariston (Imprenta Ariston).

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Erich George Wilhelm Paysen, whose last known address is Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That Casa Konke S. A., the last known address of which is Tegucigalpa, Honduras, is a corporation organized under the laws of Honduras, whose principal place of business is located in Tegucigalpa, Honduras, and is or, since the effective date of Executive Order 8389, as amended, has been owned or controlled by Erich George Wilhelm Paysen, and is a national of a designated enemy country (Germany);

3. That La Talleres Tipo-Litograficos Ariston (Imprenta Ariston), the last known address of which is Tegucigalpa, Honduras, is a corporation, partnership, association or other business organization, organized under the laws of Honduras, whose principal place of business is located in Tegucigalpa, Honduras, and is or, since the effective date of Executive Order 8389, as amended, has been owned or controlled by Erich George Wilhelm Paysen, and is a national of a designated enemy country (Germany);

4. That the property described as follows:

a. That certain debt or other obligation owing to Casa Konke S. A., by The Chase National Bank of the City of New York, 20 Pine Street, New York, New York, arising out of a regular checking account, entitled Casa Konke S. A., and any and all rights to demand, enforce and collect the same,

b. That certain debt or other obligation owing to Casa Konke S. A., by The Chase National Bank of the City of New York, 20 Pine Street, New York, New York, arising out of a special checking account, entitled Casa Konke S. A., and any and all rights to demand, enforce and collect the same,

c. That certain debt or other obligation owing to Casa Konke S. A., by The Chase National Bank of the City of New York, 20 Pine Street, New York, New York, arising out of an old check outstanding account, entitled Casa Konke S. A., and any and all rights to demand, enforce and collect the same,

d. That certain debt or other obligation owing to La Talleres Tipo-Litograficos Ariston (Imprenta Ariston), by A. M. Capen's Sons Inc., 50-52 Howard Street, New York 13, New York, in the amount of $1,197.19, as of December 31, 1945, together with any and all accruals thereto, and any and all rights to demand, enforce and collect the same,

e. That certain debt or other obligation owing to Casa Konke S. A., by John Davies Company, 110 Market Street, San Francisco 11, California, in the amount of $15.02, as of December 31, 1945, together with any and all accruals thereto, and any and all rights to demand, enforce and collect the same,

f. That certain debt or other obligation owing to Casa Konke S. A., by The Banton Corporation, 60 Wall Street, New York 5, New York, in the amount of $4.20, as of December 31, 1945, together with any and all accruals thereto, and any and all rights to demand, enforce and collect the same, and

g. That certain debt or other obligation owing to La Talleres Tipo-Litograficos Ariston (Imprenta Ariston), by The Senefelder Company, Inc., 32-34 Greene Street, New York 13, New York, in the amount of $460.40, as of October 17, 1947, together with any and all accruals thereto, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Erich George Wilhelm Paysen, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

5. That Casa Konke S. A. is owned or controlled by Erich George Wilhelm Paysen, or is acting for or on behalf of a designated enemy country (Germany) or persons within such country and is a national of a designated enemy country (Germany); and

6. That to the extent that the persons named in subparagraphs 1, 2 and 3 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 24, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 48-2053; Filed, Mar. 5, 1948; 8:53 a. m.]

[Vesting Order 10747]

RAWACK & GRUENFELD ERTSHANDEL MAATSCHAPPIJ N. V.

In re: Debt owing to Rawack & Gruenfeld Ertshandel Maatschappij N. V.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Metallgesellschaft, A. G., the last known address of which is Frankfurt am Main, Germany, is a corporation, partnership, association or other business organization, organized under the laws of Germany, and which has or, since the effective date of Executive Order 8389, as amended, has had its principal place of business in Germany and is a national of a designated enemy country (Germany);

2. That Eisenerz Gesellschaft m. b. H., the last known address of which is Berlin, Germany, is a corporation, partnership, association or other business organization, organized under the laws of Germany, and which has or, since the effective date of Executive Order 8389, as amended, has had its principal place of business in Germany and is a national of a designated enemy country (Germany);

3. That Rawack & Gruenfeld Ertshandel Maatschappij N. V., the last known address of which is Westzeedijk 104, Rotterdam, Holland, is a corporation, partnership, association or other business organization, organized under the laws of Holland, whose principal place of business is located in Rotterdam, Holland, and is or, since the effective date of Executive Order 8389, as amended, has been owned or controlled by the aforesaid Metallgesellschaft, A. G. and Eisenerz Gesellschaft m. b. H., and is a national of a designated enemy country (Germany);

4. That the property described as follows: That certain debt or other obligation owing to Rawack & Gruenfeld Ertshandel Maatschappij N. V., by Wm. H. Muller & Co., Inc., 122 East 42d Street, New York 17, New York, in the amount of $2,969, as of December 31, 1945, together with any and all accruals thereto, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Rawack & Gruenfeld Ertshandel Maatschappij N. V., the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

5. That Rawack & Gruenfeld Ertshandel Maatschappij N. V. is controlled by or acting for or on behalf of a designated enemy country (Germany) or a person within such country and is a national of a designated enemy country (Germany); and

6. That to the extent that the persons named in subparagraphs 1, 2 and 3 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on February 24, 1948.

For the Attorney General.

[SEAL] DAVID L. BAZELON,
Assistant Attorney General,
Director, Office of Alien Property.

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